

A SOURCE-BOOK OF
ENGLISH
SOCIAL HISTORY

M. E. MONCKTON JONES

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PREFACE

THE new scientific method of teaching history requires that the student should learn to examine some at least of the evidence for himself, and to form a judgment upon it: he is no longer expected to accept the teacher's statements without discussion. Material for examination is, however, usually in the inaccessible form of ancient records, Latin chronicles, and so forth. It is the part of source-books to provide extracts from such records which may serve as laboratory specimens for analysis. They have the further aim of painting scenes vivid with local colour and live with the expressions of the actors themselves, so making the dry bones of the text-book put on flesh and reality.

This volume contains illustrations of various stages in the economic and social life of the British people from Saxon days to the Industrial Revolution. Fragments of the Saxon laws show the give and take of community life working out into rules of fair play and justice. The influence of the Church in trade, in education, in exploration and over-seas intercourse, appears in the life of Ingulf of Croyland. Town life is seen to develop through gild regulations and the records of London. The consequent growth of the burghers' power in Parliament, in naval organization and in finance over against the power of great noble houses, and the disorder of the fifteenth century, emerge from the Paston Correspondence. Parliamentary Rolls, and the accounts of London's growth. From manorial regulations, notes of wages at different periods, and contemporaries' accounts of enclosures, the great changes in rural life are shown; while the explorations of Carpini and Marco Polo in the East and the Spaniards' account of Drake's piracy in the West indicate the change from the mediæval to the modern world. The growth of commerce as the controlling factor in politics is indicated by the letters of Sir Thomas Roe and the East India Company's minutes, the writings of Defoe and Franklin; and Young's tour hints at the state of England on the eve of the Industrial Revolution.

These extracts have, as far as possible, been taken from sources which the teacher can easily consult further on particular points, in the hope of promoting such study, without which the average teacher's fountain of inspiration must soon run dry, to the withering of his pupil's zeal.

For permission to borrow from their volumes I am greatly indebted to Sir W. Foster and Miss Sainsbury, Mr. S. C. Hill and Mr. Callender, also to the Hakluyt Society, the Royal Historical Society, the Oxford University Press, Mr. John Murray, and Messrs. Ginn & Co.

M. E. M. J.

February, 1922

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**A SOURCE-BOOK OF
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CHAPTER I

SAXON VILLAGE AND MANORIAL SYSTEMS

INTRODUCTORY NOTES

Laws of Ethelbert

THESE laws are dated A.D. 600, only three years after the coming of St. Augustine. Throughout them and the later dooms the educative effect of Christianity in its Roman form is to be traced. Hitherto law had been oral, traditional, unrecorded; these customary laws are now first reduced to written form and made permanent for the local kingdom.

(5) Compensation, already reckoned in money though not always paid in coin (cf. 59), is the customary quittance for every offence.

(9) Crime, hitherto an offence only against the victim and his kin, is here further treated as an offence against the community represented by the King.

(74, 77) Status of woman high; marriage a business contract.

Laws of Ine

(20, 43) Most of England is still under woodland.

(25) Trade already considerable (cf. Athelstane, 10, 13).

(42) Farming done in common; use of quickset as well as temporary hurdle fences.

(44, 49) Important place of swine in Saxon economy.

Laws of Alfred

Influence of Church supreme in the form and matter of the laws, the Mosaic infused among Saxon customary rules.

(30, 32) Survival of Paganism, possibly reinforced by Danish influence.

(39) Woodland not yet cleared of wild beasts.

Laws of Athelstane

Note here the practice of local minting, now confined to officers of the Church or King; also the use of horses as well as oxen in farm labour.

Legislation is now by the King in council and the whole series of excerpts show the re-establishment of order and royal authority based on the fundamental principle of loyalty to the oath. The sworn bond between man and lord was already in Alfred's reign the most sacred, its breach constituting treason for which no money penalty might atone.

Growth of Trade

This is apparent in Alfred's laws (34), in Edward's (12), and Athelstane's; it is regulated by royal and not by local authority; and disputes between Dane and Saxon lead to the general imposition of the rule of "Commendation" of landless men to lords, which gave rise to the Saxon system later called manorial.

Boundary Dispute, 896 A.D.

Note the power of the local Witan to try property cases; the co-operation of bishop and chapter in the grant; the instance of commendation; the priest's position as spokesman of the villagers.

Manorial System

Fitzherbert's account of the rise of manors ignores the Saxon basis for the grouping of tenants under a lord to whom they paid service for their lands. This system did not begin at the Conquest but earlier (cf. Ine, 67; Alfred, 23; Athelstane, 8, 10, etc.).

It was in most cases a fair, voluntary bargain (cf. Boundary Dispute), in which one party owed protection, military and legal, in return for the labour of the other. This feudal compact enabled the country to pass through the Danish troubles and consequent disorder under the leadership of the lords. Once security had been re-established by the central power of the Angevin kings, both the need for lords and their sense of responsibility for their men faded and their power was abused till the economic forces of the thirteenth and fourteenth centuries gave the men a means of resistance.

Custumals of Battle Abbey

It is possible from these details to construct a vivid scene of manorial life. Owners of ecclesiastical manors were usually more liberal to their tenants than lay lords. Interesting features are the work of the lord's officer, the Reeve; the fact that while a half-hide may support a considerable family, the work of only one member is required to do the services; the ease with which the elaborate details of the services led to disputes; the ranks of the various villeins and the consequent difference in the service each paid; the constant use of barter, goods being paid rather than money.

SAXON LAWS OR DOOMS

(Thorpe, *Ancient Laws and Institutes*)

ETHELBERT

(King of Kent, 560-610.) (p. 2)

(5) If a man slay another in the king's tun^[1] let him make bot^[2] with fifty shillings.

(9) If a freeman steal from a freeman, let him make threefold bot; and let the king have the wite^[3] and all the chattels.

(17) If any one be the first to make an inroad into a man's tun let him make bot with six shillings; let him who follows with three shillings; after, each, a shilling.

(21) If a man slay another, let him make bot with ... a hundred shillings.

(24) If any one bind a freeman, let him make bot with twenty shillings.

(74) Let maiden-bot be as that of a freeman.

(77) If a man buy a maiden with cattle let the bargain stand, if it be without guile, but if there be guile, let him bring her home again, and let his property be restored to him.

OF THE DOOMS OF INE

(Wessex, 688 A.D.) (Ibid. p. 45)

(20) If a far-coming man or a stranger journey through a wood out of the highway, and neither shout nor blow his horn, he is to be held for a thief, either to be slain or redeemed.

(25) If a chapman traffic up among the people, let him do it before witnesses....

(40) A ceorl's close ought to be fenced winter and summer. If it be unfenced and his neighbours' cattle stray in through his own gap, he shall have nothing from the cattle: let him drive it out and bear the damage.

(42) If ceorls have a common meadow, or other partible land to fence, and some have fenced their part, some have not, and (stray cattle) eat up their common corn or grass, let those go who own the gap, and compensate to the others who have fenced their part, the damage which there may be done, and let them demand such justice on the cattle as it may be right. But if there be a beast that breaks hedges and goes in everywhere, and he who owns it will nor or cannot restrain it; let him who finds it in his field take it and slay it, and let the owner take its skin and flesh and forfeit the rest.

(43) When anyone burns a tree in a wood, and it be found out against him who did it, let him pay the full wite; let him give sixty shillings because fire is a thief. If anyone fell in a wood a good many trees, and be afterwards discovered; let him pay for three trees, each with thirty shillings. He need not pay for more of them, were there so many of them as might be; because the axe is an informer, not a thief.

(44) But if anyone cut down a tree under which thirty swine may stand, and it be discovered let him pay sixty shillings.

(49) If a man among his mast find unallowed swine, then let him take a wed^[4] of six shillings value.... If pannage^[5] be taken for swine, of those three fingers thick in fat, the third; of those two fingers, the fourth; of those a thumb thick, the fifth.

(59) A cow's horn shall be worth two pence; an ox's tail shall be worth a shilling; a cow's shall be five pence; an ox's eye shall be worth five pence; a cow's shall be worth a shilling. There shall always be given as barley-rent from one wyrhta (a measure of land) six pounds.

(67) If a man agree for a yard of land,^[6] or more, at a fixed rent, and plough it; if the lord desire to raise the land to him to service and to rent, he need not take it upon him, if the lord do not give him a dwelling, and let him lose the crop.

(69) A sheep shall go with its fleece until Midsummer, or let the fleece be paid for with two pence.

ALFRED'S DOOMS

(King of England, 871-901.) (Ibid. p. 20)

[Alfred's Doms begin with the Ten Commandments and other regulations taken from the Old Testament.]

(15) He who stealeth a freeman and selleth him, and if it be proved against him so that he cannot clear himself; let him perish by death.

(16) If anyone smite his neighbour with a stone or with his fist, and he nevertheless can go out with a staff, let him get a leech, and work his work while that himself may not.

(19) If anyone thrust out another's eye, let him give his own for it; tooth for tooth; hand for hand; foot for foot; burning for burning; wound for wound; stripe for stripe.

(22) If anyone dig a water-pit, or open one that is shut up, and close it not again; let him pay for whatever cattle may fall therein; and let him have the dead (beast).

(23) If an ox wound another man's ox, and if it then die, let them sell the (live) ox, and have the worth in common, and also the flesh of the dead one. But if the lord knew that the ox had used to push, and he would not confine it, let him give him another ox for it, and have all the flesh for himself.

(24) If anyone steal another's ox, and slay or sell it, let him give two for it; and four sheep for one. If he have not what he may give, be he himself sold for the cattle.

(30) The women who are wont to receive enchanter's, and workers of phantasms, and witches, suffer thou not to live:

(32) And let him who sacrificeth to gods, save unto God alone, perish by death.

(36) If a man have only a single garment wherewith to cover himself, or to wear, and he give it (to thee) in pledge; let it be returned before sunset.

(39) All the flesh that wild beasts leave, eat ye not that, but give it to the dogs.

(43) Judge thou very evenly: judge thou not one doom to the rich, another to the poor; nor one to thy friend, another to thy foe, judge thou.

(47) To the stranger and comer from afar behave thou not unkindly, nor oppress thou him with any wrongs.

I then, Alfred, king, gathered these together and commanded many of them to be written which our forefathers held, those which to me seemed good; many of those which seemed to me not good I rejected them, by the counsel of my Witan, and in other wise commanded them to be holden; for I durst not venture to set down in writing much of my own, for it was unknown to me what of it would please those who should come after us.

FURTHER SERIES

(12) If a man burn or hew another's wood without leave, let him pay for every great tree with five shillings, and afterwards for each, let there be as many of them as may be, with five pence, and thirty shillings as wite.

(34) It is also directed to chapmen, that they bring the men whom they take up with them before the king's reeve at the folk-moot, and let it be stated how many of them there are ... and when they have need of more men up with them on their journey, let them always declare it, as often as their need may be, to the king's reeve, in presence of the gemot.

(36) Of heedlessness with a spear.

If a man have a spear over his shoulder, and any man stake himself upon it, that he pay the *wer*^[7] without the wite. If he stake himself before his face, let him pay the *wer*. If he be accused of wilfulness in the deed, let him clear himself according to the wite; and with that let the wite abate. And let this be if the point be three fingers higher than the hindmost part of the shaft; if they be both on a level, the point and the hindmost part of the shaft, be that without danger.

EDWARD AND GUTHRUM

(Ibid. p. 71)

(7) If anyone engage in Sunday marketing, let him forfeit the chattel, and 12 ores among the Danes, or thirty shillings among the English. If a freeman work on a festival day let him forfeit his freedom or pay wite.

(12) If anyone wrong an ecclesiastic or a foreigner through any means, as to money or as to life, then shall the king or the eorl there in the land, and the bishop of the people be unto him in the place of a kinsman and of a protector, unless he have another.

LAWS OF ATHELSTANE, A.D. 925

(Ibid. p. 83)

Of Landless Men

(8) And we have ordained: if any landless man should become a follower in another shire, and again seek his kinsfolk; that he may harbour him on this condition; that he present him to folkright if he there do any wrong, or make bot for him.

(9) He who attaches cattle, let V of his neighbours be named to him; and of the V let him get one who will swear with him that he takes it to himself by folkright: and he who will keep it to himself, to him let there be named X men, and let him get two of them, and give the oath that it was born on his property....

(10) And let no man exchange any property without the witness of the reeve, or of the mass priest, or of the landlord ... or of any other unlying man....

But if it be found that any of these have given wrongful witness, that his witness never stand again for aught, and that he also give XXX shillings as wite.

(12) And we have ordained that no man buy any property out of port^[8] over XX pence; but let him buy there within on the witness of the port reeve, or of another unlying man: or further on the witness of the reeves at the folkmoot.

(13) And we ordain that every burh^[9] be repaired XIV days over Rogation Days.

Secondly that every marketing be within port.

(14) Thirdly: that there be one money over all the king's dominions and that no man mint except within port.

And if the moneyer be guilty, let the hand be struck off with which he wrought the offence, and be set up on the money smithy....

In Canterbury VII moneyers; IV the king's, and II the bishop's, I the abbot's.

At Rochester III; II the king's, and I the bishop's.

At London VIII.

At Winchester VI.

At Lewes II.

At Hastings I.

Another at Chichester.

At Hampton II.

At Wareham II.

At Exeter II.

At Shaftesbury II.

Else at the other burghs I.

(15) Fourthly: that no shieldwright cover a shield with sheep's skin; and if he do so, let him pay XXX shillings.

(16) Fifthly: that every man have to the plough two well-horsed men.

(18) Seventhly: that no man part with a horse over sea, unless he wish to give it.

(24) ... And that no marketing be on Sundays; but if anyone do so, let him forfeit the goods, and pay XXX shillings as wite.

(26) But if any one of my reeves will not do this, and care less about it than we have commanded: then let him pay my oferhrynes^[10], and I will find another who will. And let the bishop exact the oferhrynes of the reeve in whose following it may be....

All this was established in the great Synod of Greatanlea^[11]: in which was the archbishop Wulfhelm, with all the noblemen and witan....

Athelstane, king, makes it known: that I have learned that our frith^[12] is worse kept than is pleasing to me, or it at Greatanlea was ordained; and my witan say that I have too long borne with it. Now I have decreed with the witan who were with me at Exeter at mid winter; that they [the Frith breakers], shall all be ready, in themselves and with wives and property and with all things to go whither I will (unless from henceforth they shall desist) on this ... condition, that they never come again to the country ... now that is because the oaths, and the weds, and the books^[13] are all disregarded and broken which were there given; and we know of no other things to trust in except it be this.

ETHELRED, A.D. 1008

(Ibid. p. 119)

(13) Let Sunday's festival be rightly kept, as is thereto becoming: and let marketings and folkmites be carefully abstained from on that holy day.

CHURCH RULES

(Ibid. p. 472)

We have also seen often in the church, corn, and hay, and all kinds of peculiar things kept;

Mass priest^[14] ought always to have at their houses a school of disciples, and if any good man desire to commit his little ones to them for instruction, they ought very gladly to receive them, and kindly teach them.... They ought not, however, for that instruction to desire anything from their relations, except what they shall be willing to do for them of their own accord....

Also we command those mass priests, who are subjected to us, that they very earnestly [busy] themselves about the people's learning: that those

who are learned in books frequently and zealously teach their parishioners from these books, who may not be so far learned in books.

BOUNDARY DISPUTE SETTLED, A.D. 896

(Ibid., p. 139)

“In that year Ethelred, alderman, summoned all the witan of the Mercians together at Gloster, bishops and aldermen and all his chief men, and did that with the knowledge and leave of King Alfred.... Then bishop Werferth made known to the ‘witan’ that almost all the woodland had been reft from him that belonged to Woodchester which king Ethelbald gave to Worcester in perpetual alms, as mastland and woodland, to bishop Wilferth ... and then Aethelwald [the occupier] forthwith declared that he would not oppose the right.... And so very mildly gave it up to the bishop, and ordered his ‘geneat’ named Eclaf, to ride with the townsmen’s priest, named Wulfhere; and he then led him along all the boundaries as he read them to him from the old books how king Ethelbald had before increased and given it. Then, however, Aethelwald desired of the bishop and the convent that they would kindly allow him to enjoy it while he lived, and Allmund his son; and they would hold it in fee of him and the convent; and, he never, nor either of them would bereave him of the pannage right, which he had allowed him in Longridge, for the time in which God gave it to him.... So did the witan of the Mercians declare it in the ‘gemot’; and showed him the charters of the land.... And thus the townsmen’s priest rode it, and Aethelwald’s ‘geneat’ with him.... Thus did Aethelwald’s man point out to him the boundaries as the old charters directed and indicated.”

MANORIAL SYSTEM

FITZHERBERT’S ACCOUNT OF THE RISE OF MANORS

(Sir A. Fitzherbert, *Book of Husbandry*; Cunningham, *Growth of English Industry and Commerce*.
App. 1, Edition 1882.)

Customary tenants are those that hold their lands of their lord by copy of court roll, after the custom of the manor. And there be many tenants within the same manor, that have no copies and yet hold by like Custom and service at the will of the lord. And in mine opinion it began soon after the Conquest, when William Conqueror had conquered the Realm he rewarded all those that came with him, in his voyage royal, according to their degree.

And to honourable men he gave lordships, manors, lands and tenements with all the inhabitants, men and women, dwelling in the same, to do with them at their pleasure. And those honourable men thought that they must needs have servants and tenants, and their lands occupied with tillage. Wherefore they pardoned the inhabitants of their lives, and caused them to do all manner of service, that was to be done, was it never so vile, and caused them to occupy their lands and tenements in tillage and took of them such rents, customs and services as it pleased them to have. And also took all their goods and cattle at all times at their pleasure, and called them their bondmen, and since that time many noblemen, both spiritual and temporal, of their godly disposition, have made to divers of the said bondmen manumissions and granted them freedom and liberty.... Howbeit, in some places, the bondmen continue as yet the which me seemeth is the greatest inconvenience that now is suffered by the law, that is to have any christian bounden to another and to have the rule of his body, lands or goods, that his wife, children and servants have laboured for all their lifetime to be so taken, like as an it were extortion or bribery.

And many times by colour thereof there be many freemen taken as bondmen, and their lands and goods taken from them, so that they shall not be able to sue for remedy to prove themselves free of blood. And that is most commonly when the freemen have the same name as the bondmen, or that his ancestors, of whom he is come, was manumized before his birth. In such case there cannot be too great a punishment.

In many lordships there is a customary roll between a lord and his tenants, and it ought to be indented, one part to remain in the lord's keeping, the other part with the tenants and divers true copies to be made of the same, that the rents and customs run not out of remembrance. And also a suit roll to call all those by name, that oweth any suit to the lord's court and then shall there be no concealment of the suitors, but that the steward may know who is not there, and if any suitors decease, the name of his next heir would be entered into the same roll, and an enquiry made, and presented, what he held of the lords and by what rents, customs and services of every parcel by itself, and who is his next heir, and of what age he is of, and this truly done and entered into the roll, it would be a conveyance of descent ... and profitable to the lords and also to the tenants.

BATTLE ABBEY CUSTUMALS

(*Custumals of Battle Abbey*, Ed., S. R. Scargill-Bird. Camden Society, New Series, 41)

MANOR OF ALSISTUN, SUSSEX (p. XVIII)

The reeve held one virgate for which he rendered no service so long as he kept his office.

CUSTOMARY TENANTS

Services due from each half hide

Every half hide owed to the lord, on every working day, the services of one man, to do whatever should be required of him;

If thrashing was required three men ought to thrash in a day half a seam and half a bushel [i.e. $4\frac{1}{2}$ bushels] of corn, or two men $\frac{1}{2}$ seam of barley, or each man 6 bushels of oats; and of beans and vetches the same quantity as of corn; They were to thrash in whatever barn they might be directed to do (within the manor) and to winnow what they had thrashed and carry it to the granary, and if it were far to the granary to employ their cattle in carrying it;

If ditching was required two men were to make in a day 1 perch of new ditch, 5 feet in width, or each man to repair 1 perch of old;

If other work was required of them they were to work until their fellows had finished their work in the barn;

In ploughing and harrowing they were to work until it was time to unharness the plough.

When they had to break clods, to wash or shear sheep, to hoe corn, and to mow or gather hay, they were to work the whole day except the dinner hour;

In addition to the ordinary daywork each $\frac{1}{2}$ hide was to find a man for one day to gather the hay; and also a man to mow and cock hay for one day; and they were to carry the whole of the hay, each half hide with two oxen;

If necessary each half hide was to find two men to reap in the lord's field, receiving therefor every tenth sheaf,—or if the lord should prefer it, each half hide was to reap in a day an acre of corn or oats or half an acre of

barley or vetches with as many men as they chose, receiving every tenth sheaf;

They were to carry all the corn, each half hide with two oxen;

Also each half hide was to find two men and two oxen to cart manure till it was all carted away;

To plough one acre for corn once and to sow half of it, providing the seed;

To plough one acre for barley twice, and two acres for oats once, to carry the seed for the same from the granary to the field, and to harrow the same;

Every half hide was also to carry 4 loads of wood yearly to the lord's hearth, and when he was building, a cartload of timber;

If it were necessary to fetch grain from Seford or elsewhere near, each half hide was to go with one beast twice a day or if further, once a day, such service being reckoned as one day's work;

Each was also to provide and make four rafters with the appurtenances, and the roofing for the lord's sheepcote except with great timber, this being reckoned as two day's work;

Also to carry to Battle every Monday; if however the tenant's mare was dead or foaling, he was to be quit from one averagium but he was to work instead.

DUTIES OF FOUR COTTARS (p. XX)

From Michaelmas to hoeing time to perform two days' work a week, namely on Monday and Wednesday; and (as they say) do no other works except to thrash, to break clods, and to spread hay when necessary;

At Christmas each was to carry to Battle 12 hens, and at Easter 250 eggs, and they were to be free from work for twelve days at Christmas and "a die Paraceves", from Holy Friday to the octaves of Easter;

They were to hoe whenever there was anything to be hoed, to attend to the sheepshearing, and at haytime and harvest each to find one man for the whole time.

CHAPTER II

GILDS

INTRODUCTORY NOTES

Winchester

An example of full rights of self-government, the city electing its own Mayor and other officers. Citizens are entitled to attend the moot, but are already becoming a close oligarchy, “every worker” not being admitted to the freedom of the city.

Note that shops are uncommon, goods are usually sold at booths erected in market or street.

The “Great Gild” is the Merchant gild comprising all traders; the various crafts have their own gilds but are subject to the Mayor as representative of the Gild Merchant out of which in this case the corporation appears to have arisen, the townhall being called the Gildhall, and rules being enforced to maintain a high standard in commodities sold. The town dues and regulations tend to check the natural growth of industry and to restrict it in favour of freemen of the city.

Bristol

Note here that the crafts are clearly subjected to the Mayor of a Merchant Gild, who has also acquired the right to hold view of frank-pledge, etc.

The Gild of Fullers shows the importance in mediæval gilds attached to keeping up a sound standard of work and value. Thus in addition to protecting their own members as a Trades Union does, they also protected the consumer and general public.

Adam of Gloucester

Here is a case of an outsider claiming the rights of a freeman and resisting the town authority by pleading the king’s. Thus his case is heard in

the king's court of Common Bench and not in either the Mayor's Court or the Shiremoot.

The extract from the *Hereford Iter* appears to refer to the same clothier. It illustrates the growth of a demand for written evidence, the lawyer throwing scorn on the value of the tally, though tallies had been commonly used at the king's Exchequer. The reference to Law Merchant should be noted. Edward I by the Statute of Acton Burnell in 1283 had established courts in certain boroughs in which merchants might have merchant law for the recovery of debts.

Gild of St. Michael, Lincoln

This extract describes the normal doings of a gild, it is of special interest that it insists on equality among its members.

Gild of Tailors, Exeter

Letters Patent, or Charters were often merely confirmations of an already existing gild, sometimes probably dating from Saxon days but having fresh occasion to fear interference on the part of a neighbouring lord or the king, written records having now become the rule in cases of tenure of property. Such charters were often submitted to succeeding kings for confirmation, and where this was not done Charles II was able to make large sums by calling in the ancient charters. This record also shows well the efforts made to keep up a good standard of work, and the extent of the jurisdiction of the gild-authorities.

The Livery Companies

Stow's account is inserted here to show the unbroken succession of these voluntary associations from Saxon to modern days; though at the Reformation they lost their religious character.

The later trading companies are closely akin to these, but lack the main motive of mutual charity, though they too exist to co-operate in work for which the individuals' efforts would not suffice. The earliest of them, the Merchant Adventurers, did actually begin as the religious gild of S. Thomas of Canterbury, being joined by Flemings holding a charter to trade from John of Brabant.

USAGES OF WINCHESTER

(Toulmin Smith, *English Gilds*)

Summary

These be the olde usages of the City of Winchester, that have been used in the time of our elderne, be and shall be to the franchise^[15] saving and sustaining.

The Mayor shall be chosen every year, by the four and twenty sworn men and the commonalty.

There shall be four and twenty sworn men, for a Council to help the Mayor: who shall attend him on summons.

There shall be two Bailiffs, who shall be chosen by the Commonalty, out of four named by the Mayor and Twenty four, at the Michaelmas borough moot.

Also four Serjeants to do the bidding of the Mayor and Bailiffs.

And two Coroners who are to act in the soke^[16] as well as in the city.

The Bailiffs must every year lodge the plea rolls^[17] for common use.

N.B.—The Twenty four must be impartial, and be careful in speech.

Makers of quilts and blankets must work within the city and pay an annual tax for the houses where quilts are made. Every worker does not become a freeman.

The price of burel cloth shall be according to the time of year.

Burel cloth shall be made by freemen of the town.

Blankets of given lengths shall be made of given breadths.

Blankets not made of the given lengths and breadths shall be forfeited.

No stalls to be in the High Street at mere will.

None but freemen may buy untanned leather or raw hides in the town, and these not to be taken out of the town.

No fish nor poultry to be bought for sale before undern. (i.e., 9 a.m.). Victuals brought in for sale shall not be taken back unsold without leave.

Regrators and engrossers shall be heavily punished. A rent of a farthing to be paid to the king for every board on which fish is shown for sale.

Every one shall pay a halfpenny to the king for every load of fish that he puts out for sale.

Every non-freeman shall pay for every cartload of fish brought in, twopence halfpenny: and for every horseload of fresh fish, a penny halfpenny, and of salt fish a halfpenny.

[Similar regulations for bakers and brewers with rules as to the quality of the food.]

No non-freeman may have a booth for sale of goods within the town.

Cheese, butter, grease, and smear pay the same toll as wool, half weight counting the same as the whole.

Each sort of goods that ought to be weighed shall be brought into the town. Misdoers shall be punished.

Six good men shall be chosen, three by the Commonalty, and three by the Twenty four to gather in all king's dues and town rates; who shall yield an account thereof. An account must be given to the Six of moneys gathered by the Mayor or others out of town. If any man find goods for common use, it shall be put to his score, or the goods be returned.

When the time comes for the great Gild sale, men of good name shall be sought, to gather the fees of the merchants.

Non-freemen shall pay to the bailiffs, at the town-gates, for every cartload of corn coming into the town for sale, a halfpenny toll; and for every horse load a farthing.

Steel or iron 2d. per cartload, 1d. per horseload. New saddles the same, Millstones 4d. or 2d., Barrels 1d. or ½d., Tanned leather 2d. or 1d., Madder 2d. or 1d., Woad waxen 4d. or 1d.

Every cordwainer that has a shop shall pay to the king 6d. a year; and to the clerk 1d. for registration.

The master dyers of the painters have a custom to choose two good men who shall assay the goods of outsiders as between seller and buyer.

Every tanner shall pay 2s. a year for a stand in the High Street; and to the clerk a penny.

Every seller of grease, smeare and tallow shall at Easter pay to the king 1d. as smergavel.

Every shoe-maker using new ox leather shall pay at Easter 2d. as shongavel.

The city has a Common Seal and authentic, with which the town charters are sealed. An alderman keeps the charters for a year and a day. Three days warning must be openly given of the sealing. Such charters, unchallenged, are made good for ever by that seal. The sealers of grants to have 6d. for wax and all.

There shall be three copies of the seal. Two of the Twenty four shall keep two and one of the Commonalty the third. All shall be kept in a coffer, set in a larger coffer having two locks; the keys of one lock being kept by one of the Twenty-four, and that of the other lock by one of the Commonalty.

[Rules of pleading in the courts of the city of Winchester follow.]

BRISTOL [later regulations]

GILD MASTERS SANCTIONED BY THE MAYOR

(Toulmin Smith, p. 420)

It hath been used, the Mayor to let summon all the masters of the Bakers, Brewers, Butchers, and of all other crafts of the town, to come before him, and then to go and assemble them at their halls and places accustomed, to the election of their masters for the year following, and thereupon to bring their said masters and present them before the Mayor, there to take their oaths in the Mayor's presence.

It hath been used, that within a month after Michaelmas Day, the Mayor, Sheriff and Bailiffs of Bristol, to hold their Lawday in the Guildhall, by the town clerk of the same town, there to call, first the whole Council of Bristol, without any fines accepted for absence, and after that to call all freeholders and common suitors upon pain of fines, and then to call the constables of every Ward. And so to proceed to his inquests.

PETITION OF THE GILD OF FULLERS OF BRISTOL TO THE TOWN
AUTHORITIES (p. 284)

To the honourable and discreet sirs, the Mayor, sheriff, and all other honourable burgesses of the Common Council of the same town, humbly pray the Masters of the craft of Fullers of the said town: Whereas the said craft has, of old time, had divers ordinances enrolled before you of record in the Gihald of Bristol, in order to put out and do away with all kinds of bad work and deceits which divers people, not knowing the craft, from time to time do, as well in fulling cloths as in “pleityng” and “rekkyng” and many other defects in the said cloths; by which defects the town and craft are fallen into bad repute in many places where the said cloths are put to sale, to the great reproach and hindrance of the said craft.

Wherefore may it please your very wise discretions and honourable wisdom, to grant to the said suppliants that all their good ordinances of old time entered of record, and not repealed, be firmly held and kept and duly put in execution; and that four good men of the said craft be chosen by them every year, and sworn before the Mayor loyally to present all manner of defects which hereafter shall be found touching the said craft, with power, twice a week, to oversee such defects, and, likewise to keep watch over the servants and workmen of the same craft, within the franchise of Bristol, so that the said servants and workmen should not take more wages than of old time is accustomed and ordained.

And besides, discreet sirs, may it please you to grant to the said suppliants the new additions and points below written, to the profit and amendment of the said craft, and to the honour of the said town.

First, it is ordained and agreed that, each year four men of the craft shall be chosen as Masters, to search every house of the said craft, twice a week, and oversee all defects in the said cloths, if any such there be; and to present them before you at the court; so that whosoever does such bad work shall pay for the same the full price of the cloth: one half to go to the town, and the other half to the craft, without any pardon or release: and this, over and above all reasonable amends made to the buyer of the cloths.

Also, the Masters of the craft shall not give more to the men of the said craft than fourpence a day.... And if any of the masters pays more to the workmen than is above ordained, he shall be fined each time ijs; that is to say xij.d. to the commonalty, and xij.d. to the craft. And if the men take more from the masters, they shall pay, each time xij.d.; that is to say, vj.d. to

the commonalty, and vi.d. to the craft. And if the men are rebels or contrarious, and will not work, then the four Masters shall have power to take them before the Mayor and Court of Gihald of the town, to be there dealt with according to law and reason. And moreover the said servants shall work and rest in their craft, as well by night as by day, all the year, as has of old time been accustomed.

ADAM OF GLOUCESTER

(Edward I Yearbook; Pleas in Common Bench, p. 306).

1292. “One Adam brought (suit against the town bailiffs) and said that they had tortiously taken his chattels in the town of Gloucester, in the high street, and had taken them away to their toll-booth in the same town tortiously ... bailiffs of the town averred the taking as good; by reason that the custom of the town of Gloucester is this, that no one unless he be a freeman of the town may cut cloth in the said town, but that he can only sell it by the piece; yet nevertheless Adam, who is not a freeman of the town, came and cut his cloth in opposition to the custom.... Adam put forward a charter which witnessed that the king had granted to him that he might cut cloth in the same way as other freemen.”

(Edward I Yearbook. Hereford Iter.)

1292. One Adam demanded a debt by tally and offered suit.

Counsel We do not think that he ought to be answered on a bit of wood like that, without writing.

Adam What answer you to the tally?

Counsel Prayed judgment if he ought to be answered, inasmuch as he offered suit, and then failed to produce it.

Note 1. That one shall not be answered on a tally without suit.

Note 2. Note that by Law Merchant one can not wage his law against a tally; but if he deny the tally, the plaintiff must prove the tally.

GILD OF ST. MICHAEL ON THE HILL, LINCOLN

(Toulmin Smith, *English Gilds*, p. 178)

[Summary]

[The gild was founded on Easter Eve, A.D. 1350.]

On the death of a brother or sister within the city, not only shall the Dean bring the four wax lights which are called “soul candles,” and fulfil all other usual ceremonies, but the banner of the gild shall be brought to the house of the dead, and there openly shown, that men may know that the dead was a brother or sister of the gild; and this banner shall be carried, with a great torch burning, from the house of the dead, before the body, to the church.

On the eve of the feast of Corpus Christi, and on the eve of the day following, all the bretheren and sisteren shall come together as is the custom, to the gildfeast. At the close of the feast four wax lights having been kindled, and four of the tankards which are called flagons having been filled with ale, a clerk shall read and explain these ordinances, and afterwards the [ale in the] flagons shall be given to the poor.

If any brother or sister goes away from Lincoln for a year, not being on pilgrimage, and afterwards seeks to rejoin the gild, he must pay twelve pence: if away for two years, he must pay two shillings, unless he have grace.

Whoever seeks to be received into the gild, being of the same rank as the bretheren and sisteren who founded it, namely of the rank of common and middling folks, shall be charged to be faithful to the gild, and shall bear his share of its burdens.

And whereas this gild was founded by folks of common and middling rank, it is ordained that no one of the rank of mayor or bailiff shall become a brother of the gild, unless he be found to be of humble, good, and honest conversation, and is admitted by the choice and common assent of the bretheren and sisteren of the gild. And none shall meddle in any matter, unless especially summoned; nor shall such a one take on himself any office in the gild. He shall on his admission be sworn before the bretheren and sisteren, to maintain and keep the ordinances of the gild. And no one shall have any claim to office in this gild on account of the honour and dignity of his personal rank.

If any brother or sister of the gild has fallen into such an ill state that he is unable to earn his living, and has not the means of supporting himself, he shall have, day by day, a penny from the bretheren and sisteren of the gild, in the order in which their names stand on the register of their admission to the gild; each brother or sister giving the penny in turn out of his own means.

GILD OF THE TAILORS, EXETER

(Founded 1466 by charter)

(Toulmin Smith, p. 300)

Outline of Charter

By these Letters Patent, the King, for himself, his heirs, and successors, so far as he has power, enables his lieges of the Craft of Tailors in the City of Exeter, to establish a Gild of the men of the said craft and others; to maintain and encrease it; and to choose a Master and four Wardens. They may wear a livery, and hold meetings and have feasts, and make such ordinances as they think best.

The gild shall be a Body Corporate, and have a Common Seal, and may plead and be impleaded by the name of the Body Corporate. The Master and Wardens shall control the gild, and amend the misdoings of any of its members or their servants. No one shall have a board or shop of that craft, unless free of the city; nor shall anyone be let join the gild unless known to be good and faithful. The Master and Wardens shall have a general control over the craft of tailors, and over others joining the gild, and their crafts; and may, with the consent of the Mayor of the city for the time being, amend all defaults found. None else shall have such control, except the said Master and Wardens, or the Mayor and his deputies. Given at Westminster, on the 17th November, 6 E. IV.

Examples of Control (p. 321)

(2) Md. that John Rowter received IIIj yerdes of brod cloth, blew, to make Master Robert Rydon a gowne; apoun the wheche, the said Master Robert complayned of lackyng of his clothe. And ther the gowne wasse sene before the sayde crafte; and ther wasse fownde no cloth wasted, but

ther wasse dewly proved IIj quarteris of brod clothe convayed in peces, as hit apereth by patrons [patterns] of black paper in our Comon Kofer of record, at any time redy to shew, etc. ffor the said defense, the sayde John Rowter summetted hym to the Master and Wardons and to the felascheppe, the xxivth day of October, anno regni E. iiiijti, xix.

(4) Md, That John Walsche, aliis Kent, recevyed of Edmund Colchet vj yerdes of blew used to make hym a gowne; and so the sayde Edmund complayned of spoylling hys gowne and lackyng of his cloth. And so there wasse fownd no cloth stolen, but ther wasse fownd wasted the valor of a yerd, and the gowne marred: ffor the whech fense, the M. and Wardons juged yt the sayde Edmond shold take hys avountage agaynet ye sayde John at the common law, ffor ye sayde John wasse neuer amytted for a fre sower, and his M. disavoed hym yt he wasse not his foreman.

(5) Md, that John Skeche, setsayne and taylor of the Cyte of Excete come before M. and Wardons, the xvj day of Marche, ao regni Regis E. iiiij ti, xxti; and ther complayned vppon Willam Spicer, tayler, for wtholding of a potell pot of pewter, payying [weighing] iiiijti; Item, for sowyng of a kertell wtoute slevis, and for the stuffe of a coler, and setting on. For the which fense aforesayde, the M. and Wardons hath awarded yt the sayde Willam shall pay onto the sayde John Skeche, in full content of all thyng, fro the begenyng of the world into this daye, xvj.d. And the sayde John Skeche shall relese hym of all sewtes that ye sayde Skeche hath ayens the sayde Willam for all soche materis a fore wreten.

(6) Md. of a warde y made bi the Maister and Wardons the xvjth day of Jule, the yeere of the Reigne of Kyng Edward the iiiijth, the xxjth, betwene William Peeke and John Lynch his seruant; for that the said William unlawfuuli chasted hym, in brusyng of his arme and broke his hedde. And for that it was chuged, bi the said maister and wardons, that the said William Peeke shuld pay, for his leche craifte, v.s.; and for his table for a moneth, iijs. iiijd.; and for amendis, xvs.; and to the craift, xxd. for a fyne for his mysbehaueng aynst the craift.

(8) Md. of won John Tregaso, wiche was swone to the Master and Wardons of the fraternite of Tayloris of Sent John Battyst in the Cite of Exceter. That, not wtstandyng, the sayde John come before on John at Well, that tyme beyng Mayre, and renonsed the sayde wothe, and was for

sworyn on a crucefex. Where a poun, the sayde Master and Wardonis syud the same John a poun a purgery: and so, be the mene of gentyl men and money, they were made acorde, and new swaryn to the Master and Wardonys. And so the sayde John was send for, dyverse tyme to com to durgeis, massis, and other dutyis, acordyng to his othe: the wiche he absent hymself wt owte cause resenable. Where apon, the Master and Wardonys fett hym owte of his howse, and brost hym to Tayleor Hall, and there putt hym in a pere of stockys; and the (y) keped hym by the space of a day and a nygte. Apon the wiche, John Mattheu and Thomas Penhale ware bownde to the Master and Wardonys in xxti. li., that the sayde John Tregaso shuld be of god beryng contynually fro this day forward, the xvijth day of October, the reign of Kyng E. the iiijth, the xxjti.

Goods in the gild hall, 1504 (p. 327)

Here ffolwyth the ymplementes of the Taylorys halle, beyng wtyn the place yn the yere, beyng Master of the occupacion Richard Chubb, ao regni Hi spti xxo, of Exceter.

Md. that ther remayneth, fyrst yn the halle, a payntyed cloth at hye Desse; ij lytell bynches by euery syde, on by the chymney, on nayled to the walle; a planke tabell, wt ij trestelles, att hye desse; a tabell yn the syde of the halle, and a furme; a bynch yn the yn sayde of the tabell; also, yn the parler, a beddestede: also, yn the spence, a tabell planke, and ij sylwes: also, yn the chamber next to the halle, a longe coffer wtoute lockes or keyes, and a beddeste: also yn the utter chamber, a bedde stede: also a brasse pott (a plater of pewter, iiij quarters of a wyolet gowne for a woman, a broche wt a fote, ij new torches but lytell burde), and iiij yndes of torches; a streymer and a baner, a boxe wt iiij ewydence, wt iij other wretynges: and a seyalle of sylver of the brotherredyis.

New Ordinance of 1531

Be it enacted, the fest of Saynt Marke, the xxiiijth yere of the raigne of King Henry the viijth, Thomas Hunt then beyng Master, that euery mannys wief, after the deth of hur husbond, beyng a taillor, shall kepe as many servaunts as they wille, to werke wt hur to hur use duryng hur widowhode, so she bere scotte and lotte, yeve and yeld, wt the occupation. And if be proved that the same seruaunts do werke not to the only vse of his said

Mastresse, but to his or their owne vse, beth the Mastresse and the seruaunts euery of theym for euery [such offense shall pay in fines] iijs. iiijd.

THE LIVERY COMPANIES

(Stow, *Survey of London*, Book V, p. 165.)

These Companies severally at sundry times purchased the King's Favour and License by his Letters Patents to associate themselves in Brotherhoods, with Master and Wardens, for their Government.... And such Liveries have they taken upon them, as well before as since they were by License associated into Brotherhoods or Corporations.

For the first of these Companies that I read of to be a Guild, Brotherhood or Fraternity in this City, were the Weavers, whose Guild was confirmed by Henry the Second. The next Fraternity, which was of St. John Baptist, time out of mind, called of Taylors, and Linnen Armourers of London, I find that King Edward I in the 28th of his Reign, confirmed that Guild.... The other Companies have since purchased License of Societies, Brotherhoods, or Corporations in the Reigns of Edward III, Richard II, Henry IV, Henry V, Henry VI, Edward IV, etc.... The Coverture of Men's Heads was then Hoods ... in the Guildhall, the Maior is ... pictured, sitting in his Habit party coloured, and a Hood on his Head, his Swordbearer before him with an Hat or Cap of Maintenance: The Common Clerk and other Officers bareheaded, their Hoods on their Shoulders.... These Hoods were worn, the Roundlets upon their Heads, the Skirts to hang behind their Necks to keep them warm, the Tippet to lie on their Shoulder or to wind about their Necks. These Hoods were in old time made in Colours according to their Gowns.... But now ... they have used their Gowns to be all of one Colour and that the Saddest.

THE COMPANY OF SKINNERS, A.D. 1598

(Stow, Book II, p. 201)

This Company of Skinners in London was incorporate by Edward III therefore divers royal Persons were named to be Founders and Brethren of this Fraternity, to wit, Kings six, Dukes nine, Earls two, one Lord.

This Fraternity had also once every year on Corpus Christi Day, after Noon, a Procession which passed through the principal Streets of the City. Wherein was borne more than one hundred Torches of Wax (costly garnished) burning light, and above two hundred Clerks and Priests in Surplices and Copes, singing. After the which were the Sheriffs Servants, the Clerks of the Compters, Chaplains or the Sheriffs, the Maiors Serjeants, the Councel of the City, the Maior and Aldermen in Scarlet, and then the Skinners in their best Liveries.

Thus much to stop the Tongues of unthankful Men, such as use to ask, Why have ye not noted this, Or that, and give no thanks for what is done.

CHAPTER III

MEDIÆVAL LIFE AND EXPLORATIONS

INTRODUCTORY NOTES

Abbey of Croyland

(*a, b, c*)—

CHIEF interest social; illustrates origins of centres of civilisation in Saxon England; foundations of abbey laid in same way as those of Glastonbury British Lake village c. 300 B.C.; importance of abbey as place of refuge from (i) floods, (ii) raids, (iii) lack of supplies; as nucleus for growth of town, later prevented by Danish destruction. All precincts would share in sanctuary right.

(*d*) Valuable instance of land granted in fee-farm, and farm.

(*e*) This oath of personal homage to King was an all-important innovation and one of the reasons why Britain emerged from feudalism early—France not before fifteenth century, and Germany not till eighteenth century. This fact that Winchester was the capital of Wessex explains the national treasure having been kept there till T. R. Henry II.

(*f*) An exaggerated statement. The Norman ceremonies of knighthood seem to have differed little. All these practices were included in the full Elizabethan ceremony, which lasted two days. The custom of conveying land by means of some symbol of it or of the service returned, such as the transfer of a sod or a sword, was derived from the practices of European tribes in the primitive semi-nomad stage.

The Burning of Croyland

The servants in the vill would be the tenants of the abbey, living around it in their village huts, farming its lands and doing other services. The roofs of monastic houses were either of thatch or lead. Where lead was used the

immense amount of it constituted valuable plunder. This was a large item in the spoils made by the court of Henry VIII on the dissolution.

Junior monks were under the charge of a novice, master or Librarian and spent some time each morning between services in studying in the north-west cloisters. Their books and rolls were kept in cupboards built against the angle formed by the south wall of the nave and the south transept, the most secure and dry spot available.

Astronomy was studied by the Arabs (cf. Psalms of David for Oriental view of the heavens). These mingled with Italians when they held the Mediterranean coasts, from about A.D. 700 onwards. The Emperor Frederick II encouraged this intercourse and so Europe learned from them the elements of mathematics, science and geography. Note that the contributions for re-building the abbey are made in kind, showing the use of barter to be still normal rather than currency.

Life of Abbot Ingulf

This life brings out forcibly the importance of Church intercourse in promoting international relations and preventing insularity. Monastic communities even in Britain were rarely if ever entirely British; they were international hostelries and libraries, centres of international pilgrimage and trade; often under the direction of a foreigner, e.g., Anselm, Stephen Harding of Citeaux; the Papacy thus also international. Note the cosmopolitan company and the divers objects of the crusaders, Norman monks and knights, German bishops, Genoese sailors, Christian merchants, Syrians and Greeks.

The contribution rendered to William by Fontenelle is typical of the feudal aid given on exceptional occasions.

Another noteworthy point is the reception of visiting monks at Croyland for long periods and in great numbers.

Thirteenth Century Explorers

The reports of Carpini and Rubruquis shew a further development of the travelling activity of the Church. Though less influential than the explorations of the sixteenth century, these travels gave almost the only information of the East after the Crusades. They are also valuable

illustrations of nomad life. Many children delight in such material as M. Polo's descriptions, the vivid colour of which is a useful relief to the drabness of modern town life, wakening a sense of the wonder and beauty of other existences.

ABBEY OF CROYLAND

(Ingulf's Chronicle of Croyland. Tr. by H. T. Riley)

(a) Croyland consisting of fenny lands, it was not able to support a foundation of stone; wherefore the king [Ethelbald] ordered huge piles of oak and beech in countless numbers to be driven into the ground, and solid earth to be brought by water in boats a distance of nine miles, from a place called Upland, and to be thrown into the marsh. And thus whereas the holy Guthlac had been previously content with an oratory made of wood, he both began and finished a church, founded a convent, enriched the place with decorations and lands. (p. 8.)

(b) [c. A.D. 892]. In years of drought ... [the abbots] put their marshes into a state of cultivation ... and for three or four years had fruit a hundredfold for all the seed sown ... the monastery was enriched beyond measure in consequence; and so great was the abundance of corn, that it was able to relieve the whole adjacent country therewith; while, from the resort thither of countless multitudes of needy people, the vill became very greatly increased (p. 107).

(c) [c. A.D. 1013] this year the inundations had increased to an unusual degree in consequence of the frequent showers, and consequently rendered the neighbouring fens, as also the marshlands adjoining thereto, impassable. Accordingly all the population repaired thereto, and infinite multitudes flocked to the spot; the choir and the cloisters were filled with monks, the rest of the church with priests and clerks, and the whole abbey with laymen; while the cemetery was filled night and day with women and children under tents (p. 114).

(d) [A.D. 1085] ... in (account of) our settlement at Croyland, no villeins, bordars, or socmen^[18] are put down, as is the case in our other lands; for, except through fear of impending war, few or none would persevere in living with us. For, in the same way that on war breaking out, all of the

neighbouring country, rich as well as poor, men as well as women, resorted to Croyland from every side, as a place of refuge, so again on the serenity of peace being restored by the Lord, all, returning homewards, quitted our monastery; our own household of domestics, together with their wives and children, being the only persons left; to whom ... I have lately demised a great part of the marshes and meadows of the seat of our monastery, for a certain annual rent, and the performance of other services; letting to some the same to farm for a certain number of years, and conveying it to others in fee for the purposes of cultivation.

DOMESDAY RECORDS

(e) The illustrious king William ... on his return to England [1085 A.D.] commanded everyone of its people to do him homage at London, and to swear fealty to him against all men. He then proceeded to mark out the land so that there was not a hide of land in all England but what he knew the value and the owner thereof; nor was there a piece of water or any place but what the same was described in the king's roll; while the rents and profits of the property itself, and the possessor thereof were set forth for the royal notice by the trustworthy report of the valuers, who were chosen out of every district to describe their own neighbourhood.... This register was called the "Winchester roll," and in consequence of its containing in full all the tenements throughout the whole country, received from the English the name of "Domesday." (p. 159.)

King Alfred had formerly published a register of a similar nature and closely resembling it, in which he described the whole land of England by counties, hundreds and decuries^[19] ... this too was called the "Winchester roll" because it was deposited and kept at Winchester, that city being then the capital of his hereditary kingdom of Wessex.... In the later roll ... there were described, not only the counties, hundreds, decuries, woods, forests, and all the vills, but throughout the whole territory it was stated how many carucates^[20] of land there were, how many roods, how many acres, what pasture lands there were, what marshes, what tenements, and who were the tenants thereof.

KNIGHTHOOD, C. A.D. 1066

(f) It was the custom among the English that he who was about to be lawfully consecrated a knight, should, the evening before the day of his consecration, with contrition and compunction make confession of all his sins, before some bishop, abbot, monk or priest, and should after being absolved, pass the night in a church, giving himself up to prayer, devotion and mortification. On the following day he was to hear mass, and to make offering of a sword upon the altar, and after the Gospel, the priest was to bless the sword, and with his blessing to lay it upon the neck of the knight; on which after having communicated at the same mass in the sacred mysteries of Christ, he became a lawful knight. The Normans held in abomination this mode of consecrating a knight, and did not consider such a person to be a lawful knight, but a mere tardy trooper and a degenerate plebian. (p. 147.)

And not only in this custom but in many others as well did the Normans effect a change, for the Normans condemned the English method of executing deeds; which up to the time of King Edward had been confirmed by the subscription of the faithful present, with golden crosses and other sacred signs, and which chirographs^[21] they were in the habit of calling charters. The Normans were also in the habit of confirming deeds with wax impressions, made by the especial seal of each person, with the subscription thereto of three or four witnesses then present. At first many estates were transferred simply by word of mouth, without writing or charter, and only with the sword, helmet, horn, or cup of the owner; while many tenements were conveyed with a spur, a body scraper, a bow, and some with an arrow. This, however, was only the case at the beginning of this reign, for in after years the custom was changed (p. 142).

BURNING OF CROYLAND ABBEY

(Ingulf, p. 197)

A most dreadful misfortune befell ... through a most dreadful conflagration.... For, our plumber being engaged in the tower of the church, repairing the rood, he neglected to put out his fire in the evening; but ... covered it over with dead ashes that he might get more early to work in the morning, and then came down to his supper.

After supper was over all our servants had betaken themselves to bed, when after the deepest sleep had taken possession of them all, a most violent north wind arose, and so hastened on this greatest of misfortunes that could possibly befall us. For as it entered the tower in every direction through the open gratings, and blew upon the dead ashes, it caused the fire thus fanned into life, to communicate with the adjoining timbers.... The people in the vill for a long time perceived a great glare of light in the belfry, and supposing it was either the clerks of the church or else the plumber busily engaged at some work there; but at last on seeing the flames bursting forth, with loud outcries they knocked at the gate of the monastery. This was about the dead of night, when all of us, resting in our beds, were in our first and soundest sleep. At last I was aroused from slumbers by the loud shouts of the people, and hastening to the nearest window, I most distinctly perceived, as though it had been midday all the servants of the monastery running from every quarter, shouting and hallooing, towards the church. Still in my night clothes I awoke my companions and descended in all haste to the cloisters, which were lighted up on all sides just as though there had been a thousand lamps burning. On running to the door of the church and trying to effect an entrance, I was prevented from so doing by the melted brass of the bells which was pouring down, and the heated lead which in like manner was falling in drops. Upon this I retreated and looked in at the windows and on finding the flames everywhere prevailing, turned my steps towards the dormitory ... of the brethren....

On recognising my voice, full of alarm, they sprang up from their beds, and half naked, and clad only in their night-clothes, the instant they heard the fire in the cloisters, rushed forth through all the windows of the Dormitory, and fell to the ground with dreadful force; many were wounded and severely shaken by the severity of the fall, and shocking to relate, some had their limbs broken. The flames, however, in the meanwhile, growing stronger and stronger, and continually sending forth flakes from the church in the direction of the Refectory, first communicated with the Chapter house, then they caught the Dormitory, and after that the Refectory, and at the same instant the Ambulatory, which was near the Infirmary. After this they extended their ravages with a sudden outburst, to the whole of the Infirmary, with all the adjoining offices. All the brethren flying for refuge to the spot where I stood in the court, on seeing most of them half-naked, I attempted to regain my chamber, in order to distribute the clothes which I

had there, among such as I saw stand in the greatest need thereof; but so great was the heat that had taken possession of all the approaches to the Hall, and so vast were the torrents of molten lead that were pouring down in every direction, that it rendered it impossible for even the boldest of the young men to effect an entrance.... (p. 199).

At this moment, the tower of the Church falling on its south side I was so stunned by the crash, that I fell to the ground half dead and in a swoon. Being raised by my brethren and carried to our porter's room, I was scarcely able, until morning, to recover my right senses or my usual strength....

About the third hour of the day, the flames being now greatly subdued, we effected an entry into the church, and water being carried thither, extinguished the fire there, which had now pretty well burned out. In the choir, which was reduced to ashes, we found all the books of the holy office utterly destroyed, both Antiphonaries as well as Gradals. On entering the vestiary, however, we found all our sacred vestments and the relics of the Saints, as well as some other precious things deposited there untouched by the flames, the place being covered with a double roof of stone. Going upstairs into our muniment room, we found that, although it had been covered throughout with an arching of stone, the fire had still made its way through the wooden windows; and that, although the presses themselves appeared to be quite safe and sound, still all our muniments therein were burnt into one mass, and utterly destroyed by the intense heat of the fire, just as though they had been in a furnace red hot or an oven at a white heat. Our charters of extreme beauty, written in capital letters, adorned with golden crosses and paintings of the greatest beauty, and formed of materials of matchless value, which had been there deposited, were all destroyed. The privileges also, granted by the kings of the Mercians, documents of extreme antiquity, and of the greatest value, which were likewise most exquisitely adorned with pictures in gold, but written in Saxon characters, were all burnt. The whole of these muniments of ours, both great and small, nearly four hundred in number, were in one moment of a night, which proved to us of blackest hue, by a most shocking misfortune, lost and utterly destroyed (p. 200).

A few years before, however, I had of my own accord, taken from our muniment room several charters written in Saxon characters, and as we had

duplicates of them, and in some instances triplicates, I had put them in the hands of our chauntor, the lord Fulmar, to be kept in the cloisters, in order to instruct the juniors in a knowledge of the Saxon characters; as this kind of writing had for a long time, on account of the Normans, been utterly neglected, and was now understood by only a few of the more aged men.... These charters having been deposited in an ancient press, which was kept in the cloisters, and surrounded on every side by the wall of the church, were the only ones that were saved and preserved from the fire.... (p. 201).

The whole of our library also perished, which contained more than three hundred volumes of original works, besides smaller volumes more than four hundred in number. We also lost at the same time an astronomical table of extreme beauty and costliness, wonderfully formed of all kinds of metal, according to the various natures of the stars and constellations. Saturn was made of copper, Jupiter of gold, Mars of iron, the Sun of latten, Mercury of bronze, Venus of tin, and the Moon of silver.... Throughout all England there was not such another Nadir known or heard of. The king of France had formerly presented it ... to the library of the convent, both as an ornament and for the instruction of the younger brethren, and now it was consumed by the voracious flames and so annihilated.

The whole of our Chapter house was burnt. Our Dormitory ... our Infirmary ... our Refectory ... the kitchens also adjoining, and the hall and chamber of the lay brethren, with all the contents thereof, were consumed by the fire. Our cellar also, as well as the very casks filled with beer were destroyed. The abbot's hall, too, and his chamber together with the entire courtyard of the monastery....

A few cottages of the poor corodiers,^[22] the stalls of our beasts of burden, with the sheds for the other cattle, that stood at a considerable distance, and were covered with stone, were the only things that remained unconsumed. Besides the northern transept of the church, from which the wind drove onwards with most impetuous force towards the south, all the buildings of the monastery, and especially those covered with lead, whether formed of wood or of stone, our charters and jewels, books and utensils, bells and belfries, vestments and provisions, were in a moment of time lost and consumed, myself, to my most bitter sorrow, being then the head of the convent....

The news of our dreadful misfortune being speedily spread ... numbers of our neighbours ... had compassion.... Remigius, bishop of Lincoln, graciously granted an indulgence of forty days to all who should do us any service.... He also gave us forty marks in money.... Lincoln sent us one hundred marks. Richard de Rulos ... a most loving friend, gave us ten quarters of wheat, ten quarters of malt, ten quarters of peas, ten quarters of beans, and ten pounds in silver.

Haco of Multon also, at the same time gave us twelve quarters of wheat, and twenty fat bacon hogs.... Elsin of Pyncebek also gave one hundred shillings in silver, and ten bacon hogs. Ardnott of Spalding likewise gave us six quarters of corn, two carcasses of oxen, and twelve bacon hogs. Many others also presented us with various gifts.... Nor should among so many of our benefactors, the holy memory of Juliana, a poor old woman of Weston, be consigned to oblivion, who, “of her want” did give unto us “all her living,” namely, a great quantity of spun thread, for the purpose of sewing the vestments of the brethren of our monastery (p. 203.)

LIFE OF AN ABBOTT. ELEVENTH CENTURY

Now I, Ingulf, the humble servant of St. Guthlac and his monastery of Croyland, a native of England and the son of parents who were of the most beautiful city of London, being in my tender years destined for the pursuits of literature, was sent to study first at Westminster and afterwards at Oxford. After I had made progress beyond most of my fellows in mastering Aristotle, I clothed myself down to the heels with the first and second Rhetoric of Tully. On growing to be a young man, I loathed the narrow means of my parents and daily longed ... to leave my parental home, sighing for the palaces of kings or princes.... Just at this time, William, ... who was then as yet duke of Normandy only came over with a great retinue of followers to London.... Enrolling myself in the number of these, I exerted myself in the performance of all kinds of weighty business ... and becoming a very great favourite with him, returned with him to Normandy (p. 147).

Being there appointed his secretary, at my own will I ruled the whole of the duke’s court, incurring thereby the envy of some.... Just then it was noised about ... that many archbishops of the Empire, together with some

other of the princes of the land, were desirous ... to proceed on a pilgrimage to Jerusalem.

Upon this several of the household of the duke, both knights as well as clerks, among whom I was the first and foremost, with the ... goodwill of our master, the duke ... taking the road for Germany, being more than thirty horsemen in number ... joined his lordship of Mentz^[23].... In company with their lordships, the bishops, there were reckoned seven thousand persons, who prosperously traversed various regions, and at last arrived at Constantinople. Here, addressing our prayers to its emperor, Alexius^[24], we saw the Saint Sophia, and kissed its sanctuaries, so infinite in number.

Departing thence and taking our way through Lycia, we fell into the hands of Arabian robbers, and being plundered of an immense amount of money, and many of us being put to death, only escaped with the greatest difficulty and at the extreme peril of our lives, and at length joyously made our entrance into the much longed for city of Jerusalem.

We were received by Sophronius, the then Patriarch, a man venerable for his grey hairs, and most holy and most upright, with a great crash of cymbals and an immense blaze of torches at the most divine church of the most Holy Sepulchre, a solemn procession being formed of Latins as well as Syrians. What prayers we here uttered, what tears we shed, what sighs we heaved, the inhabitant thereof, our Lord Jesus Christ alone knoweth ... (p. 148).

But some robbers of Arabs, who kept a watch upon all the road, would not allow us ... to wander any distance from the city. Accordingly, on the arrival of spring, a fleet of Genoese ships arrived in the port of Joppa. On board of these we all embarked, after the Christian merchants had exchanged their wares throughout the maritime cities ... and so committed ourselves to the sea. After being tossed by waves and storms innumerable we arrived at last at Brundisium, and then making a prosperous journey through Apulia, repaired to Rome.... Then the archbishops and other princes of the Empire returned to Germany, taking the way to the right, while we turned to the left on our way to France, taking leave of each other, with kind words and kisses of inexpressible fervency on both sides. And thus at last, instead of our number of thirty horsemen, who took our departure from Normandy in excellent condition, hardly twenty returned, poor pilgrims and

all on foot, attenuated and famished in the extreme.... In order that I might not in future be involved in the vanities of this world ... I took refuge in the holy convent of Fontenelle.... At length, after not a few years ... the lord abbot, Gerbert ... appointed me prior of his monastery, bound as I was, by the ties of duty, to obey (p. 149).

At this time, my lord William ... was long waiting at the port of St. Valery for a favourable wind, it being his intention to cross over, in order to assert his rights. Thither I then repaired with the subsidy offered by my lord the abbot, and ... presented twelve chosen youths, on horses and supplied with arms, together with a hundred marks for their expenses, as his contribution, on behalf of my father the abbot. Being most abundantly thanked for so welcome a present, and having obtained (the duke's) charter of donation for ever to our house of ... vineyards, ... overjoyed and exulting, I returned to our monastery....

In the course of some years ... king William, sending a messenger ... to Gerbert ... to enquire for my humble self ... placed me, with mingled feelings, of extreme sorrow at assuming such a heavy burden of responsibility, and of extreme delight at seeing myself transferred to my native soil ... in the church of Croyland.... I was installed there in the year of our Lord, 1076 (p. 150).

I found in this monastery [of Croyland] of which, by the will of God I am a servant, sixty-two monks, of whom four were lay brethren, besides monks of other monasteries, who were making profession of the monastic life there, together with those of our chapter. All these when they came, had stalls in our choir, seats in our refectory, and beds in our dormitory. These, too, exceeded one hundred in number, and just when they pleased, some after the expiration of half a year, and some after a whole year, they returned to their own monasteries; and this, more especially in time of war ... so did they flock from every quarter to Croyland (p. 152).

EXPLORATIONS

The Voyage of Johannes de Plano Carpini into the North East parts of the World, in the year of our Lord, 1246.

(Hakluyt Soc., *Carpini and Rubruquis*, Beasley, p. 107)

Chapter II

About this time also, Pope Innocent the Fourth sent Friar Ascelline, being one of the order of the Praedicants, together with three other Friars ... with letters apostolical unto the Tartars camp: wherein he exhorted them to give over their bloody slaughter of mankind, and to receive the Christian faith.... And at that very time also, there was a certain other Friar Minorite, namely Friar John de Plano Carpini, sent with certain associates unto the Tartars, who likewise (as himself witnesses) abode and conversed with them a year and three months at the least.

Chapter IV

The Mongols or Tartars, in outward shape, are unlike to all other people. For they are broader between the eyes, and the balls of their cheeks, than men of other nations be. They have flat and small noses, little eyes, and eyelids standing straight upright, they are shaven on the crown like priests.... Their habitations be round and cunningly made with wickers and staves in manner of a tent. But in the midst of the tops thereof, they have a window open to convey the light in and the smoke out. For their fire is always in the midst. Their walls be covered with felt. Their doors are made of felt also. Some of these Tabernacles may quickly be taken asunder and set together again, and are carried upon beasts' backs. Other some cannot be taken in sunder, but are stowed upon carts.

... They are very rich in cattle, as in camels, oxen, sheep and goats. And I think they have more horses and mares than all the world besides. But they have no kine nor other beasts. Their Emperors, Dukes, and other of their nobles do abound with silk, gold, silver and precious stones. Their victuals are all things that may be eaten.... They drink milk in great quantity, but especially mare's milk if they have it: they seathe milk also in water, making it so thin that they may drink thereof. Everyone of them drinks off a cup full or two in a morning, and sometime they eat nought else all the day long. But in the evening each man hath a little flesh given him to eat, and they drink the broth thereof. Howbeit in summer time, when they have mare's milk enough, they seldom eat flesh, unless perhaps it be given them, or they take some beast or bird in hunting (p. 109).

Chapter IX

But the Mongols ... prepared themselves to battle against the Kythayans [men of Cathay or China].... This is the first time, when the Emperor of the Kythayans being vanquished, Chinghiz Cham [Khan] obtained the Empire. But some part of the country, because it lieth within the sea, they could by no means conquer unto this day. The men of Kythay are pagans, having a special kind of writing by themselves, and (as it is reported) the Scriptures of the Old and New Testament ... and they worship One God. They adore and reverence Christ Jesus Our Lord, and believe the article of eternal life, but are not baptized. They do also honourably esteem and reverence our Scriptures. They love Christians and bestow much alms, and are a very courteous and gentle people. They have no beards and they agree partly with the Mongols in the disposition of their countenance. In all occupations which men practise there are not better artificers in the whole world. Their country is exceeding rich in corn, wine, golde, silke, and other commodities (p. 115).

RUBRUQUIS' ACCOUNT OF A JOURNEY FROM CONSTANTINOPLE INTO THE CRIMEA: AND OF THE NOMAD TARTARS AND CHINESE

The Journal of Friar William de Rubruquis, A.D. 1253-5.
(Hakluyt Society. *Carpini and Rubruquis*. Beazley).

Chapter I

Then they put us to our choice whether we would have carts and oxen, or pack horses to transport our carriages [i.e., luggage]. And the merchants of Constantinople advised me not to take carts of the citizens of Soldaia [Sudak, a Crimean port] but to buy covered carts of mine own (such as the Russians carry their skins in) and to put all our carriages, which I would daily take out, into them: because if I should use horses, I must be constrained at every bait to take down my carriages, and to lift them up again upon sundry horses' backs and besides that, I should ride a more gentle pace by the oxen drawing the carts. Wherefore, contenting myself with their evil counsel, I was travelling into Sartach two months which I could have done in one, if I had gone by horse. I brought with me from Constantinople (being by the merchants advised so to do) pleasant fruits, muscadel wine, and delicate bisket bread to present unto the governours of

Soldaia, to the end I might obtain free passage: because they look favourably upon no man which commeth with an empty hand....

We took our journey therefore about the kalends of June, with four covered carts of our own and with two other which we borrowed of them, wherein we carried our bedding to rest upon in the night, and they allowed us five horses to ride upon. For there were just five persons in our company; namely, I myself, and my associate, friar Bartholomew of Cremona, and Goset the bearer of these presents, the man of God Turgemannus, and Nicholas my servant, whom I bought at Constantinople with some part of the alms bestowed upon me. Moreover they allowed us two men, which drave our carts and gave attendance unto our oxen and horses. There are forty castles between Korsova and Soldaia every one of which have their proper languages: amongst whom there were many Goths, who spake the Dutch tongue ... they repair thither out of all Russia for salt.... The third day after we were departed out of Soldaia, we found the Tartars. Among whom being entered, methought I was come into a new world.

Chapter II

They have in no place any settled city to abide in.... For in the winter they descend into the warm regions southward. And in the summer they ascend into the cold regions northward. In winter when snow lieth upon the ground, they feed their cattle upon pastures without water, because then they use snow instead of water. Their houses wherein they sleep they ground upon a round foundation of wickers artificially wrought and compacted together: the roof whereof consisteth in like [sort] of wickers, meeting above into one little roundell out of which roundell ascendeth upward a neck like unto a chimney, which they cover with white felt.... The said felt on the neck of their house they do garnish over with beautiful variety of pictures.... For they spend all their coloured felt in painting vines, trees, birds and beasts thereupon. The said houses they make so large that they contain thirty foot in breadth. For measuring once the wheel ruts of one of their carts, I found it to be 20 feet over; and when the house was upon the cart, it stretched over the wheels on each side five feet at the least. I told 22 oxen in one team, drawing a house upon a cart, eleven in one order according to the breadth of the cart, and eleven more before them: the axletree of the cart was of a huge bigness like unto the mast of a ship. And a fellow stood in the door of the house, upon the forestall of the cart, driving

forth the oxen.... When they take down their dwelling houses they turn always the door towards the south. One woman will guide 20 or 30 carts at once, for their countries are very plain and they bind the carts with camels or oxen one behind another. And there sits a wench in the foremost cart driving the oxen, and all the rest follow on a like pace. When they chance to come at any bad passage they let them loose, and guide them over one by one: for they go a slow pace, as fast as a lamb or an ox can walk....

Chapter XXIII

Some days we had change of horses twice or thrice in a day. Sometimes we travelled two or three days together, not finding any people, and then we were constrained not to ride so fast. Of twenty or thirty horses we had always the worst, because we were strangers. For everyone took their choice of the best horses before us. They provided me always of a strong horse, because I was very corpulent and heavy: but whether he ambled a gentle pace or no, I durst not make any question. Neither yet durst I complain, although he trotted full sore. But everyone must be contented with his lot as it fell.

Chapter XXIV

Of hunger and thirst, cold and weariness there was no end. For they gave us no victuals but only in the evening. In the morning they used to give us a little drink, or some sodden millet to sup off. In the evening they bestowed flesh upon us ... and every man had a measured quantity of broth to drink.... In the beginning our guide highly disdained us, and it was tedious unto him to conduct such base fellows. Afterward, when he began to know us somewhat better he directed us on our way by the courts of rich Moals [? Moghuls], and we were requested to pray for them. Wherefore had I carried a good interpreter with me, I should have had opportunity to have done much good.... And they marvelled exceedingly that we would receive neither gold, nor silver, nor precious and costly garments at their hand....

Chapter XXVII

They begin to write at the top of their paper drawing their lines right down: and so they read and multiply their lines from the left hand to the right.... They burn their dead, according to the ancient custom, and lay up the ashes on the top of a Pyramid....

Chapter XXVIII (p. 234)

Beyond Muc is Great Cathaya, the inhabitants whereof (as I suppose) were of old time called Seres. For from them are brought most excellent stuffs of silk. And this people is called Seres of a certain town in the same country. I was credibly informed that, in the said country, there is one town having walls of silver, and bulwarks or towers of gold. There be many provinces in that land, the greater part whereof are not as yet subdued unto the Tartars.

MARCO POLO

(The Book of Ser Marco Polo, the Venetian, Col. H. Yule. Edn. 1875)

Rusticiano's address (p. 1)

Great Princes, Emperors, and Kings, Dukes and Marquises, Counts, Knights and Burgesses and people of all degrees who desire to get knowledge of the various races of mankind, and of the diversities of the sundry regions of the World, take this book and cause it to be read to you....

For let me tell you that since our Lord God did mould with his hands our first father, Adam, even until this day, never hath there been Christian or Pagan, or Tartar or Indian or any man of any nation, who in his own person hath had so much knowledge and experience of the divers parts of the World and its Wonders as hath this Messer Marco....

and I may tell you that in acquiring this knowledge he spent in those various parts of the world good six and twenty years. Now being thereafter an inmate of the Prison at Genoa, he caused Messer Rusticiano of Pisa, who was in the said Prison likewise to reduce the whole to writing; and this befell in the year 1298 from the birth of Jesus.

His Summary

It came to pass in the year of Christ 1260 ... that Messer Nicolas Polo, the father of my lord Mark, and Messer Maffeo Polo, the brother of Messer Nicolas, were at the city of Constantinople, whither they had gone from Venice with their merchant's wares. Now these two ... took counsel together to cross the Greater Sea (Black Sea) on a venture of trade; so they laid in a store of jewels and set forth from Constantinople, crossing the sea to

Soldaia ... and travelled till they came to the court of a certain Tartar Prince ... whose residences were at Sara and at Bolgara [Sarai and Bolghar] and by reason of ... war no one could travel ... on the road by which the Brothers had come ... so the Brothers, finding that they could not retrace their steps, determined to go forward ... and passing the River Tigris they travelled across a desert which extended for 17 days journey and wherein they found neither town nor village, falling in only with the tents of Tartars occupied with their cattle at pasture (p. 9).... They arrived at a very great and noble city called Bocara [Bokhara]. The city is the best in all Persia ... there came Envoys on their way to the court of the Great Khan.... “In truth,” said the Envoys, “the Great Khan hath never seen any Latins, and he hath a great desire so to do. Wherefore if ye will keep us company to his court, ye may depend upon it that he will be right glad to see you and will treat you with great honour and liberality; whilst in our company ye shall travel with perfect security, and need fear to be molested by nobody!” So they set out and journeyed for a whole year, going northward and north-eastward.... When the two brothers got to the Great Khan at Karakoram, he received them with great honour ... asking them a great number of questions. [They return with a message from him to the Pope, and young Marco, aged 15, accompanies them back to China, learns 4 eastern languages, and is employed on embassies by the great Kublai Khan for 17 years. They are then sent by sea via Java and Trebizond to the Levant].

Account of Kublai Khan

He is of a good stature, neither tall nor short, but of a middle height. He has a becoming amount of flesh, and is very shapely in all his limbs. His complexion is white and red, the eyes black and fine, the nose well formed and well set on (p. 318).

I shall tell you of the great and wonderful magnificence of the Great Khan now reigning, by name Kublay Khan; Khan being a title which signifieth “The Great Lord of Lords” or Emperor. Now this Kublai Khan is of the right Imperial lineage, being descended from Chinghiz Khan, the first sovereign of all the Tartars ... (p. 324). He came to the throne in the year of Christ 1256 ... up to the year of Christ now running, to wit 1298, he hath reigned two and forty years, and his age is about 85.... The Great Khan resides in the capital city of Cathay, which is called Cambaluc. (Khan baligh, Khan’s city). In that city stands his great Palace ... it is enclosed all

round by a great wall forming a square, each side of which is a mile in length.

This you may depend on, it is also very thick, and a good ten paces in height, whitewashed and loopholed all round. At each angle of the wall there is a very fine and rich palace in which the war-harness of the Emperor is kept, such as bows and quivers, saddles and bridles, and bowstrings and everything needful for an army. The great wall has five gates on its southern face ... inside of this wall there is a second. You must know that is the greatest Palace that ever was ... hath no upper storey, but is all on the ground floor ... the roof is very lofty, and the walls of the Palace are all with gold and silver. They are also adorned with representations of dragons, beasts and birds, knights and idols, and sundry other subjects. And on the ceiling too you can see nothing but gold and silver and paintings. The Hall of the Palace is so large that it could easily dine 6,000 people; and it is quite a marvel to see how many rooms there are besides.... The outside of the roof also is all coloured with vermilion and yellow and green and blue and other hues, which are fixed with a varnish so fine and exquisite that they shine like crystal ... seen for a great way round (pp. 324, 325).

CHAPTER IV

THIRTEENTH CENTURY LONDON

INTRODUCTORY NOTES

Mint and Coinage

COMPARE list of Saxon mints under Athelstane with this account of the King's mint, in the eighteenth century. The history of coinage is illustrated by notes of clipping; repeated re-coinage; advice of merchants on coinage over-ridden, case of persecution, of laws for clipping, etc.

Compare also with fifteenth century extracts.

Aliens and King's Income

Great importance of aliens in trade and industry is constantly appearing in London records. The king collects his customs by farming them out to the Lombards; he makes an income by weighing, granting charters, taking prisage, fines, etc.

(1269) The "hosting" of aliens, i.e. the rule that every alien must lodge with an English host who will be answerable for him, is practised. The special position of the Jews is well illustrated, nominally under protection of king and Mayor they are yet attacked by King and Pope as well as people.

City Government

Strife is continual between the citizens and the royal officers for control of the city. Its freedom dated from Henry I's charter of 1100 (cf. Stubbs, *Select Charters*). In 1249 the citizens claim to be peers of "the earls and barons of England." The survival of the Saxon practice of witness on oath is evidenced in 1267 by the witness of "12 sworn men of the City" not swearing to fact but to ancient usage.

The titles and duties of the king's officers are illustrated; the Treasurer, Constable, Warden, claiming dues for the King, Sheriffs of London and

Middlesex, Barons of Exchequer and other wardens all holding by royal appointment. The persistence of the folkmote is evidenced in 1260, when the oath of loyalty is taken, as in the time of Richard I's crusade. In 1267 a tax on movables is levied, first done in 1207. The intervention of the citizens between Barons and King in 1262 foreshadows their intervention in de Montfort's Parliament of 1265 and that of Edward I, 1295, indicates the influence of the new class of burghers made wealthy by the wool trade. The various activities of the City officers show the gradual organisation of ordered life in a commune of this date; further illustrated by the Mayor's reliance on craft-gilds in 1262 against the "aldermen or chief citizens," the officers of the Merchant Gild.

In connection with the Black Death it is noteworthy how frequent famines were in the earlier part of the fourteenth century and how food sales were regulated; the rules of the Court Leet in the sixteenth century would, no doubt, be in practice at this earlier period in some parts of England.

Battle of Sluys

A good instance of fourteenth century naval warfare, the French make no use of mobility but make conditions as near as possible to land fighting; the English, however, use advantage of wind and are already carrying heavier artillery than their opponents, an English naval characteristic later.

Fourteenth Century Prices

Lancaster was cousin to Edward II, and his rival for power; in 1314 he practically controlled the kingdom, but provoked the envy of Pembroke and was captured at Boroughbridge in 1322 and executed. This period of great royal princes rivalling the king, culminates in the usurpation of Henry IV and the Wars of the Roses. The extract gives a vivid picture of the various ranks in the household of such a lord. It may be used to compare values and prices in this century with those of the thirteenth century (see *London Records*) and with fifteenth century wages.

THE MINT

(Stow, *Survey of London*, Book I, p. 96)

The Mint is the Office and Place where the King's Coin is made, be it Gold or Silver Which is at present, and for a long Time hath been kept, in the Tower of London.

OFFICERS [IN 1722]

(1) The Warden, who is the Chief: and by his Office is to receive the Silver from the Goldsmiths, and to pay them for it....

(2) The Master Worker, who receiveth the Silver from the Warden, causeth it to be melted; and delivers it to the Moniers, and takes it from them again when it is made.

(4) The Master of the Assay, who weigheth the Silver, and seeth whether it be according to the Standard.

(6) The Surveyor of the Melting; who is to see the Silver cast out.

(7) The Clerk of the Irons; who seeth that the Irons be clean and fit to work with.

(8) The Engraver, which graveth the Stamps for the Money.

(9) The Smiter of Irons, who after they are graven, smiteth them upon the Money.

(10) The Melters, that melt the Bullion before it comes to the Coining.

(11) The Blanchers who do anneal, boil and cleanse the Money.

(14) The Moniers, who are some to sheer the Money, some to forge it; some to beat it broad, some to round it and some to stamp or coin it.

COINAGE

A.D. 1247

(Chronicles of Old London, Edited by H. T. Riley)

In the same year, Michael Tovy was again made Mayor, and by precept of his lordship the King it was published that if any clipped penny or halfpenny should be found offered for the purchase of anything, the same should immediately be perforated. At this time, the money was entirely

made anew, that is to say, immediately after the Feast of All Saints [November 1.]

A.D. 1257

In this year, the King issued a new coinage, of golden pennies, each of two sterlings [i.e., silver pennies] in weight, and of the purest gold; and it was his will that such gold coin should pass current in value for twenty sterlings.

This year, on the Sunday next after the Feast of All Saints the Mayor and citizens appearing before his lordship the King at the Exchequer in obedience to his precept, he put them to the question, conjuring them by the fealty in which they were bound to him, that they would certify him, according to their consciences, whether the aforesaid coinage would be beneficial and for the common weal of his kingdom, or not. Accordingly, holding counsel and conference thereon among themselves, they appeared before the King and said, that through that coinage the greatest detriment might accrue to his realm, and more especially to the poor of his realm, the chattels of very many of whom are not worth in value a single gold coin. And further they said that through that coinage gold would be held of much lower value, when that money should come to be dispersed in so many hands; a thing that was already evident, seeing that sheet gold, which always used to be worth ten marks, was then worth nine marks only, or even eight (p. oz.). Whereupon after they had set forth many reasons why that coinage would prove otherwise than beneficial, his lordship, the King replied: "It is my will that this coinage shall pass current, the penny for twenty sterlings, but that no one shall be compelled to take it; and whosoever shall take it, shall be at liberty to exchange it wherever he may please, without hindrance therein; and if he shall think proper, he may come to our Exchange, and shall have for every such golden penny nineteen pence and one halfpenny."

A.D. 1278

In this year the exchange was made at the Tower of London, of the new money, sterling, halfpenny and farthing, and Gregory de Rokesle, Master of the Exchange throughout all England.

A.D. 1300

... On the day of St. Stephen (Dec. 28), at the beginning of the eight and twentieth year [of Edward I], the crocards and pollards were proclaimed. (i.e., the crooked or polled, i.e. clipped coins of inferior value. They generally passed for one penny, but by proclamation their value was fixed at one halfpenny.) They were cried down throughout England and continued current only until the Vigil of Easter Day next ensuing: upon which Vigil it was forbidden that they should pass current. This money came from Flanders and was current in England throughout the land for six years, to the great damage of all the realm.

ALIENS

A.D. 1268

... His lordship the King ... had granted unto Sir Edward his son, to take custom of all things coming by sea into England and from England going forth, and such custom had been leased unto certain Italians upon yearly payment to Sir Edward of a farm of six thousand marks; the said Italians exacted the same custom of the citizens of London, and took sureties of them, in contravention of their franchises.

Wherefore the citizens went to Sir Edward, and begged of him that he would not allow such a yoke of servitude to be imposed upon them, in contravention of the franchises by the Charters of his lordship the King, his father, and of his predecessors, Kings of England, unto them granted: whereupon Sir Edward, at their entreaty, granted unto them acquittance of the custom aforesaid, giving them his letters patent thereon. The citizens, however, made court to him, giving him 200 marks.

A.D. 1269

... according to the custom of the City, all merchant strangers coming into London, were wont to be harboured, together with their merchandize, in hostels belonging to the citizens; and their wares, which are sold by the hundredweight, such as wax, alum and the like, to be weighed by the balance of his lordship the King. Other wares again, which are valued by the pound, such as pepper, ginger, brasil (i.e., a kind of wood for making red dye), grains, and the like, used to be weighed by various balances at the hosts' places, or else by the basket of them, the buyer having upon every

hundredweight four pounds for the draught; the commodity being weighed with the pin standing midway, the same as gold and silver are weighed. Afterwards the Italians, the people of Quercy, and the merchants of Provence (who at first however were but few in number), coming to the City with their merchandize, transacted business in a similar manner; but in process of time, when a great number of merchants from the parts aforesaid, who were extremely rich, had brought into the City a very great quantity of merchandize, in order that the amount of such wares might remain unknown to the citizens, they declined to be harboured in the hostels of the citizens, but built houses in the City, and abode therein by themselves, housing there their goods. And then too, weighing by balances of their own, they sold their wares contrary to the custom of the City; and even went so far as themselves to weigh by their own balances certain articles which were sold by the hundredweight, and which ought to be weighed by the King's balance; to the prejudice of his lordship the King, and to the loss and subtraction of his pesage [duty for weighing]; and this they did for many years.

Afterwards, when his lordship the King gave unto the citizens a new Charter as to their liberties, in which it is set forth that no merchant stranger shall buy or sell any wares that ought to be weighed or troned, except by the beam and tron of his lordship the King, under forfeiture of the whole of such wares—and this, too, had been proclaimed throughout all the City—these merchants, nevertheless, continued to weigh as they had previously done. But when the King and his Council were given to understand this, his bailiffs, in accordance with his command, took all the balances and weights of the said merchants, and upon good sureties, attached the persons themselves. Afterwards, in this year, ... the King summoned the said merchants to appear before himself and his Council at Westminster; and because they were convicted ... and because their balances and weights, when examined in the King's Exchange, were found, it is said, to be untrue, they were adjudged to be amerced and committed to prison; immediately upon which, being about twenty in number, they were taken to the Tower and there imprisoned.

On the morrow, too, their balances and weights were burnt in Westchepe; and such parts thereof as could not be consumed by fire, were broken to pieces with iron hammers, and wholly destroyed....

Then the said merchants made fine to the King in the sum of one thousand pounds sterling; and this under compulsion, as it were, they being in dread of being thrust into a most noisome prison.

A.D. 1270

... in this year, about Easter last past, it was provided by the common Council of his lordship the King, that cloths coming into England from the parts beyond sea should contain at least 26 ells in length, and an ell and a half in breadth, under forfeiture of the whole piece of cloth. And at the same time, orders were given to the merchants that, after the Fair of St. Botolph then next coming, they should not bring any cloths into England, under the penalty aforesaid, unless they should be of the said length and breadth, burels [coarse cloths] of Normandy excepted.

RIGHTS OF THE CITIZENS OF LONDON

A.D. 1246

In this year, the citizens of London took Queen Hithe, they paying a yearly rent of fifty pounds to Earl Richard, and sixty shillings to the Sick of St. Giles's without London.

In this year, the Prior and Canons of St. Bartholomew's, ... set up a new tron, on the vigil of St. Bartholomew, refusing to allow anyone to weigh except with that tron; and this, in contravention of the liberties and customs of the City. Wherefore the principal men of the City, together with their Mayor, Peter Fitz-Alan and a multitude of the citizens, on the morrow went to the Priory of St. Bartholomew, and advised the Prior and Canons of that place to make amends for that act of presumption, and to desist therefrom; whereupon they forthwith gave up the practice, and by the Mayor and Sheriffs of London it was published that every man was to sell, buy and weigh in that market, just as they previously had been wont to do.

JURISDICTION DISPUTED

1247

In the same year ... a Justiciar sent by his lordship the King, came to St. Martin's le Grand, to hear the record which had been given upon the plaint

of Margery Vyel, ... in the previous year ...; as to which judgment the said Margery had made complaint to his lordship the King, and had found pledges to prove that the same was false.

Whereupon, the Mayor and citizens meeting there, the record having been read through, and all the writs of his lordship the King which the said Margery had obtained, having been read and heard, the Justiciar said: "I do not say that this judgment is false, but the process therein is faulty, as there is no mention made in this record of summons of the opponents of the said Margery, and, seeing that John Vyel, her husband, made a will, it did not pertain to your Court to determine such a plea as this." To which the citizens made answer: "There was no necessity to summon those who had possession of the property of the deceased, for they were always ready, and proffered to stand trial at suit of the said Margery in our Court; and besides, we were fully able to entertain such plea by assent of the two parties, who did not at all claim or demand the Ecclesiastical Court, and seeing that his lordship the King by his writ commanded us to determine the same."

At length, after much altercation ... the Justiciar said that they must shew all this to the King and his Council, and so they withdrew. Afterwards, however, and solely for this cause, his lordship the King took the City into his hand, and by his writ entrusted it to the custody of William de Haverille and Edward de Westminster, namely, on the Vigil of St. Bartholomew (24 August); whereupon, the Mayor and citizens went to the King at Wudestok, and shewed him that they had done no wrong; but they could not regain his favour....

Afterwards, on the Sunday before the Nativity of St. Mary (8 September), the Mayor and Sheriffs, by leave of the King, received the City into their hands, and a day was given them to make answer as to the aforesaid judgment before the King and his Barons.

A.D. 1248

In this year, the citizens of London, at the request of his lordship the King, not compelled, yet as though compelled, took their wares to the Fair of Westminster, on Saint Edward's Day, and also the citizens of many cities of England, by precept of his lordship the King, repaired thither with their wares; all of whom made a stay at that fair of full fifteen days, all the shops

and selds [large sheds] of the merchants of London being closed in the meantime.

And on the morrow of St. Edward, the Mayor and citizens appeared at Westminster, to make answer as to the judgment before mentioned ... his lordship the King requested them to permit the Abbot of Westminster to enjoy the franchises which the King had granted him in Middlesex, in exchange for other liberties which the citizens might of right demand. To which the citizens made answer, that they could do nothing as to such matter without the consent of the whole community. The King, however, on learning this, as though moved to anger, made them appear before him, and after much altercation had passed as to the said judgment ... counsel being at last held before his lordship the King between the Bishops and Barons, the Mayor and citizens were acquitted and took their departure.

A.D. 1249

In the same year, ... the citizens recovered before the King, two kinds of franchise, of which for many years they had been deprived, for the King granted that the Jews, who before had been held to warranty by writ of the Exchequer, should plead in future before the citizens as to their tenements in London. He also granted that the Chirographers of the Chest of the Jews [keepers of the bonds] should be tallaged like other citizens.

In this year, on Sunday in Midlent, nearly all the men, as well as women, of London having met together, in accordance with the precept of his lordship the King in the Great Hall at Westminster, his lordship the King assumed the Cross with the view of setting out in aid of the Holy Land. It is also to be noted, that after his lordship the King had repeatedly requested the citizens to grant to the Abbot of Westminster the franchises which we have already mentioned in this record, in this year, on the Wednesday, namely, in the week of Pentecost, there was a day of love appointed at the demand of his lordship the King, between the citizens and the Abbot; upon which day, the Mayor, and a countless multitude of the citizens with him, came to the New Temple, where the Abbot was, there being also present, William de Haverhill, the Treasurer, Henry de Ba, Roger de Turkelby, John de Gatesdene, Justiciars, and others who had been sent thither by the King. Upon these desiring to hold a conference with the Mayor and Aldermen, the whole of the populace opposed it, and would not allow them, without the

whole of the commons being present, to treat at all of the matter; all of them exclaiming with one voice that in no point would they recede from their wonted franchises, which, by Charters of his lordship the King and his predecessors, they possessed.

Upon this, a day was given them by the Justiciars to appear before his lordship the King at Wyndlesore, the Tuesday following, namely; and solely for this reason the King took the City into his hands, and delivered it to William the Treasurer, and to Peter Blund, the Constable of the Tower, all the clerks and serjeants of the Sheriffwick paying obedience to them. On the day appointed, the Mayor and citizens appeared at Wyndlesore; when the King, wishing to harass them, compelled them, through his Justiciars, to shew cause why they had gainsaid the Charter which he had granted to the Abbot of Westminster.

The citizens however made answer, that they had had no day named for pleading there against the Abbot of Westminster, and that out of the City of London they were not bound to plead; and that if they had been bound to plead thereon, they ought not to receive any judgment as to the same in the absence of their peers, the Earls, namely Barons of England....

After this, consultations being held between the King and his Council, the City was restored to the citizens, and day was given them until the Translation of St. Edward (13 October).

A.D. 1250

... it was enacted by the citizens, that the Wardens of the Bridge, from that day forward, should have, take or claim nothing from the ships or property of citizens passing through the middle of the Bridge [drawbridge]; whereas before they had been wont to take twelve pence for every ship belonging to a citizen, the same as foreigners.

A.D. 1253

In this year, it was enacted by the community, that no one of the franchise of the City should in future pay scavage [due paid for right to display] for his beasts sold on the field of Smethefield, as before they had been wont. In this year, about the season of Lent, the Sheriffs of Middlesex, by precept of his lordship the King, caused all wears to be destroyed that stood in the

Thames towards the west; and at this time many nets which were injurious, were burnt in Westchep. Afterwards and before Pentecost, the Sheriffs of London, seeing that the water of Thames pertains to London, by precept of his lordship the King destroyed all the other wears from London to the sea.

A.D. 1254

In this year Ralph Hardel was elected Mayor of London.... And immediately after this, the Barons (of the Exchequer) shewed a writ of his lordship the King, by which precept was given unto them that they should take the City into the King's hands, for non-observance in the City of the assize of bread and ale. And although the citizens ought not to be molested for such a default as this, but only the Sheriffs, if convicted thereof; still the City was taken into the King's hands, and delivered into the custody of John de Gyseorz, the said John being sworn before the Barons; after which the clerks and all the serjeants of the Sheriffs, as also the Wardens of the Gates, the Thames and the Gaol, were there sworn. And all this had been discussed in the Parliament aforesaid, because the citizens, being divided among themselves, would not appear there before Earl Richard, as they had promised him, to put an end to a matter on which they had frequently entreated him before, namely, the Exchange.

Afterwards the citizens waited upon the Earl to entreat his favour; whereupon he named to them a day at London, saying that he would do nothing therein without counsel of the King, to whom a moiety of the issues of the Exchange belonged. After this, on the third day after the Feast of St. Edmund the Archbishop, the citizens of Westminster made fine to the said Earl before the Council of his lordship the King, in a sum of 600 marks; whereupon all claims were remitted on account of the Exchange, and the Mayor and Sheriffs were restored to their bailiwicks.

(King Henry attempts to make the City answerable for a felon escaped from Newgate).

To this the citizens made answer, that the custody of the Gaol does not belong to them, but to the Sheriffs only. Whereupon answer was made to them by the King, that as they make the Sheriffs, they themselves ought to be answerable for them. To this the citizens said, that they do not make the Sheriffs, but only have to choose them, and present them to the Barons of his lordship the King; and that such Sheriffs can do nothing in respect of

their office, before they have been admitted at the Exchequer; that in no point ought they to be answerable for the Sheriffs, save only as to the ferm due from the Sheriffwick, and only then, when the Sheriffs themselves are not of sufficient means to pay the ferm.

EFFECTS OF BARONS' WAR UPON THE CITY

A.D. 1260

The same year ... the King came to London, and afterwards, on the Sunday before the Feast of St. Valentine, had the Folkmote summoned at St. Paul's Cross; whither he himself came.... The King also commanded that all persons of the age of twelve years and upwards should make oath before their Alderman, in every Ward, that they would be faithful unto him, so long as he should live, and after his death, to his heir; which was accordingly done. Then all the Gates of the City were shut, night and day, by the King's command, the Bridge Gate and the Gates of Ludgate and Aldgate excepted, which were open by day and well fortified with armed men.

A.D. 1262

In this year before Pentecost, the Barons who had given their assent to the observance of the Ordinances and Statutes made at Oxford, sent a certain letter to his lordship the King ... after this they sent a letter to the citizens of London ... whether they would observe the said Ordinances.... Upon receiving the message the citizens shewed the same to his lordship the King ... and they further said that all the community was willing to observe those Statutes which were to the honour of God, in fealty to the King, and to the advantage of the realm ... and further that it was their wish that no knights, serjeants, aliens by birth, should be allowed to sojourn in the City; for that it was through them that all the dissensions had arisen between the King and his Barons. After this, by the King's command, certain of the citizens were sent to Dover with the King's Council, to treat for peace with the Barons....

At this season, and indeed before, all aliens, both knights and serjeants, were dismissed from the City; who were afterwards placed by Sir Edward in garrison at Wyndlesore. And at this time also the citizens kept watch and ward, riding by night throughout the City with horse and arms; though

among them a countless multitude of persons on foot obtruded themselves; some evil-minded among whom, under pretext of searching for aliens, broke open many houses belonging to other persons, and carried off such goods as were there to be found. To restrain the evil designs of these persons, the watches on horseback were therefore put an end to, and watch was kept by the respective Wards, each person keeping himself well armed within his own Ward.

Afterwards, on the Sunday before the Feast of St. Margaret (July 20) the Barons came to London, and on the morrow the King and Queen withdrew from the Tower to Westminster. At this time with the assent of his lordship the King, Hugh le Despencer was made by the Barons Justiciar of all England, and the Tower of London delivered into his charge.

A.D. 1262

Be it here remarked, that this Mayor (Thomas Fitzthomas) during the time of his mayoralty had so pampered the City populace, that, stiling themselves the “Commons of the City,” they had obtained the first voice in the City. For the Mayor, in doing all that he had to do, acted and determined through them, and would say to them, “Is it your will that so it shall be?” and then, if they answered “Ya, ya,” so it was done. And on the other hand, the Aldermen or chief citizens were little or not at all consulted on such matter; but were in fact just as though they had not existed. Through this, that same populace became so elated and so inflated with pride, that during the commotions in the realm ... they formed themselves into covins, and leagued themselves together by oath, by the hundred and by the thousand, under a sort of colour of keeping the peace, whereas they themselves were manifestly disturbers of the peace. For whereas the Barons were only fighting against those who wished to break the aforesaid Statutes, and seized the property of such, and that too by day, the others by night broke into the houses of the people of Quercy and of other persons in the City, who were not against the said Statutes, and by main force carried off the property found in such houses, besides doing many other unlawful acts as well. As to the Mayor, he censured these persons in but a lukewarm way.

Afterwards these same persons, like so many Justiciars Itinerant, wished to remove all purprestures [encroachments], new and old, observing no order of trial; and endeavoured to throw open lanes, which, by writ of his

lordship the King and with the sanction of the Justiciars Itinerant, the community assenting thereto, had been stopped up and rented to certain persons; so much so, in fact, that some of them they opened, without judgment given, and in like manner did they remove certain purprestures, and some of them after dinner; and this they did, not only for the purpose of removing them, but for the opportunity of carrying off the timber and other things there to be found.

The Mayor too, had all the populace of the City summoned, telling them that the men of each craft must make such provisions as should be to their own advantage, and he himself would have the same proclaimed throughout the City and strictly observed.

Accordingly after this, from day to day, individuals of every craft of themselves made new statutes and provisions, or rather what might be stiled “abominations,” and that, solely for their own advantage, and to the intolerable loss of all merchants coming to London and visiting the fairs of England, and the exceeding injury of all persons in the realm.

AWARD OF THE KING OF FRANCE MADE BETWEEN THE KING AND THE BARONS

The Londoners, however, and the Barons of the Cinque Ports, and nearly all the middle class of people throughout the kingdom of England, who indeed had not joined in the reference to the king of France, wholly declined his award.

Wherefore, the Londoners appointed one of their number, Thomas de Piwelesdone by name, to be their Constable, and as Marshal, Stephen Buckerel, at whose summons, upon hearing the great bell of St. Paul’s, all the people were to sally forth, and not otherwise; being prepared as well by night as by day, well armed, to follow the standards of the said Constable and Marshal wheresoever they might think proper to lead them. After this, Hugh le Despencer, the Justiciar, who then had charge of the Tower, with a countless multitude of Londoners, went forth from the City, following the standards of the aforesaid Constable and Marshal, none of them knowing whither they were going, or what they were to do. Being led however as far

as Ystleworthe, they there laid waste and ravaged with fire the manor of the King of Almaine, ^[25] and plundered all the property there found, and broke down and burned his mills and fish preserves, observing no truce, at the very time that the said Parliament [of Oxford, 1262] was in existence. And this was the beginning of woes, and the source of that deadly war, through which so many manors were committed to the flames, so many men, rich and poor, were plundered, and so many thousands of persons lost their lives.

At this time, the Barons and Londoners entered into a league written by instrument and by oath, all in fact of 12 years and upwards; to the effect that they would stand together against all men, saving however their fealty to their lord the King.

A.D. 1265

Be it remarked, that at the time when the City submitted itself unto the mercy of his lordship the King, many persons in the City who had spontaneously sided with the Earl of Leicester, took to flight; having committed depredations and many mischiefs within the City and without, and, in the time of the aforesaid Mayor, styling themselves the “Commons of the City,” having had the first voice there, the principal men being little consulted in reference thereto.

Be it remarked, that many of the common people, on the day that the aforesaid election took place, gainsayed the same, crying “Nay, nay”, and saying, “We will have no one for Mayor, save only Thomas Fitzthomas, and we desire that he be released from prison, as well as his companions, who are at Wyndleshores.” Such base exclamations did the fools of the vulgar classes give utterance to, on the previous Monday, in the same Guildhall.

Wherefore his lordship the King, on hearing rumours to this effect, fearing an insurrection of the populace against the principal men of the City, who maintained their fealty towards him, sent to London Sir Roger de Leiburne; who on the Saturday next ensuing, came into the Guildhall with a great retinue of knights and serjeants, with arms beneath their clothes; whither a countless multitude of the City had already resorted, and that without summons. And the same Sir Roger gave orders, on behalf of his lordship the King, that all who were suspected should be seized and put in arrest, lest they might enter into some confederacy with the enemies of his lordship the King. Wherefore on the same day there were taken more than twenty persons, no one of the populace making any opposition thereto.

The same year, on the second of the Ides of July (12 August) at night the wife of Sir Edward was delivered of her firstborn son, at Wyndleshores, on hearing news of which, the citizens of London caused proclamation to be made in the City, that on the morrow the whole community should celebrate the same by doing no handicraft, for joyousness at the birth of the said child. Accordingly on that day all selds and shops being closed, all the men and women, clergy as well as lay, went on foot and horseback to Westminster, to give thanks unto God for the birth of the child, and to offer prayers for its safety. Also throughout the streets of the City there was dancing and singing of carols for joy, as is the usual yearly custom upon the Feast of St. John the Baptist (24 June). The name that was given to the child was John.

FOOD SUPPLIES AND REGULATIONS

ASSISE OF WINE: DISPUTED. A.D. 1256.

In the same year, Henry de Ba (Bath) Justiciar, came to the Guildhall of London, bringing to the Mayor and Sheriffs a writ from his lordship the King; who thereupon summoned before him all the vintners of the City. The Justiciar wishing to amerce all these for breach of the assise of wine, the citizens made answer, that the vintners who had broken the assise ought, and are wont, solely to be amerced at the Common Pleas of the Crown, and

not before a Justiciar at the Tower. To whom the Justiciar made answer ... that this will not satisfy his lordship the King, for that it does not seem just or right that they may break the assise for seven years or more with impunity, and only once be amerced for so many offences.

To which reply was made, that his lordship the King is both wont to and may whenever he pleases, upon election by the citizens, appoint two wardens to keep that assise, in manner as heretofore; ... that the same wardens, too, when any one is convicted of breach of the assise, ought to sell the wine found in the tun, in reference to which the breach has been committed, and to produce the money at the Pleas of the Crown holden before the Justiciars, the transgressor nevertheless being there also amerced.

METHODS OF WEIGHING

A.D. 1256

It has usually been the custom, when wares which have to be sold by balance, are weighed, for the draught of the balance to incline on the wares side, the case of gold and silver excepted which are always weighed with the pin standing midway, and inclining neither towards the weight nor towards the gold or silver; and consequently that the weigher who weighs in the City by the balance of his lordship the King, is able, by reason of such draught, to give a greater weight to one person than to another, through favour, maybe, or through fear, or through a bribe passing between them, or perhaps inadvertence.

It was therefore provided and enacted on the Saturday after the Feast of St. Nicholas (6 December) in the one and fortieth year of the reign of King Henry, son of King John, that all wares which have to be weighed by the King's balances in the City, shall be weighed like gold and silver, the draught in no degree inclining towards the wares; and that in lieu of such draught, the vendor ought to give to the buyer four pounds in every hundred.

A.D. 1257.

In this year there was a failure of the crops; upon which failure a famine ensued, to such a degree that the people from the villages resorted to the City for food; and there upon the famine waxing still greater, many

thousand persons perished; many thousands more too would have died of hunger, had not corn just then arrived from Almaine. [The German States.]

KING'S PRISAGE. A.D. 1257

After this, on the Nones (5) of August an edict was published in the City, that no one of the King's household, nor any other person should take anything in the City, except at the will of the vendors; saving however unto his lordship the King his rightful prisage of wine, that is to say from every ship that owes full custom two tuns of wine at the price of forty shillings. And further that if anyone should presume to contravene the same and be convicted thereof, he should be immediately imprisoned. After this no one of the King's officers, nor yet any of their people, took anything without soon after paying the vendor for the same: this however lasted for a short time only.

A.D. 1262

In this year ... the Mayor and citizens of London shewed unto Sir Philip Basset, Justiciar of England, and others of the Council of his lordship the King at Westminster, that the Constable of the Tower in contravention of their franchises, wished to arrest and seize vessels in the Thames before the Tower, and take prisage of corn and other things, before they had reached the wharf; further saying, that just then he had caused a vessel belonging to Thomas de Basings, laden with wheat, to be stopped before the Tower, and was for taking one hundred quarters therefrom, at a price by the quarter, two pence less than it would have sold for when brought ashore. To which the Constable made answer, that this he was quite at liberty to do, in behalf of his lordship the King; whereupon the citizens replied that attachments on the Thames pertain solely to the Sheriffs of London, seeing that the whole water of Thames belongs to the City from shore to shore, as far as the Newe Were; (close to Yantlet creek) as has been repeatedly shown....

They said also that his lordship the King takes no prisage of corn, before the vessel has reached the wharf, and that then he is to have the quarter of wheat at two pence less than it would sell for; and this only for the support of his own household. Also that neither the Constable nor any other person is to have prisage of corn, but that if he wishes to buy anything, he must buy it in the market of the City, like the citizens, and at the option of the

vendor; and they entreated his lordship the King, that he would preserve their liberties....

LIQUID MEASURES. A.D. 1264

In this year it was provided at the Hustings, on the morrow of All Souls (2 November), that all measures by which wine, ale and other liquors are sold, should be of the same dimensions, the mouth of the gallon being ordered to measure four inches across (cf. 1273).

FISHING REGULATIONS. A.D. 1269

Be it remarked that in ancient times it had been enacted and provided as to nets, used for fishing in the Thames, that in the body of such nets the meshes should be woven of such a size that a man's thumb nail might be able wholly to pass through them; and that if in any net there should be found a single mesh otherwise woven, the whole of such net was to be condemned....

For which reason it was ... there were many nets seized and brought to the Guildhall, and there by twelve sworn men of the City, who had no share in the said nets, adjudged to be in contravention of the statutes aforesaid. But as to this decision some of the citizens thought differently; and in fact there were some who said, that that part only ought to be burnt which was faulty and unfair, and that the other parts which were good and lawful ought to be saved; while on the other hand, the City, in meeting of its commons, pronounced that a net, a part of which is bad, is bad all over....

... in accordance with the precedent that on another occasion such nets had been wholly burnt the citizens agreed in common that these should in the same manner be condemned; and accordingly so it was done ... all those nets, about twenty in number, were burnt in the middle of Westchepe; so that nothing of them whatever was saved.

A.D. 1269

In this year the pillory that stood in Chepe was broken through the negligence of the Bailiffs, and for a long time remained unrepaired; wherefore, in the meantime no punishment was inflicted on the bakers, who made their loaves just as they pleased; so much so, that each of their loaves was deficient in one third of the weight that it ought to weigh, according to

the award that had been made upon the assay of the Feast of St. Michael preceding; and this lasted for a whole year and more.

In the same year, all the freemen of the kingdom of England, as well of villis as of cities, and boroughs and elsewhere, gave unto his lordship the King one twentieth part of all their moveable goods, towards payment of his expenses on his expedition to the land of Jerusalem. But afterwards Sir Edward undertook that expedition, on behalf of his father and himself.

A.D. 1270

These Sheriffs, immediately after the Feast of St. Michael, had a new pillory made, and erected it in the place where the old pillory had previously stood....

A.D. 1271

Throughout all this year, no punishment was inflicted upon the bakers; but they made loaves at their own will; so much so, that each loaf was deficient in weight one third, or one fourth at least.

MEASURES

A.D. 1273

In this year, both before and after Pentecost, all the measures were broken in pieces by the Mayor of the City, by which corn used to be sold in the City, and new ones made of larger dimensions; each of which measures was bound in the upper part by an iron hoop, fastened on with iron nails, that so they might not at any time be falsified.

Each measure also, that is to say, each quarter, half quarter, and bushel, was sealed with the Alderman's seal.

C. A.D. 1293

Memorandum—that the gallon of Conduit water weighs ten pounds four shillings (1s. 3/5oz.) by the ordinary weight.

Also the gallon of Thames water weighs ten pounds, sixteen pence, by the same weight.

Also the grocers' pound of wax and of fruit is to weigh 25 shillings, the ounce 25 pence, and the quarter 6 shillings and 3 pence.

Be it remembered that the sterling (silver penny) must weigh 32 grains of corn in number, from the middle of the ear;

And to the quarter of an ounce go 160 grains in number.

And to the half ounce go 320 grains.

And to the whole ounce go 640 grains; the ounce, that is to say, of twenty sterlings.

And to the quarter of the pound go 1,920 grains in number.

And to the half pound go 3,840 grains.

And to the pound of 20 shillings sterling go 7,680 grains in number, divided into 12 ounces.

And the weight of two pounds, which amounts in number to 15,360 grains, makes the quarter of liquor.

And the weight of four pounds, which amounts in number to 30,720 grains, makes the pottle.

And the weight of eight pounds, which amounts in number to 61,440 grains, makes the gallon.

And the weight of thirty-two pounds, which amounts in number to 245,760 grains, makes the old half bushel.

And the weight of sixty-four pounds, which amounts in number to 491,520 grains, makes the bushel of wheat, of the ancient standard.

And the weight of 256 pounds, which amounts in number to 19,266,180 grains of wheat, makes the half quarter.

And the weight of 512 pounds sterling, which amounts in number of grains of wheat to 3,932,160, makes the measure of one quarter of eight bushels.

FAMINE

A.D. 1313

In this year there were such great rains that the wheat failed, and all other things as well, in August; and the rains lasted from Pentecost to Easter.

In this year, upon the Day of St. James (25 July), before August, there was one baker drawn upon the hurdle alone; and because another baker did not have the same sentence carried out, the same day the Mayor was reviled by the people....

1315

In this year there was a great famine, so that people without number died of hunger; and there was also a great pestilence among the people. The quarter of wheat was sold at Pentecost this year and after, at thirty-eight and forty shillings; salt also, at forty shillings, and two small onions for one penny.

DISPUTED ELECTION OF MAYOR

A.D. 1271

When the citizens of London, as the custom is, met together for the election of Mayor in the Guildhall, ... and the Aldermen and more discreet citizens would have chosen Philip le Tayllur, the mob of the City, opposing such election and making a great tumult, cried aloud, “Nay, nay, we will have no one for Mayor but Walter Hervi,” who before was Mayor; and against the will of the rest, with all their might, placed him in the seat of the Mayoralty. The Aldermen, however, and many discreet men who sided with them, being unable to make head against the vast multitude of a countless populace, immediately went to his lordship the King and his Council at Westminster; and Walter Herevy, taking with him the populace, proceeded thither in like manner, promising them, as he before had promised, that he would preserve them, one and all, throughout the whole time of his Mayoralty, exempt from all tallages, exactions and tolls, and would keep the City acquitted of all its debts, both as towards the Queen as towards all other persons, out of the arrears in the rolls of the City Chamberlain contained....

The populace, however, ... making a great tumult in the King’s Hall—so much so, that the noise reached his lordship the King in bed, to which he was confined by a severe illness—was continually crying aloud, “We are

the Commons of the City, and unto us belongs the election of Mayor of the City, and our will distinctly is, that Walter Herevy shall be Mayor, whom we have chosen.” But on the other hand, the Aldermen shewed by many reasons, that unto them belongs the election of Mayor, both because they, the Aldermen are the heads, as it were, and the populace the limbs, as also because it is the Aldermen who pronounce judgments in pleas moved within the City. Of the populace on the other hand there are many who have neither lands, rents, nor dwellings in the City, being sons of divers mothers, some of them of servile station, and all of them caring little or nothing about the City’s welfare.

ACCUSATIONS AGAINST A MAYOR

A.D. 1271

Firstly, this Walter had unrighteously attested that a certain person had by writ of his lordship the King been admitted attorney in the Court of his lordship the King as to Pleas of Land; whereas it was afterwards ascertained that no writ thereupon had ever been issued from the Chancery....

Also, in the time of his Mayoralty, he received a writ of his lordship the King, commanding him to appear at Westminster on a certain day there to shew by what right the citizens were to give seizin of the Moor to Walter de Merton. Whereupon he, who was head of the City, and ought to be the City’s defender, made default, and did not return the writ; by reason whereof, the said citizens are in danger of losing the said moor.

Also whereas he ... was bound to maintain and cause to be observed all assises made by the Aldermen and discreet men of the City, and proclaimed throughout the whole City, he allowed ale to be sold in his Ward for threehalfpence the gallon, and confirmed such a sale setting the seal of his Aldermanry to a certain unfair measure made against the statutes of the City, which contained only the sixth part of a gallon.

Also, whereas he ought not to take any part or receive any salary, contrary to his oath he takes fees throughout all the City and receives yearly a sum of money from the community of the fishmongers, upon the understanding that he shall support them in their causes whether just or unjust.

Also as to the letters patent which certain persons of the trades made, ordaining statutes to their own proper advantage only and to the loss of all the City and all the realm; to such letters while he was Mayor, he set a part of the seal of the Community....

Also, whereas corn, wine and the like, when brought into the City for sale, ought not to be taken back out of the City, according to the law and custom of the City, he, taking a bribe, such for example, as from one merchant a tun of wine, from another a pipe, and from another twenty shillings, allowed more than a thousand tuns to be taken out of the City, in contravention of his oath, and to the great loss of the City.

ANTI-SEMITIC RIOTS

A.D. 1262

In this year, just after the Feast of St. Martin (11th November) about the time of Vespers, a certain Jew having wounded a Christian in Colechurch Street, many Christians, indeed a countless multitude of people, ran in pursuit of the Jew, and broke into many houses of the Jews; not content with which, afterwards at nightfall they carried off all the goods of the said Jews; and would have broken into many more houses, and carried off the goods, had not the Mayor and Sheriffs repaired to the spot and driven away those offenders by force of arms. For which reason inquisition was made on the morrow and so from day to day, by the Mayor and Sheriffs in the Guildhall....

A.D. 1263

Afterwards in the week before Palm Sunday, the Jewry in London was destroyed, and all the property of the Jews carried off; as many of them as were found being stripped naked, despoiled, and afterwards murdered by night in sections, to the number that is to say of five hundred. And as for those that survived, they were saved by the Justiciars and the Mayor, having been sent to the Tower before the slaughter took place; and then too the Chest of Chirographs was sent to the Tower for safe custody. (See A.D. 1249.)

FLESH SOLD BY JEWS. A.D. 1273

Certain discreet men of the City appeared before the Council of his lordship the King at Westminster; whereupon members of the Council, before certain Jews there present, questioned them thus, saying: "It is notorious that the Jews kill with their own hands all beasts and fowls whose flesh they eat. But some beasts they consider of their law, and some not; the flesh of those which are of their law they eat, and not the flesh of the others. What then do the Jews do with the flesh of those that are not of their law? Is it lawful for the Christians to buy and eat it?"

To which answer was made by the citizens, that if any Christian should buy any such flesh of a Jew, he would be immediately expelled; and that if he should be convicted thereof by the Sheriffs of the City or by any other person, he would lose such flesh, and it would be given to the lepers, or to the dogs, to eat; in addition to which he would be heavily amerced by the Sheriffs. "But if it seems to you that this punishment is too light a one, let your discreteness make provision that such Christians shall be visited with a more severe punishment." Whereupon the members of the King's Council said: "We will not have such persons visited with any more severe punishment, without his lordship the King; seeing that this matter concerns the Jews, who belong to his lordship the King."

JEW CLIPPERS OF COINAGE. A.D. 1278

In the same year, upon the Octaves of St. Martin (11th November) which was a Friday, just before tierce (9 o'clock service), all the Jews of England were seized by reason of the coin, which was vilely clipped and falsified, and upon the Feast of St. Lucy (13th December) after, all the goldsmiths of London, and all those of the Exchange and many of the good folks in town were seized, by reason of the purchase of bullion and the exchange of large coin for small, for which they had been indicted by the Wards. And on the Monday next after the Tiffany (Epiphany) the Justiciars sat at the Guildhall for delivery (gaol delivery) thereon ... and by reason of such doing, three Christians and 293 Jews were drawn and hanged, for clipping the coin.

A.D. 1284

In this year all the Jews of England were taken and imprisoned; and put to ransom....

A.D. 1289

And after this it was provided by the King and his Council, upon prayer of the Pope, that all the Jews in England were sent into exile between the Gule (1 Aug.) and the Feast of All Saints, under pain of decapitation, if after such Feast any one of them should be found in England.

SWORDS FORBIDDEN. A.D. 1319

In this year swords were forbidden, so that no one was to wear them; by reason of which, many swords were taken and hung up beneath Ludgate, within and without. At this time many of the people of the trades of London were arrayed in livery, and a good time was about to begin.

EDWARD II AND LONDON. A.D. 1321

And soon after this the King caused a Charter of great service [i.e., military service] to be made, and wished in every way that the good people of London should have sealed it; but the people of the City would not accede to it, for all that the King could do.

PRIVATE EXPENSES OF EDWARD II

(*Antiquarian Repertory*, Vol. II, p. 407. MS. in the possession of Thomas Astle, F.R.S., F.A.S.)

Item—paid to the king himself to play at Cross and Pile by Peres Barnard two shillings.

Item paid to Sir Will de Kyngeston for cabbage which he bought to make stew in the Boat.

Tuesday, the 17th of October at Walton. Paid at Shene to James Haggeworth, Henry de Hustrete, Robert Sealour, Henry May, Robin Stronball, John Warwyn, Henry Smallsponne for the wages of his seven Bargemen, working varlets in the Barge. Thomas at Lese each taking threepence a day from Tuesday the 15th of October to Friday the 18th of the same month, reckoning four days, bringing from Byfleet to Shene 1540 faggots in a boat for Madame la Despenser, dwelling at Shene aforesaid, and bringing the King from the aforesaid Shene by water in the same Barge to Cyppenham, 7/-.

11th of March. Item paid to Jack of St. Albans, the King's painter who danced before the king on a table and made him greatly laugh, by gift from

the king's own hands, in aid to him, his wife, and his children, £. s. d.

Item paid at the lodge at Wolmer when the King hunted deer there to Morris Ken of la Kensine because he rode there before the king and fell oftentimes from his horse at which the king greatly laughed, by gift by command 20/-.

BATTLE OF SLUYS. A.D. 1339.

(Chronicles of London)

Upon the Friday morning, our King espied his enemies upon the sea, and said, "Because our Lord Jesus Christ was put to death on a Friday, we will not shed blood upon that day."

The wind had then been in the East for the whole fortnight before the King put to sea, but by the grace of Him Who is Almighty, the wind shifted immediately to the West; so that, by the grace of God, the King and his fleet had both wind and weather to their mind. And so they sailed on until sunrise at break of day; when he saw his enemies so strongly equipped, that it was a most dreadful thing to behold; for the fleet of the ships of France was so strongly bound together with massive chains, castles, bretasches, and bars.

But notwithstanding this, Sir Edward, our King, said to all those who were around him in the fleet of England,—“Fair Lords and brethren of mine, be nothing dismayed, but be of good cheer, and he who for me shall begin the fight and shall combat with a right good heart, shall have the benison of God Almighty; and every one shall retain that which he shall gain.”

And so soon as our King had said this, all were of right eager heart to avenge him of his enemies. And then our mariners hauled their sails half mast high, and hauled up their anchors in manner as though they intended to fly; and when the fleet of France beheld this, they loosened themselves from their heavy chains to pursue us. And forthwith our ships turned back upon them, and the melee began, to the sound of trumpets, nakers, viols, tabors, and many other kinds of minstrelsy. And then did our King, with three hundred ships, vigorously assail the French with their five hundred great ships and galleys, and eagerly did our people exert great diligence to give battle to the French. Our archers and our arbalesters began to fire as densely as hail falls in winter, and our engineers hurled so steadily, that the

French had not power to look or to hold up their heads. And in the meantime, while this assault lasted, our English people with a great force boarded their galleys and fought with the French hand to hand, and threw them out of their ships and galleys.

And always our King encouraged them to fight bravely with his enemies, he himself being in the cog called “Thomas of Winchelsea.” And at the hour of tierce there came to them a ship of London, which belonged to William Haunsard, and it did much good in the said battle. For the battle was so severe and so hardly contested, that the assault lasted from noon all day and all night, and the morrow until the hour of prime (six a.m.) and when the battle was discontinued, no Frenchman remained alive, save only Spaudefisshe, who took to flight with four and twenty ships and galleys.

FOURTEENTH CENTURY PRICES

(Stow I, p. 243)

HOUSEHOLD OF THOMAS, EARL OF LANCASTER

One whole year’s expenses. Seventh of Edward II

	£	s.	d.
Amounting to	7957	13	4½
To wit:			
In the Pantry, Buttery and Kitchen	3405	-	-
For 184 Tons, one Pipe of Red or Claret Wine and one Ton of White Wine, bought for the House	104	17	6
For Grocery Ware	180	17	-
For six Barrels of Sturgeon	19	-	-
For 6800 Stockfishes, so called, and for dried Fishes of all sorts, as Lings, Haberdines and other	41	6	7

For 1714 Pound of Wax, with Vermilion and Turpentine to make Red Wax	314	7	4
For 2319 Pounds of Tallow Candles, for the Household, and 1870 of Lights for Paris Candles, called Perchers	31	14	3
Expenses on the Earl's great Horses, and the Keeper's Wages	186	4	3ob.
Linnen Cloth for the Lord and his Chaplains, and for the Pantry	43	17	-
For 129 Doz. of Parchment, with Ink	4	8	3
	Sum £1230	17	7ob.

Item:

For 2 Cloths of Scarlet for the Earl against Christmas.

1 Cloth of Russet for the Bishop of Anjou.

70 Cloths of Blue for the Knights (as they were then termed).

15 Cloths of Medley for the Lord's Clerks.

28 Cloths for the Esquires.

15 Cloths for Officers.

19 Cloths for Grooms

5 Cloths for Archers.

4 Cloths for Minstrels and Carpenters, with the Sharing and Carriage for the Earl's	£460	1	3
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Liveries at Christmas

Item:

For 7 Furs of variable Minever [or powdered
Ermin]

7 Hoods of Purple

395 Furs of Budge, for the Liveries of Barons,
Knights and Clerks

123 Furs of Lambs for Esquires, bought at £147 17 8
Christmas

Item:

65 Cloths Saffron Colour, for the Barons and
Knights in summer.

12 Red Cloths mixt for Clerks

26 Cloths Ray for Esquires £ s. d.

1 Cloth Ray for Officers' Coats in Summer
and

4 Cloths Ray for carpets in the Hall £345 13 8

Item:

100 Pieces of Green Silk for the Knights

14 Budge Furs for Surceats

13 Hoods of Budge for Clerks, and

75	Furs of Lambs for the Lord's Liveries in summer, with Canvas and cords to truss them	£72	19	-
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Item:

	Saddles for the Lord's Liveries in summer	£51	6	8
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Item:

	For one Saddle for the Earl of the Prince's Arms	£2	-	-
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	Sum	£1079	18	3
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Item:

	For Things bought whereof nothing can be read in my Note	£241	14	1 ob.
--	--	------	----	-------

	For Horses lost in the Service of the Earl	£86	6	8
--	--	-----	---	---

	Fees paid to Earls, Barons, Knights and Esquires	£628	15	6
--	--	------	----	---

	In Gifts to Knights of France, the Queen of England's Nurses, to the Countess of Warren, Esquires, Minstrels, Messengers and Riders	£92	14	-
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Item:

168	Yards of Russet Cloth, and 24 Coats for Poor Men, with Money given to the Poor on Maunday Thursday	£8	16	7
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Item:

24	Silver Dishes, so many Sawcers, and so many Cups for the Buttery, one Pair of Paternosters, and one Silver Coffin, bought this Year	£103	5	6
	To divers Messengers about the Earl's business	£34	19	8
	In the Earl's Chamber	£5	-	-
	To divers Men for the Earl's old debts	£88	16	- ob.
	Sum	£1207	7	11
	The Expenses of the Countess at Pickering for the Time of this Account, as in the Pantry, Buttery, Kitchen and other Places, concerning these offices	£285	13	4 ob.
	In Wine, Wax, Spices, Cleaths, Furs and other things for the Countess's Wardrobe	£154	7	4 ob.
	Sum	£439	8	6 q.
	Summa Totalis for the Whole Expences	£7957	13	4 ob.

Thus much for the Earl of Lancaster.

CHAPTER V

FIFTEENTH CENTURY LIFE

INTRODUCTORY NOTES

The Tourney

THIS is here shown to be a sport, a trial of skill in which groups of knights encounter. The more serious ordeal by battle or tournament is a duel often to the death and so the rules for it are more strict and heavily guarded.

A good lesson on the courtesy of the late chivalric age may be drawn from this and further illustrated from Froissart. Here as there, and in Joinville, the care for horses may be seen.

Wages and Coinage

These are chiefly useful for comparison with other periods, especially those imposed in the Statute of Labourers. The powers of the J.P. may be noted, also the status of the shepherd due to the importance of wool for the new cloth manufacture.

Safeguard of the Sea

This and the following extract are important as illustrating the beginnings of a royal naval policy, the navy to be drawn from merchant shipping and placed under military commanders. It is in accord with the policy advocated in 1436 in the Libel of English Policy (see Lipson, *Economic History of England*). They shew further the rise of the direct influence of the wealthy wool and cloth merchants in government.

The fleet captured by Wynnynton is that of the Hansa League or Easterling Merchants; the work of Henry IV and Henry V, in copying Genoese models, enabled English ships for the first time to carry more than one mast, and so increase both speed and capacity for artillery. Henry VII and Henry VIII continued this policy but Elizabeth economized, relying on their provision and on individual patriotic effort.

Paston Letters

The real meaning of the Wars of the Roses for the society of the time, emerges from such pictures as those of the need for self protection.

Petition of the Commons

This demand of privilege shows how much the Parliament had gained in power from the insecure position of Henry IV and Henry V's need for war supplies, while the merchants' wealth grew. It suggests reasons for Henry VII's determination to drain their resources.

Alnwick's Visitations

It must be remembered that an enquiry such as this leads to the airing of grievances, and so to a one-sided view of the monastic life; also that by this time the original high standards of most orders were beginning to droop. Care should be taken to avoid giving children a biased view on this subject.

Enclosures

Under the common field system there had always existed closes, or small fenced pieces of land attached to the owner's dwelling-house or farm. It was also a lawful practice in the thirteenth century for lords or wealthy men to "approve," i.e., enclose and cultivate portions of the land hitherto lying waste.

The enclosures of the sixteenth century differ from these. The growth before 1400 of the wool industry for export, and after that period for the English manufacture into cloth, raised the value of sheep-farming, and combined with the shortage of labour to bring about great sheep farms and a capitalistic system. Wealth was concentrated in the hands of big merchants, nobles or corporations. In the late sixteenth and early seventeenth century new methods of farming; rotation of crops, including roots; dairying; great drainage schemes led to the desire to escape from the unprogressive open field system; by enclosing, dairy farms became possible, and the famous brands of English cattle, sheep and horses could be developed.

The effect of these changes is noted by A. Young in his tours (see p. 229, etc.).

Holinshed gives a short, clear account of the risings which were brought about by rich or progressive owners enclosing their share of the common fields, and often more than their share. The illustrations from Cambridge documents give some of those details which alone enable children to grasp these social changes.

ORDINANCES RESPECTING TOURNAMENTS

(MS. I, 26, *College of Arms. Antiquarian Repertory*, Vol. I, p. 144.)

First: whoso breaketh most spears, as they ought to be broken, shall have the prize.

Item: whoso hitteth three times in the helm, shall have the prize.

Item: whoso meeteth three times coronell to coronell shall have the prize.

How the prize should be lost.

First: whoso striketh a horse shall have no prize.

Item: whoso striketh a man, his back turned, or disarmed of his spear, shall have no prize.

Item: whoso hitteth the toyle or tilte thrice, shall have no prize.

Item: whoso unhelms himself twice, shall have no prize, without his horse fail him.

How spears broken shall be allowed.

First: whoso breaketh a spear between the saddle and the charnell of the helm, shall be allowed for one.

Item: whoso breaketh a spear from the charnell upward, shall be allowed for two.

Item: whoso breaketh a spear so as he strike him down or put him out of his saddle or disarm him in such wise as he may not run the next course after, shall be allowed for three spears broken.

Whereas your most noble grace hast most abundantly given unto four maidens of your most honourable court, the castle called Loyal, to dispose according to their pleasure; they have most liberally given the guard and

custody of the same unto a captain and with him fifteen gentlemen ... they have undertaken the defence of the same ... to defend and keep the same against all comers....

Item, in any days that this enterprize shall be done, to begin at one of the clock at afternoon, and to continue until seven of the clock at afternoon....

... The VI comers shall take a spear and a sword every of them in like wise, the VI gentlemen putting themselves in range directly against their fellows, every man his spear on his thigh and his sword where it shall please him; and then at the sound of the trumpet to charge and run together all at once everyman to his fellow that shall stand against him, and so pass through.

Item, the course with the spears passed, everyman to take his sword and do his best, only the foyne except, choosing his fellow by fortune as it shall happen, and so to continue until the time that the king shall command to rest.

Item, if any man of arms break his sword or lose it by any fortune he may return to the scaffold where the heralds be and there receive another and so enter into the tourney again. Also it shall not need that every man confine to still in fighting with him whom he shall first encounter, but if he will may also search to and fro taking his advantage, and helping his fellow if need be, always defended that no man lay hand on other but only with his sword to do his best nor twain to set upon one alone unless it be in aiding of his fellow as above....

Item, if any man be disarmed, he may withdraw himself if he will; but once past the bars he may not come again into the tourney, for that day. Also there shall no man have his servant within the bars with any piece of harness, for no man shall be within the said bars but such as shall be assigned by the king's grace.

Item, who shall best demean himself at the same art of arms shall have a sword garnished to the value of three hundred crowns or under....

Item, if any man strike a horse with his spear, he shall be put out of the tourney without any favour incontinent: and if any slay an horse, he shall pay to the owner of the said horse an hundred crowns in recompense; also it

is not to be thought that any man will strike an horse willingly: for if it do, it shall be to his great dishonour.

ORDER OF THE TOURNAMENT

First, the quarrels and bills of the challenger and defendant shall be pleaded in the court before the constable and marshall ... the battle being appointed the constable shall assign them the day and place, in sort that it be not within forty days after the battle appointed ... awarding them how many weapons they shall have, i.e., glaive, long sword, short sword and dagger....

The king shall find the field to fight in ... the lists must be 60 pace long and 40 pace broad, in good order, so that the ground be hard, stable and firm, and equally made, without great stones, the ground flat; and that the lists be strongly barred about, with one door in the east, another in the west, with good and strong bars 7 foot high or more, that a horse cannot leap over them.

The day of the battle, the king shall be in a state upon a high scaffold, and a place shall be made for the constable and marshall at the foot of the stairs of the said scaffold, where they shall sit....

When the Challenger cometh ... to the east gate of the lists in such manner as he will fight with his armour and weapons as is appointed by the court ... the constable and marshall shall go thither, and the constable shall ask him what man he is that is come, armed to the door of the lists? What is his name? And wherefore he is come? And the challenger shall answer.... Then the constable opening the umbrel of his helmet, and perceiving him to be the same man which is the challenger, shall cause the door of the lists to be opened, and suffer him to enter with his said armour, weapons, victuals, and other lowable necessities about him and also his council with him; and then he shall bring him before the king and to his estate [station] where he shall attend until the defendant be come. In the like sort shall be done to the defendant; but that he shall enter in at the west door of the lists ... the which thing being done, the constable and marshall shall view the spears of the said challenger and defendant and shall cause them to be cut and sharpened of equal measure.... [Both parties being made to swear to their truth and honesty] ... the constable shall cause them to clasp their hands together and to lay their left hands upon the Book.... The oaths being ended and every of

them led to his place, their counsellors and friends being taken away from them ... the constable shall command the marshall to make proclamation at the four corners of the lists in manner and form following:

“Oies, oies, oies, we charge and command you in the behalf of the King, the Constable and Marshall, that no man whether of great or small estate ... be so hardie from henceforth to approach the lists by four feet nor to speak one word, to make any countenance, sign, likelihood or noise whereby any of the parties ... may take advantage of each other, upon peril to lose their life and goods at the king’s pleasure. That done the constable and marshall shall cause the lists to be voided of all manner of persons except their lieutenants and two knights one for the constable and one for the marshall ... but the two lieutenants ... ought to have in their hands either of them, a spear without iron, for to part them if the king would cause them to stay in their fighting, whether it be to rest, or otherwise howsoer it be ... and the parties being ready to fight as is said, the constable shall by commandment of the King say with a loud voice: Let them go and rest awhile; Let them go again and rest awhile; Let them go and do their indevoir in God’s name.”

WAGES IN THE TIME OF KING HENRY VI, A.D. 1443

(Antiquarian Repertory, Vol. III, p. 52)

Where [as] the common people of this realm is greatly annoyed by cause of sudden departing of servants of husbandry from their masters at end of their terms without due warning made ... [it is decreed] that every servant of husbandry purposing to depart from his master at end of his term, at midst of his term or else before, make Covenant with another man to serve him for the next year ... in presence of the Constables of the Towns ... also that the salaries and wages of servants, labourers and artificers exceed not the assessing that followeth:—

The salary of a Bailly of Husbandry by year 23/4 and clothing, price of 5/-with meat and drink.

Of a chief hind, a carter, a chief shepherd 20/-and clothing, price of 4/-with meat and drink.

A common servant or husbandman 1/-and clothing, price of 40d.

A woman servant 10/-and clothing, price of 4/-with meat and drink.

A child within age of 14 years 6/-and clothing, price 3/- with meat and drink.

A master tyler or slater, rough mason, and mean carpenter, and other artificers concerning building, by the day 3d. with meat and drink, and without meat and drink 3½d., and from every other labourer by the day 2d. with meat and drink, without meat and drink 3½d.

And from the Feast of Michaelmas unto Easter a free mason and a master carpenter by the day 3d. with meat and drink, without meat and drink 4½d.

Tyler, mean carpenter, rough mason, and other artificers aforesaid by the day 2½d. with meat and drink, without meat and drink 4d., and every other workman, and labourer by the day 1½d. with meat and drink, and without meat and drink 3d., and who that less deserveth to take less; provided that the said assessing extend unto labourers in time of harvest, about harvest labour in which the wages of a mower exceed not by the day 4d. with meat and drink and without meat and drink 6d. A man reaper or carter 3d. by the day with meat and drink, and without meat and drink 5d. A woman labourer and other labourers in harvest by the day 2½d. with meat and drink, and without meat and drink 4½d., and such as are worth less to take less, and in places where less is used to be taken, less to be taken hereafter. And that none artificer, workman, nor labourer, take anything for any holiday, nor for no workaday, except after the rate of the time of day in which he laboureth; and if any person refuse to serve or labour according to the premises that every Justice of the Peace in their shires have power ... to commit to prison, there to abide until they have found suretie sufficient to serve and labour in form by law required.

PETITION FOR THE COINAGE OF HALFPENCE AND FARTHINGS,
A.D. 1444

(Rol. Parl. V. 23 Hen. VI)

To the right worshipful and discreet Commons in this present Parlement assembled;

Please it unto your said great and high discretions to consider the great hurt that the poor Commons of this noble realm of England have and suffer at this time for default of Halfpennies and Farthings of silver; insomuch that

men travelling over countries, for part of their expenses of necessity must dispart our sovereign Lord's coin, that is to wit, a penny in two pieces, or else forgo all the same penny for the payment of an halfpenny; and also the poor common retailers of victuals, and of other needful things, for default of such coinage of halfpennies and farthings oftentimes may not sell their said victuals and things, and many of our said sovereign Lord's poor liege people which would buy such victuals or other small things necessary, may not buy them for default of halfpence and farthings not had, neither on the party buyer, nor on the party seller: which scarcity and wanting of halfpence and farthings hath fall, and daily yet doth, because that for their great weight and their fineness of alloy, they be tried and molten, and put into other use, unto the increase of winning of them that so do....

... enact ... that every pound weight of the Tower ... which be now of the number of 30/-from this time forth, to be of the number of 33/-, no fineness abated of the alloy ... moreover that halfpennies and farthings run not, only in payment of great sums among the people, without other money among; that is to say that no man be bound to receive in payment but after the quantity and rate, in every 20/-of grotes, half grotes and pence, twelve pence in halfpence and farthings and no more; and yet, [even] that by the will and consent of him that shall receive the payment; and this ordinance endure unto the next Parlement; provided also that no white money, as grote, halfgrote, penny, halfpenny, nor farthings, be broken nor molten for the cause above said, on pain of forfeiture to the king, the double value of as much as is so molten or broken; considering furthermore that by this means, plenty of halfpennies and farthings shall be had in short time through this said realm, and the people greatly eased, and the king profited in his seigneurage, and all clipping and melting of halfpennies and farthings hereafter finally fordone.

Response: Soit fait sicome il est desire, etc.

FOR THE SAFEGUARD OF THE SEA

(Petition of the Commons, 1442. 20th Henry VI Rot. Parl. V, 59)

Prayen the Commons, that it please the King, our sovereign Lord, for the safe keeping of the sea, to ordain and authorise by the authority of this Parlement ...

Forasmuch as it is thought by all the Commons of this land, that it is necessary the sea to be kept, there must purveyance be made for certain ships defensably in manner and form following:

First it is thought that least purveyance that can be made for the worship of the King our Sovereign Lord, and welfare and defence of this realm of England is for to have upon the sea continually, for the seasons of the year from Candlemas to Martinmas 8 ships with forstages, the which ships it is thought must have one with another, each of them 150 men, sum (1200) men.

Item, every great ship must have attending upon him a barge and a balinger, and every barge must have 24 men, sum 146 men.

Item, the 8 balingers must have in each of them 40 men, sum 320 men. There must be awaiting and attendant upon them 4 Spynes, in each spyne 25 men, sum 100 men; sum of the men 260 men, every man taking 11 shillings by the month, amounteth in the month £226.

[Follows a list of “where the ships are to be had,” Bristol, Hull, Dartmouth, Newcastle, etc. each contributing certain vessels named].

Item, it is thought there should be chosen and named, eight Knights, and worthy Squires of the West, South and of the North, so that no countrie should be despised (sic) [despised]; and thereof the King our Sovereign Lord chose such one as him liketh to be a chief Captain; and other seven as the King liketh of the said eight, for to attend the said Captain; so that every great ship have a Captain within board.

Item, it is to remember that the King will give them in charge, by his officers to them sent, that all these said ships stuffed and arrayed, make their first assemble in the Cuambre ... there to obey such rule and governance, as by their Captain and under captain shall to them be ordained and there muster of every ship to be seen by such persons as the King will depute thereto by his commission.

Item, there such proclamation and ordinance to be made and established amongst and in the said Navy, that none ship or ships harm nor hurt none other ship of our friends; where through any trouble or breaking of Peace might fall between the King our Sovereign Lord, and other of his Friends.

Item, it is thought necessary, that if any ship or ships be taken as enemies, when the goods in the said ship be brought into any port of this land; that the goods nor the ships be not disperbled nor divided, unto the time that it be duly known, whether it be enemies' goods or friends' goods; foreseen always that the press be made within the six weeks after the landing or havening of said ship or ships and goods so taken....

Item, it is thought that the goods and ships that may be taken by them, in the sea of our enemies, shall be departed in the form after serving; that is to say, the masters of the ships, quartermasters, shipmen and soldiers shall have half of the ships and goods so taken, and other half of the ship and goods shall be departed in three, of which the owners of the ships, barges, balingers and spynaces shall have two parts, and the chief Captain and under captains the third part; the chief captain shall have double that one of the under captains shall have.

N.B.—[Payment of the Navy to be made out of the Tonnage and Poundage.]

CAPTURE OF FRENCH AND HANSARD SHIPPING,

A.D. 1449

(*Paston Letters*, Vol. I, p. 84)

Part of Robert Wynyngtone's report of his service to the king "for the cleansing of the sea, and rebuking of the robbers and pirates thereof, which daily do all the noisance they can."

First I send you word, that when we went to sea, we took two ships of Brest coming out of Flanders; and then after, there is made a great arming in Britanny to meet with me and my fellowships, that is to say, the great ship of Brest, the great ship of the Morlaix, the great ship of Vannes, with other viij ships, barges and balingers to the number of iij mli [thousand men;] and so we lay in the sea to meet with them.

And then we met with a fleet of a hundred great ships of Prussia, Lubeck, Campe, Rastocke, Holland, Zealand and Flanders, between Guernsey and Portland; and then I came aboard the Admiral and bade them strike in the King's name of England, and they bade me skite [? strike] in the King's name of England; and then I and my fellowships said, but he will strike

down the sail, that I would oversail him, by the grace of God, an God will send me wind and weather; and they bade me do my worst, by cause I had so few ships and so small that they scorned with me. And as God would, on Friday last was, we had a good wind, and then we armed to the number of ii.m. men in my fellowship, and made us ready for to oversail them; and then they launched a boat and set up a standard of truce, and come and spake with me. And there they were yielded all the hundred ships to go with me in what port that me lust and my fellows; but they fought with me the day before and shot at us a j.m. guns, and quarrel out of number, and have slain many of my fellowships, and maimed also. Wherefore me thinketh that they have forfeit both ships and goods at our sovereign lord the King will ... and so I have brought them all the hundred ships, within Wight, in spite of them all ... for I dare well say that I have here at this time all the chief ships, of Dutchland [Germany], Holland, Zealand and Flanders, and now it were time for to treat for a final peace as for that parte.

MISRULE IN NORFOLK

LETTER TO PASTON FROM HIS WIFE, A.D. 1449

(*Paston Letters*, Vol. I, p. 82).

Right worshipful husband,

I recommend me to you and pray you to get some cross bows and windacs to bind them with, and quarrels; for our houses here be so low that there may no man shoot out with no long bow, though we had never so much need.

I suppose ye should have such things of Sir John Falstaff, if ye would send to him; and also I would ye should get ij or iij short pollaxes to keep within doors, and as many jacks, an ye may.

Partridge [one of Molyns' men] and his fellowship are sore afraid that ye would enter again upon them, and they have made great ordinance within the house, as it is told me. They have made bars to bar the doors crosswise, and they have made wickets on every quarter of the house to shoot out at, both with bows and with hand guns; and the holes that be made for hand guns, they be scarce knee high from the plancher [floor], and of such holes be made five. There can no man shoot out at them with no hand bows.

I pray you that you will vouch save to do buy for me 1 lb. of almonds and 1 lb. of sugar, and that ye will do buy some frieze to make of your child his gowns; ye shall have best cheap and best choice of Hayes wife as it is told me. And that ye would buy a yard of broad cloth of black for an hood for me of XIIIjd or IIIjs a yard, for there is neither good cloth nor good frieze in this town. As for the child his gowns, an I have them I will do them maken.

The Trinity have you in his (sic) keeping, and send you good speed in all your matters.

PETITION OF JOHN PASTON, ESQ.

(*Paston Letters*, Vol. I, pp. 106-8)

To the King, our Sovereign Lord, and to the right wise and discreet Lords, assembled in this present Parliament.

Beseecheth meekly your humble liegeman, John Paston, that where [as] he and other ... have be peaceably possessed of the manor of Gresham, within the county of Norfolk xx year and more, till the xxij day of February, the year of your noble reign xxvi, that Robert Hungerford, Knight, the Lord Molyngs, entered in to the said manor ... the said Lord sent to the mansion a riotous people, to the number of a thousand persons ... arrayed in manner of war, with cuirasse, briganders, jacks, salettes, glaives, bowes, arrows, pavyse (shields) pans with fire burning therein, long cromes (hooks) to draw down houses, ladders, pikes, with which they mined down the walls, and long trees with which they broke up gates and doors, and so came into the said mansion, the wife of your beseecher being at that time therein, and xlj persons with her; the which persons they drove out of the said mansion, and mined down the wall of the chamber wherein the wife of your said beseecher was, and bare her out at the gates, and cut asunder the posts of the houses and let them fall, and broke up all the chambers and cofferes within the said mansion, and rifled, and in manner of robbery bare away all the stuffe, array, and money that your said beseecher and his servants had there, unto the value of ccli ... saying openly that if they might have found there your said beseecher and one John Damme, which is of council with him, and divers others of the servants of your said beseecher, they should have died. And yet [i.e. still] divers of the said misdoers and riotous people unknown, contrary to your laws, daily keep the said manor with force, and lie in wait.... And also they compel poor tenants of the said manor, now

within their danger, against their will, to take feigned complaints in the courts of the hundred there against the ... servants of your said beseecher, who dare not appear to answer for fear of bodily harm, nor can get no copies of the said complaints, to remedy them by the law, because he that keepeth the said courts is of covyn with the said misdoers and was one of the said risers....

Please it your highness, ... to purvey ... that your said beseecher may be restored to the said goods and chattels thus riotously taken away ... and that the said Lord Molynes and his servants be set in such a rule, that your said beseecher, his friends, tenants and servants may be sure and safe from hurt of their persons, and peaceably occupy their lands and tenements under your laws without oppression or unrightful vexation of any of them; and that the said risers and causers thereof may be punished, that other may eschew to make any such rising in this your land of peace in time coming. And he shall pray to God for you.

PETITION OF THE COMMONS TO HENRY VI IN 1460 ON BEHALF
OF WALTER CLERK, M.P.

(Antiquarian Repertory, Vol. III, p. 265)

To the King our Sovereign Lord; Prayen the Commons,

Forasmuch that great delay has been in this Parlement, by that Walter Clerk, Burgess of Chippenham in the shire of Wilts, which came by your high commandment to this your present Parlement, and attending to the same in the House for the Commons accustomed, the freedom of which Commons so called, hath ever before this time been and oweth to be, the same Commons to have free coming, going and there abiding: against which freedom the said Walter was, after his said coming, and during this your present Parlement, arrested at your suit for a fine to be made to your Highness, and imprisoned in the Counter of London, and from thence removed into your Exchequer, and then committed into your prison of Fleet ... and sithen that committing, the said Walter was outlawed.... Please it your Highness ... him to dismiss at large ... so that the said Walter may daily tend of this your Parlement, as his duty is to do.... Saving also to your said Commons called now to this your Parlement, and their successors, their whole Liberties, Franchises and Privileges in as ample form and manner, as

your said Commons at any time afore this day have had, used and enjoyed and oweth to have, use and enjoy....

Response:—Le Roy le voelt.

CONDITION OF RELIGIOUS HOUSES

VISITATION OF BARDNEY

(*Alnwick's Visitations of Religious Houses*, Vol. II, 1436-1449. Ed., A. Hamilton Thompson. Lincoln Record Society)

In the year A.D. 1437 in the chapter house of the monastery of Bardney, of the Order of St. Benet, of the diocese of Lincoln, these appeared before ... William ... bishop of Lincoln ... brother John Waynflete, abbot of the same monastery and the monks of the same place ... to undergo with lowliness the visitation of the said reverend father....

Brother John Waynflete, the abbot, being examined says that they are sixteen in number ... also he says that there are three establishments in the monastery, to wit the abbot's hall, the infirmary and the frater; and sometimes the monks that do stay in the infirmary take their meals not together but separately, to wit, one by himself, and another by himself and a third by himself, and send their broken meat into the town whither they will, and so the alms are wholly wasted.

Also he says that whatsoever guests come down to the monastery are entertained in the guestmaster's quarters, and not, as is the usual custom, in the abbot's hall.

Also he says that long and many watchings are kept at night in the guest-house in the infirmary, at which beer from the frater is consumed, and this by monks who spend their time in such offences against discipline and will not give them up.

Also he says that all day long they sit in the frater drinking and spending their time in messes and drinkings as though it were a public tavern, and to these they bring in secular folk.

Also he says that the monks too often make expeditions into the town of Bardney, where for their ease they haunt the taverns to the great scandal of the monastery....

Also he says that the church, manors, granges and tenements belonging to the monastery are much dilapidated and stand in need of large repairs. Also he says that the monastery is many ways in debt, as is apparent in the roll delivered to my lord.

Also he says that there is a sore division and discord among almost all of the convent who are confederate together and in conspiracy one with another against Thomas Bartone....

Also he says that the baker, the brewer, the porter, the smith and the lime-burner receive corrodies severally of a large amount [and] do eat almost daily of the abbot's victuals.

Also he says that they who abide in the frater have each his separate dish and they in the infirmary do eat by two and two, and every day in the frater they will have at least three sorts of fish.

Also he says that women have too free and often access to the cloister precincts and most especially to the infirmary [where there is] eating, drinking and chattering between the monks and the same women to the great expense and scandal [of the monastery].

Also he says that in the conventual church the monks almost of custom do chatter with women during divine service [in a very ...] manner, by reason whereof the monastery is very evil spoken of.

Also he says that each monk receives for his clothing year by year forty shillings in divers parcels.

Brother John Rose, deacon, says that a young layman who dwells with the abbot did most foully browbeat and scold this deponent, and it is notorious [that] this youth, by name Taylboys, is upheld by the abbot against the young monks.

Also he says ... that the chantries of Partney and Skandleley and the others are not served.

Also he says as above concerning the scanty supply of victuals for the monks in the frater and infirmary, insomuch that after their meals nothing is left for the sustenance of their serving men or for the alms and this is Bartone's default.

Also he says that Bartone is every night in the infirmary without lawful cause.

Also he says that the injunctions made by the last my lord of Lincoln in his visitation are not observed in aught, nor are they shown publicly in the Chapterhouse.

Brother Richard Anderby says that Bartone makes too much haste in singing the psalms and in other [parts of the service], causing discord among them when they chant.

Also the same Bartone is past bearing among the brethren, and all that he has he wastes in meat and drink and presents, that he may win to himself for his support the influence of layfolk.

Also he speaks of the unwary and improvident sale of manors.

CATESBY PRIORY

Sister Juliane Wolfe says that there should be two lights burning in the upper church and quire in time of divine service (p. 47).

Also she says that the prioress does not shew the account of her administrations to the Sisters.

Also she says that the prioress has pawned the jewels of the house....

Also she says that the prioress did threaten that, if the nuns disclosed aught in the visitation, they should pay for it in prison.

Also Isabel Wavere, the prioress' mother, rules almost the whole house together with Joan Colworthe, the kinswoman of a certain priest, and these two do carry all the keys of the offices.

Also when guests come to the house, the prioress sends out the young nuns to make their beds, the which is a scandal to the house and a perilous thing.

Also the prioress does not give the nuns satisfaction in the matter of raiment and money for victuals: and she says that touching the premises the prioress is in the nuns' debt for three-quarters of a year.

Also the buildings and tenements both within and without the priory are dilapidated, and many have fallen to the ground because of default in repairs.

Dame Isabel Benet says that when the prioress is enraged against any of the nuns, she calls them whores and pulls them by the hair, even in quire....

The prioress denies the article of cruelty as regards calling them whores and beggars; she denies also the violent laying of hands upon the nuns.

As to not having rendered an account, she confesses it, and for the reason that she has not a clerk who can write.

As to the burden of debt she refers herself to the account now to be rendered.

As to the neglect in repairing the sheep-folds, she refers herself to the visible evidence.

As to pawning the cup, she says that the same was done with the consent of the convent for the payment of tithes....

As to the disclosures on the last visitation and the reproaching of them that made them and the whipping, she denies the article....

As to her mother and Joan Coleworthe, she denies the article.

As to the bedmaking and the other tasks she denies the article.

As to withholding victuals and raiment from the nuns, she confesses it in part.

As to the dilapidation of the outer tenements, she says that they are partly in repair and partly not.

As to the sowing of discord, she says that she might have done this, she is not certain....

She has the morrow for clearing herself, of [the articles] she has denied, with four of her sisters, and to receive penance for those she has confessed. At the which term she brought forward no compurgators; ... she was pronounced to be convicted....

My lord ordained that there be two [nuns] receivers, to receive and to pay out [the money to be kept in a chest] under three locks, and that all live in

common, leaving off their separate households, and that these things do begin at Michaelmas next. And all were warned to remove all secular folk from the dorter on this side the morrow of the Assumption. And all were warned under pain of excommunication that none do reproach another by reason of her disclosures. And the prioress was warned to [shut] and open the doors of the church and cloister at the due times, and to keep the keys with her by night in the dorter.

Dames Isabel Benet and Agnes Halesley, nuns of Catesby, will not obey or hearken to the injunctions of the lord bishop, and especially that concerning giving up their [private] chambers, asserting that they are not subject to the same.

Also the said dame Isabel on Monday last past did pass the night with the Austin friars at Northampton, and did dance and play the lute with them on the same place until midnight, and on the night following she passed the night with the friars preachers at Northampton, luting and dancing in like manner.

SIXTEENTH CENTURY ENCLOSURES, A.D. 1549

(Holinshed, *Chronicle of England*, III, p. 156)

So it was, that the King's Majesty, by the advice of his uncle, the Lord Protector, and other of the Council, thought good to set forth a proclamation against enclosures, and taking in of fields and commons that were accustomed to lie open, for the behoof of the inhabitants dwelling near to the same, who had grievously complained of gentlemen and others for taking from them the use of those fields and commons, and had enclosed them into parks and several pasture for their private commodities and pleasures, to the great hindrance and undoing many a poor man.

This proclamation tending to the benefit and relief of the poor, appointed that such as had enclosed those commons, should upon a pain by a day assigned lay them open again. But how well soever the setters forth of this proclamation meant, thinking hereby peradventure to appease the grudge of the people that found themselves grieved with such enclosures; yet verily it turned not to the wished effect, but rather ministered occasion of a foul and

dangerous disorder. For whereas there were few that obeyed the commandment, the unadvised people presuming upon their proclamation, thinking they should be borne out by them that had set it forth, rashly without order took upon them to redress the matter: and assembling themselves in unlawful wise, chose to them captains and leaders, brake open the enclosures, cast down ditches, killed up the deer which they found in parks, spoiled and made havoc after the manner of an open rebellion. First they began to play these parts in Somersetshire, Buckinghamshire, Northamptonshire, Kent, Essex, and Lincolnshire.

In Somersetshire they brake up certain parks of Sir William Herbert, and the Lord Sturton: but Sir William Herbert assembling a power together by the King's commission, slew and executed many of these rebellious people. In other places also by the good diligence and police used by the council, the rebels were appeased and quieted.

But shortly after, the commons of Devonshire and Cornwall rose by way of rebellion, demanding not only to have enclosures laid open, and parks disparked, but also through the instigations and pricking forward of certain popish priests, ceased not by all sinister and subtle means, first under God's Name and the King's, and under the colour of religion, to persuade the people to assemble in routs to choose captains to guide them and finally to burst out into open rebellion.

GRIEVANCES OF CAMBRIDGE MEN. (EXAMPLES)

(Cooper, *Annals of Cambridge*, Vol. II, p. 38)

Inprimis, we find that there be IV Almshouses decayed in Jesus Lane, which ought to be upholden and maintained by Mr. Thomas Hutton.

Item: we find that a piece of noisome ground is taken in out of the common and enclosed with a muddle wall at the end of Jesus Lane, for the which the incorporation of the town is recompensed, but not the whole inhabitants of the town which find themselves injured.

Item: we find that Andrew Lambes close is croft land and ought to lie open with the field at Lammas as common.

Item: we find that Mr. Hynde unlawfully doth bring into Cambridge field a flock of sheep to the number of VI or VII hundred, to the undoing of the

farmers and great hindrance of all the inhabitants of Cambridge.

Item: we find that Trinity College hath enclosed a common lane which was a common course both for cart, horse and man, leading to the river, unto a common green, and no recompense made therefore.

Item: we find that Mr. Muryell hath plowed up certain balks and cart ways in the field.

Item: we find that Mr. Bykardyck hath plowed up the more part of a balk behind the Black Friars of VII feet broad ... and he hath ditched it at both ends.

Item: we find that Queen's College have taken a piece of common ground commonly called Gosling Green without recompense.

Item: we find that Mr. Fanne hath in his hands a piece of marsh ground now severalled, which was common within these XVI years, the rent is VIId.

Item: we find that beyond Styrbrydge Chapel, Dytton men have pulled down a bridge, stopped the water, drowned the commons and so enter upon Cambridge common.

Item: we find that Mr. Kymbalde hath walled and ditched upon the highway in Barnwell, whereby the said way is much straitened.

Mem.: of a common balk through a pasture ground adjoining next to Rutland's house in Little St. Mary's now inhabited by R. Tomlynson, which balk should be a way to go to Thomas leys and so forth on balks to Jesus Green, etc., which pasture is now purchased by the town, etc.

RIOTERS' BALLAD

JAKE OF THE NORTH

(Cooper, II, p. 40)

JAKE OF THE NORTH:

... Company by night I take
And with all that I may make
Cast hedge and ditch in the lake
Fixed with many a stake.
Though it were never so fast
Asunder it is wraste.
Thus I Jake do recompense
Their naughty slanderous offence^[26].

As I am a true speaker,
I am but a Hedge breaker.

How sayest thou Robin Clout?
Is this night well wrought?

ROBIN CLOUT:

Yea, sir without doubt ...
It is as ye do say ...
Methought it but a play
To see the stakes fast stray
Down into the ray
Swimming evermore away,
Sailing toward the castle
Like as they would wrastle
For superiority
Or else for the Mayoralty.

JAKE:

Truth now thou dost say
It was even worth a play
To see the stakes jombling
And in the water tumbling.
And fast away they hied
Lest they should have been spied
And with a boat been followed
And with a serjeant arrested
For to come to the Mayor
In all gudly affair ...
How sayst Tom of Trumpington?

TOM OF TRUMPINGTON:

Forsooth sir down to Chesterton^[27]
Great store of stakes be gone
Swimming thither one by one.
Glad they have escaped
And not of the baillies attached.
Wherefore they hied them hence
Paying yet no toll pence
Witness Robin with the red nose
And Benet with the blue hose
And Francis few clothes
Ye affirm the same I suppose?

BUNTYNGE:

Sir I think that this work
Is as good as to build a kirk
For Cambridge Baillies truly
Give ill example to the country
Their commons likewise for to engrose
And from poor men it to enclose.

JAKE:

How sayest thou Peter Potter?
Is here good hunting of the otter?

PETER POTTER:

By Jesus sir the ditch be yuge (?) down,
Is the best hunting in all the town,
The poor say God bless your heart
For if it continued they should smart
The wives of it also be glad
Which for their cattle little meat had.
Some have but one sealy (?) cow
Where is no hay nor straw in mow
Therefore it is good conscience I ween
To make that common that ever hath been!

JAKE:

Thou Pyrse Plowman by name
How say'st thou by this game?

PYRSE:

Sir it is both game and glee
All things well ordered to see
So suddenly altered in a night.
All things yet done is but right.
I wonder at this covetous nation
That scratt and get all out of fashion.
They seem men of no conscience
But only to satisfy covetous pretence
Ever desiring to take money
As greedy of it as bees of honey.

JAKE:

... Hodge I thee commend ...
Because thou art a sturdy knave
Fit to wear anordyn Jacke (?)
And to lift up a wool pack
Wherewith of times my neck doth crack.
And you good friends every chone (*sic*)
I exhort ye all in one
To pass home right shortly
Lest the bailiffs do you spy
Or else serjeants with burbolts bright
Chance at you to have a flight
Therefore eschew before daylight
For till then they have no might....
Thus do I, Jack of the stile
Now subscribe upon a tile.

“This I do and will do with all my might
For slandering of me yet do I but right
For common to the commons again I restore
Wherever it hath been yet common before.
If again they enclose it never so fast
Again asunder it shall be wrast
They may be ware by that is past
To make it again is but waste.”

Fare well gentle reader.

CHAPTER VI

EXPLORATION

INTRODUCTORY NOTES

Voyages of Columbus

THESE accounts were written by Columbus himself, and may be amplified very much by reference to the originals in the Hakluyt Society's volume. Another account of the fourth voyage written by one of Columbus' men, Diago Mendez, is of special value. The accounts are here placed in their chronological order, but the passage on voyage three really relates to the whole series, and might with advantage be used as introductory. The Memorial on the second voyage is a very long official document, from which only a few fragments have been given in order to show the relations between Columbus and the sovereigns, and how from the first the Spanish Indies were under their direct personal control. Isabella had forewarded the discovery, and the new regions remained the property of the House of Castille rather than national provinces.

New Light on Drake

The Spanish reports have especial value in creating an impartial view of Drake's feats; the detailed personal character of the reports makes them exactly suitable for children. Zarate's evidence that Drake carried the Queen's commission conflicts with the usually accepted statements, but appears irrefutable evidence.

Letter to Sanchez, Treasurer.

The entire absence of resistance should be remarked, and the merely formal nature of the acquisition of rights.

It was, of course, the treasures of Cathay (see *Mediæval Voyages*, p. 37), inaccessible by the old Eastern routes since the Ottoman Turks seized the

Levant and Constantinople, which formed the original motive of exploration of a west or north-west route.

The inhabitants are still in the Stone Age, but have elements of religion and live peacefully and in comfort until attacked. The closing paragraph gives the main motives of the voyage as treasure, luxuries, and naval supply, but also indicates the genuinely religious zeal which must be reckoned with in all Portuguese and Spanish exploration (see also voyages three, four).

Memorial of Second Voyage.

The strongly-worded approval of the rulers was not carried into practical effect (see voyage four). Fonseca was constituted the royal agent for the whole intercourse with the New World.

Third Voyage.

Columbus's reference to "trustworthy and wise historians" seems to indicate that more was known of the New World than has been supposed, unless he is referring to records of the East. The progressive temper of the friars carries on the traditions of Rubruquis and Carpini, and may be used to balance the idea that the church was always reactionary and conservative.

Fourth Voyage.

Chiefly valuable for detail of the hardships and dangers encountered, and to illustrate the character and human relations of Columbus, and corroborate points made above.

COLUMBUS

(Select Letters of Christopher Columbus, Ed., R. H. Major; Hakluyt Society, 1847)

LETTER TO LORD RAPHAEL SANCHEZ, TREASURER TO THEIR
MOST INVINCIBLE MAJESTIES, FERDINAND AND ISABELLA,
KING AND QUEEN OF SPAIN (p. I).

... Thirty-three days after my departure from Cadiz I reached the Indian Sea, where I discovered many islands, thickly peopled, of which I took possession without resistance in the name of our most illustrious Monarch, by public proclamation and with unfurled banners. To the first of these islands I gave the name of Our Blessed Saviour [San Salvador].... As soon as we arrived at ... Juana [Nth. Caico] I proceeded along its coast a short distance westwards, and found it to be so large and apparently without termination, that I could not suppose it to be an island, but the continental province of Cathay....

At length after proceeding a great way and finding that nothing new presented itself, and that the line of coast was leading us northwards (which I wished to avoid because it was winter) and it was my intention to move southwards and because the winds were contrary, I resolved not to attempt any further progress but rather to turn back.

... All these islands are very beautiful and distinguished by a diversity of scenery; they are filled with a great variety of trees of immense height, and which I believe to retain their foliage in all seasons; for when I saw them they were as verdant and luxuriant as they usually are in Spain in the month of May—some of them were blossoming, some bearing fruit—yet the islands are not so thickly wooded as to be impassable.... The nightingale and various birds were singing in countless numbers, and that in November, the month in which I arrived there.... There are besides, seven or eight kinds of palm-trees ... the pines also are very handsome, and there are very extensive fields and meadows, a variety of birds, different kinds of honey, and many sorts of metals, but no iron....

The inhabitants of both sexes ... go always as they were born, with the exception of some of the women, who use the coverings of a leaf or small bough, or an apron of cotton which they prepare for that purpose. None of them are possessed of any iron, neither have they weapons ... because they are timid and full of fear. They carry, however, in lieu of arms, canes dried in the sun, on the ends of which they fix heads of dried wood, sharpened to a point, and even these they dare not use habitually ... and have fled in such haste at the approach of our men, that the fathers forsook their children and the children their fathers.... I gave to all I approached whatever articles I had about me, such as cloth and many other things, but they are naturally timid and fearful ... they are very simple and honest and exceedingly liberal

with all they have ... they also give objects of great value for trifles ... a sailor received for a leather strap, gold worth three golden nobles ... thus they bartered like idiots, cotton and gold for fragments of bows, glasses, bottles and jars; which I forbade as being unjust....

They practise no kind of idolatry, but have a firm belief that all strength and power, and indeed all good things, are in Heaven, and that I had descended from thence with these ships and sailors, and under this impression was I received after they had thrown aside their fears. Nor are they slow or stupid but of very clear understanding....

On my arrival I had taken some Indians by force from the first island that I came to, in order that they might learn our language and communicate to us what they knew respecting the country; which plan succeeded excellently, and was a great advantage to us, for in a short time, either by gestures and signs or by words, we were enabled to understand each other. These men are still travelling with me. At any new place ... crying out ... to the other Indians, "Come, come and look upon beings of a celestial race," upon which both men and women, children and adults, young men and old, when they got rid of the fear they at first entertained, would come out in throngs, crowding the roads to see us, some bringing food, others drink, with astonishing affection and kindness. Each of these islands has a great number of canoes, built of solid wood, narrow and not unlike our double banked boats in length and shape, but swifter in their motion: they steer them only by the oar.... (pp. 9, 10).

I ordered a fortress to be built there [Espanola] which must by this time be completed, in which I left as many men as I thought necessary, with all sorts of arms and enough provisions for more than a year.

... I did not find, as some of us had expected, any cannibals amongst them, but on the contrary, men of great deference and kindness. Neither are they black like the Ethiopians: their hair is smooth and straight.... I saw no cannibals, nor did I hear of any, except in a certain island called Chari (? Carib).

Finally ... I promise, that with a little assistance afforded me by our most invincible sovereigns, I will procure them as much gold as they need, as great a quantity of spices, of cotton and of mastic, and as many men for the

service of the navy as their Majesties may require. I promise also rhubarb and other sorts of drugs.... (p. 15).

But these great and marvellous results are not to be attributed to any merit of mine, but to the Holy Christian faith, and to the piety and religion of our sovereigns.... Let processions be made and sacred feasts be held, and the temples be adorned with festive boughs.... Farewell.

CHRISTOPHER COLUMBUS,
Admiral of the Fleet of the Ocean.

Lisbon, 14th March.

MEMORIAL OF THE SECOND VOYAGE WITH COMMENTS THEREUPON OF FERDINAND
AND ISABELLA

... We have found upon the sea-shore ... so many indications of various spices, as naturally to suggest the hope of the best results for the future. The same holds good with respect to the gold mines; for two parties ... found ... a great number of rivers whose sands contained this precious metal in such quantities that each man took up a sample of it in his hand....

Their Highnesses return thanks to God for all that is here recorded, and regard as a very signal service all that the Admiral has already done, and is yet doing ... (pp. 70, 71).

We are very certain, as the fact has shown, that wheat and grapes will grow very well in this country. We must however, wait for the fruit.... There are also sugar-canes, of which the small quantity that we have planted has succeeded very well.

Since the land is so fertile, it is desirable to sow as much as possible: and Don Juan de Fonseca has been desired to send over immediately everything requisite for that purpose.... (pp. 77, 78).

LETTER ABOUT THE THIRD VOYAGE

This enterprise to the Indies [i.e., the original discovery] ... those who heard of it looked upon it as impossible, for they fixed all their hopes on the favours of fortune, and pinned their faith solely upon chance. I gave to the subject six or seven years of great anxiety, explaining ... how great service might be done to Our Lord, by this undertaking, in promulgating his Sacred

Name and most holy faith among so many nations.... It was also requisite to refer to the temporal prosperity which was foretold in the writings of so many trustworthy and wise historians, who related that great riches were to be found in these parts.... (p. 104).

In this your Highnesses exhibited the noble spirit which has always been manifested by you on every subject; for all others who had thought of the matter or heard it spoken of, unanimously treated it with contempt, with the exception of two friars [a Franciscan and a Dominican, afterwards Archbishop of Seville] who always remained constant in their belief of its practicability.

LETTER RELATING TO FOURTH VOYAGE

... I pushed on for Terra Firma, in spite of the wind and a fearful contrary current, against which I contended for sixty days, and during that time made only seventy leagues (p. 171) ... other tempests have been experienced but never of so long a duration or so fearful as this: many whom we looked upon as brave men, on several occasions showed considerable trepidation, but the distress of my son who was with me grieved me to the soul and the more when I considered his tender age for he was but thirteen years old, and he enduring so much toil for so long a time. The Lord however gave him strength even to enable him to encourage the rest, and he worked as if he had been eighty years at sea, and all this was a consolation to me.

I myself had fallen sick and was many times at the point of death, but from a little cabin that I had caused to be constructed on deck I directed our course. My brother was in the ship that was in the worst condition and the most exposed to danger; and my grief on this account was the greater that I brought him with me against his will (p. 172).

Such is my fate, that the twenty years of service through which I have passed with so much toil and danger, have profited me nothing, and at this very day I do not possess a roof in Castille that I can call my own; if I wish to eat or sleep, I have nowhere to go but to the inn or tavern, and most times lack wherewith to pay the bill. Another anxiety wrung my very heartstrings, which was the thought of my son Diege, whom I had left an orphan in Spain, and stripped of the honour and property which were due to him on my account.... (p. 173).

I stopped to repair my vessels and take in provisions, as well as to afford relaxation to the men, who had become very weak ... two Indians conducted me to Carambaru, where the people (who go naked) wear golden mirrors round their necks.... They named to me many places on the sea-coast where there were both gold and mines. The last that they mentioned was Veragua, nine days' journey across the country westward: they tell me there is a great quantity of gold, and that the inhabitants wear coral ornaments on their heads, and very large coral bracelets and anklets, with which article also they adorn and inlay their seats, boxes and tables. They also said that the women there wore necklaces hanging down to their shoulders (p. 175).... I had taken possession of land belonging to Quibian [a native chief]. When he saw what we did and found the traffic [in gold] increasing, he resolved upon burning the houses, and putting us all to death; but his project did not succeed for we took him prisoner, together with his wives, his children and his servants ... the Indians collected themselves together and made an attack upon the boats, and at length massacred the men. My brother and all the rest of our people were in a ship which remained inside [the river mouth, which had silted up]. I was alone outside upon that dangerous coast, suffering from a severe fever and worn with fatigue. All hope of escape was gone and I toiled up to the highest part of the ship, and with a quivering voice and fast-falling tears, I called upon your Highnesses' war-captains from each point of the compass to come to my succour, but there was no reply. [Columbus sleeps and sees a vision in which he is upbraided for want of faith] (p. 184).

I collected the men who were on land.... I departed in the name of the Holy Trinity, on Easter night, with the ships rotten, worn out and eaten into holes [by the teredo].... I then had only two left.... I was without boats or provisions, and in this condition I had to cross seven thousand miles of sea; or as an alternative to die on the passage with my son, my brother and so many of my people.... I send this letter by means of and by the hands of Indians; it will be a miracle if it reaches its destination (pp. 186, 189).

NEW LIGHT ON DRAKE

DEPOSITION BY NUNO DA SILVA AS TO HOW HE WAS MADE
PRISONER BY ENGLISH PIRATES ON HIS VOYAGE FROM

OPORTO TO BRAZIL (p. 301).

(*Conquest of New Spain*, Hakluyt Society Publications, Series II, Vol. 24.)

“This Englishman calls himself Francis Drake and is a man aged 38. He may be two years more or less. He is low in stature, thickset and very robust. He has a fine countenance, is ruddy of complexion and has a fair beard. He has the mark of an arrow wound in his right cheek which is not apparent if one does not look with especial care. In one leg he has the ball of an arquebuse that was shot at him in the Indies. He is [a great mariner] the son and relative of seamen, and particularly of John Hawkins in whose company he was for a long time.”

AN ABRIDGEMENT OF THE RELATION AND PROOFS MADE
AGAINST SIR FRANCIS DRAKE, KNIGHT, TOUCHING HIS
DOINGS IN THE SOUTH SEA BEYOND THE STRAIT OF
MAGALANUS (p. 414).

It is informed the said Francis Drake went forth with 5 ships well appointed and in them 400 men of war, having for pilot a Portingall named Amador de Silva.

The said Drake came by Cape Verde and coasting the straits of Brazil arrived at the mouth of the Strait of Magalanus where there is a very good port named St. Julian, in the which they tarried wintering 2 months because of the great north winds which were contrary.

At the end of which time the 5 ships went out of the said port and sailing in the Strait they had a tempest so vehement that 2 of the said ships perished and they received the men into 3 remaining ships which with 3 pinaces which they towed at their poops issued out of the Strait into the South Sea in 44 degrees of altitude and sailing towards the Sea, with a storm were 40 days in the Sea at dryte [? drift] and so the two ships did separate themselves and the said Drake remained alone which could never afterward see them.

It was understood that they went to the Malluccos and it was agreed between them that they should meet in 30½ degrees, which is the Cape St. Francis.

From thence Drake came to the port of St. Iago from Chile and entered into the ship of lyceniat Torres called “Capitana” which was surging there from the which he took 14m Pezos of gold and 1800 botazes of wine and some other things.

From thence he entered into the town and robbed the ornaments and bells of the church and broke down the doors of the cellars and brake the vessels of wine, and carrying with him the ship which he had spoiled, arrived in the port of Arica where a ship of Philippe Dorse [Corco] was out of which he took 34 wedges of silver and burned one other ship that was there of one Mr. Benito.

From the port they went forth in a pinnace with the two ships that they had robbed and they arrived in the sight of the port of Chile in Arequipa where there were laden in a ship of Bernal Bueno 500 wedges of His Majesty which the said Drake would have robbed, had not the men that were aboard by advice they had before, unladen and hided the same a-land.

From thence they went forth following their voyage and being in the high sea, took out of the two ships which they carried with them the apparel and other things they had need of and so left them.

And the 13th of February they arrived in the port of Callao of the City of Los Reys and entered into it and 3 hours after evening the said Drake and company went out in a pinnace to a ship of Michell Angell wherein he found nothing.

At the same time, there arrived a ship of Alonzo Rodriguez Baptista which came from the firm land laden with marchandizes which presently they took and robbed, hurting the said Alonzo and others that would have defended themselves.

There were other ships in that port to the which the said Drake and company went and cut their cables, because they should not follow and then departed carrying with them the said merchant’s ship.

The news being known to the Viceroy he commanded to arm two ships with a number of men that should go to pursue the ship of the said Drake which was within sight, which two ships went forth the very same day and came again the next day following, being not able to overtake him, bringing

with them the merchant's ship of the said Alonzo which the said Drake left behind him.

This Francis Drake went forth of the port of Callao and sailing amongst the coast arrived at the port of Paita where he took a boat arrived there with marchandizes, of the which he took those he thought best, and carried with him the pilot with whom he came along the coast enquiring of the ship of St. John de Anton, which was coming from Panama, the which he overtook 150 leagues from the said place, the first of March, and robbed all the treasure being therein. The day before it was understood that he had robbed another small ship which was coming from Guayaquill with eighteen thousand Pezos of gold and silver, and great quantity of tackling and other things of provision for the journey to the Phillypinas and Valiano, the which the royal audience had caused to be bought for the said effect.

All these things were done until the 24th of April in the year 1580.

LETTER FROM DON FRANCISCO DE ZARATE TO DON MARTIN
ENRIQUEZ, VICEROY OF NEW SPAIN (p. 201)

Realejo, Nicaragua,
16th of April, 1579.

I sailed out of the port of Acapulce on 23rd of March, and navigated until Saturday, 4th of April, on which date, half an hour before dawn, we saw, by moonlight, a ship very close to ours. Our steersman shouted that she was to get out of the way and not come alongside of us. To this they made no answer pretending to be asleep. The steersman then shouted louder, asking them where their ship hailed from. They answered "from Peru" and that she was "of Miguel Angel," which is the name of a well-known captain of that route.

The spokesman on the ship was a Spaniard, whose name I will tell Your Excellency further on.

The ship of the adversary carried her bark at her prow as though she were being towed. Suddenly, in a moment, she crossed our poop, ordering us "to strike sail" and shooting seven or eight arquebuse shots at us.

We thought this as much of a joke as it afterwards turned out to be serious.

On our part there was no resistance, nor had we more than six of our men awake on the whole boat, so they entered our ship with as little risk to themselves as though they were our friends. They did no personal harm to anyone, beyond seizing the swords and keys of the passengers. Having informed themselves who were on board ship, they ordered me to go in their boat to where their general was—a fact that I was glad of, as it appeared to me that it gave me more time in which to recommend myself to God. But in a very short time we arrived where he was, on a very good galleon, as well mounted with artillery as any I have seen in my life.

I found him promenading on deck, and, on approaching him, I kissed his hands. He received me with a show of kindness, and took me to his cabin where he bade me be seated and said: “I am a friend of those who tell me the truth, but with those who do not I get out of humour. Therefore you must tell me (for this is the best road to my favour): How much silver and gold does your ship carry?” I said to him, “None.” He repeated his question, I answered, “None, only some small plates that I use and some cups—that is all that is in her.” ... We talked for a good while before it was time to dine. He ordered me to sit next to him and began to give me food from his own plate, telling me not to grieve, that my life and property were safe. I kissed his hands for this.

He asked me if I knew where there was water to be had about here, adding that he needed nothing else, and that as soon as he found some he would give me leave to continue my journey....

On the following day, which was Sunday, he dressed and decked himself very finely, and had his galleon decorated with all its flags and banners.... He had entered the port of Callao de Lima and cut the cables of all the ships that were in port. As the wind was from the land they all went out to sea, where he had time to sack them at his will. Before he proceeded to do the same to ours he said to me: “Let one of your pages come with me to show me your apparel.” He went from his galleon at about nine in the morning and remained until towards dusk, examining everything contained in the bales and chests. Of that which belonged to me he took but little. Indeed he was quite courteous about it. Certain trifles of mine having taken his fancy,

he had them brought to his ship and gave me, in exchange for them, a falcheon and a small brazier of silver, and I can assure Your Excellency that he lost nothing by the bargain. On his return to his vessel he asked me to pardon him for taking the trifles, but that they were for his wife. He said that I could depart the next morning when the breeze would rise, for which I gave him thanks.... He left Colchero [a Spanish pilot] with me, and after this set sail. I understand that he carries three thousand bars of silver, and twelve or fifteen chests of pieces of eight, and a great quantity of gold. He is going straight to his country, and I believe that no vessel that went after him could possibly overtake him. He has an intense desire to return to his own country.

This general of the Englishmen is a nephew of John Hawkins, and is the same who, about five years ago, took the port of Nombre de Dios. He is called Francisco Drac, and is a man about 35 years of age, low of stature, with a fair beard, and is one of the greatest mariners that sails the seas, both as a navigator and as a commander. His vessel is a galleon of nearly 400 tons and is a perfect sailor. She is manned with a hundred men, all of service, and of an age for warfare, and all are as practised therein as old soldiers from Italy could be. Each one takes particular pains to keep his arquebuse clean. He treats them with affection, and they treat him with respect. He carries with him nine or ten cavaliers, cadets of English noblemen. These form part of his council which he calls together for even the most trivial matter, although he takes advice from no one. But he enjoys hearing what they say and afterwards issues his orders. He has no favourite.

The aforesaid gentlemen sit at his table, as well as a Portuguese pilot, ... who spoke not a word all the time I was on board. He is served on silver dishes with gold borders and gilded garlands in which are his arms. He carries all possible dainties and perfumed waters. He said that many of these had been given him by the Queen.

None of these gentlemen took a seat or covered his head before him, until he repeatedly urged him to do so. This galleon of his carries about thirty heavy pieces of artillery and a great quantity of firearms with the requisite ammunition and lead. He dines and sups to the music of viols. He carries trained carpenters and artisans, so as to be able to careen the ship at any time. Besides being new, the ship has a double lining. I understood that all the men he carries with him receive wages, because, when our ship was

sacked, no man dared take anything without his orders. He shows them great favour, but punishes the least fault. He also carries painters who paint for him pictures of the coast in its exact colours. This I was most grieved to see, for each thing is so naturally depicted that no one who guides himself according to these paintings can possibly go astray. I understood from him that he had sailed from his country with five vessels, four sloops (of the long kind) and that half of the armada belonged to the Queen. I believe this to be so for the reason that I am about to relate to Your Excellency.

This Corsair, like a pioneer, arrived two months before he intended to pass through [the strait] and during that time for many days there were great storms. So it was that one of the gentlemen, whom he had with him, said to him: "We have been a long while in this strait and you have placed all of us, who follow or serve you, in danger of death. It would therefore be prudent for you to give order that we return to the North Sea, where we have the certainty of capturing prizes, and that we give up seeking to make new discoveries. You see how fraught with difficulties these are." This gentleman must have sustained this opinion with more vigour than appeared proper to the General. His answer was that he had the gentleman carried below deck and put in irons. On another day, at the same hour, he ordered him to be taken out, and to be beheaded in the presence of all.

The term of his imprisonment was no more than was necessary to substantiate the lawsuit that was conducted against him. All this he told me, speaking much good about the dead man, but adding that he had not been able to act otherwise, because this was what the Queen's service demanded. He showed me the commissions he had received from her and carried....

I managed to ascertain whether the General was well liked, and all said that they adored him.

This is what I was able to find out during the time I spent with him.

I beseech Your Excellency to consider what encouragement it will be to those of his country if he returns thither. If up to the present they have sent cadets, henceforth they themselves will come, after seeing how the plans which this Corsair had made in the dark, and all his promises have come true. He will give them, as proofs of [the success of] his venture, great sums of gold and silver.

CHAPTER VII

ILLUSTRATIONS OF LIFE IN THE SIXTEENTH AND SEVENTEENTH CENTURIES

INTRODUCTORY NOTES

Hansards in London

STOW's account of the Steelyard and the work of the Easterlings, is valuable for the history of trade. It exhibits the alien as the great importer, practically monopolizing the foreign trade with England up to the reign of Henry IV, and continuing to dominate it till Elizabeth ended their privileges. It also shows their relations with self-governing London, and in the whole story can be traced the working out of conditions which the English later applied to their own overseas enterprises. The status of Merchant Adventurers, East India Company, etc., as self-governing communities privileged to exist in a foreign country seems the precise reproduction of the Hansard in England, and often reproduced the same injustice for the native merchant. The report of R. Wynyngton's capture of the Hansard fleet should be read in conjunction with this, and the position of the Hansards also compared to that of guilds of English merchants.

London Extracts

The enumeration of places, recently open country, serves to make vivid the part London was playing in the great increase of population and wealth due to the cloth industry, and the foreign adventures in trade of the Tudor period. The vivid Rembrandt picture of the night-watch suggests the utter darkness of the narrow mediæval lanes and alleys; while the regulations for rebuilding London give further suggestive details, e.g. shop-windows are still temporary, houses hitherto neither flush with one line of pavement nor of one height or style, and wood and thatch still prevail. The account of Skinner's Well also emphasizes this period of transition from an age of intimate feudal relations between great and small, with its accompanying inequalities, to the more individualistic and mercantile relations of the modern world.

East Indies

Sir T. Roe's embassy from James I to the Great Mogul (Jehanghir), gives the best account of that Indian court and government, and of the trade and position of the East India Co., still in its teens. The Portuguese, under Albuquerque, had created an empire in the Persian Gulf and Indian shores a century earlier. This had been challenged by Dutch traders, especially in the islands of the Indian Ocean and Malay Straits, who, in 1604, formed the Dutch East India Co. Persia had always traded with the Mogul Empire. Roe gives in this passage a valuable sketch of the relations of all five races, and lays down firmly the policy on which the English Company always hereafter insisted in theory, though constantly forced to abandon it in practice, namely that trade, and not territory, was their aim.

He also sets up the standard of honesty and honour in face of Oriental despotism, which British officials have always been expected to maintain. His statement, too, of the need of carefully selected presents, shows that the old practice seen in the Old Testament scriptures still existed in Asiatic negotiations. The Company's servants found themselves from the first obliged both to give and to receive them, even despite the Company's orders, and in 1773 "a talent of silver and two changes of raiment," i.e. a Kelaat, was the recognized gift of the Mogul's messenger.

The account of a "Court" meeting of the East India Company's Committees in London gives a glimpse of the regular course of their work in dividing gains, etc., and has an especially interesting note of the way they conducted their relations with the King, their debtor, through the mediation of a famous courtier.

Captain Rannie's evidence, as a Company's military officer on the spot, is striking as showing how the struggle between Dupleix and Clive in the Carnatic had reacted by alarming the Nawabs of Bengal; and, again, in tracing their hostility further to the interference with trade and its dues, on which, perhaps as much as on land-dues, the ruler's treasury depended. These were the grievances which caused our later troubles with Mir Jaffier and Mir Cossim, our own nominees, and they were not ended till Warren Hastings, with twenty years' experience as a trader, came to govern and to reform them in 1773.

Life of T. Raymond

The chief value of these extracts lies in the insight they give into the domestic life of courtiers, of an ambassadors' suite, of common soldiers and officers on campaign, of the utter ruin of the population at the seat of war. This is an interesting commentary on the condition to which most of the German states must have been reduced during the incessant campaigning of the Thirty Years' War.

A Court Leet

Both the origin and name of courts leet is obscure; they were possibly survivals of the Anglo-Saxon hundred courts, seem to have a popular origin, and were certainly the courts in which review of Frankpledge was held, and other petty police work done.

Dugdale's "History of Draining"

This is valuable for a picture of the gradual process by which England changed from the fen and forest condition in which the Romans found it, to the corn-producing country of to-day. The passages quoted deal with the draining of the area about the Wash, from which the sea had gradually receded, and which is known as the Great Level, or the Bedford Level. Dugdale wrote at the close of the Commonwealth period, and his review brings out the value of the monastic care of the drainage works up to the dissolution of the abbeys; also the fact that such undertakings as this requiring capital were managed by companies of Adventurers, exactly similar to those who took up colonization. The grants of land by which Bedford and his associates were repaid, are an instance of the way the members of such Companies grew to be the plutocrats who, in the eighteenth century, were able to control politics by the purchase of seats or of votes in Parliament. Bedford was the recognized head of a great party under George II and George III.

LONDON THE HANSA LEAGUE'S HOUSE IN LONDON

(Stow, Book II, p. 202)

Next to [Cofin Lane] is the Stelehouse, or Steleyard (as they term it) a Place for Merchants of Almaine [German States] that used to bring hither, as well Wheat, Rye, and other Grain, as Cables, Ropes, Masts, Pitch, Tarr,

Flax, Hemp, Linen Cloth, Wainscots, Wax, Steel and other profitable Merchandises. Unto these Merchants, in the Year 1239, Henry III at the request of his brother, Richard Earl of Cornwall, King of Almaine, granted that all and singular the Merchants have a House in the City of London, commonly called Guilda Aula Theutonicorum, should be maintained and upholden through the whole Realm, by all such Freedoms, and free Usages or Liberties, as by the King and in his noble Progenitors Time, they had enjoyed....

And in the 10th Year of the same Edward II Henry Wales being Maior, a great Controversie did arise between the said Maior and the Merchants of the Haunce of Almaine, about the Reparations of Bishopsgate, then likely to fall; for the said Merchants enjoyed divers Privileges, in respect of maintaining the said Gate, which they now denied to repair ... a Precept was sent to the Maior and Sheriffs, to destrain the said Merchants to make the Reparations.... And so they granted 210 Marks sterling to the Maior and Citizens and undertook that they and their Successors should (from Time to Time), repair the said Gate, and bear the third Part of the Charges in Money and Men to defend it when need were.

And for this Agreement, the said Maior and Citizens granted to the said Merchants their Liberties, which, till of late they have enjoyed; as, namely, amongst other, that they might lay up their Grain, which they brought into this Realm, in Inns, and sell it in their Garners, by the Space of forty Days after they had laid it up, except by the Maior and Citizens they were expressly forbidden because of Dearth, or other reasonable Occasions. Also they might have their Alderman, as they had been accustomed, foreseen always, that he were of the City, and presented to the Maior and Aldermen of the City, so oft as any should be chosen, and should take an Oath before them to maintain Justice in their Courts, and to behave themselves in their Office according to Law, and as it stood with the Customs of the City....

Their Hall is large, builded of Stone, with three arched Gates towards the Street, the middlemost whereof is far bigger than the other, and is seldom opened, and the other two be mured up: The same is now called the Old Hall. Of later time, to wit ... Richard II they hired one House next adjoining.... This also was a great House, with a large Wharf on the Thames. And the way thereunto was called ... Windgoose Alley, for that the

same Alley is (for the most part) builded on by the Stilyard Merchants (p. 204).

About the time of King Henry IV the English began to trade themselves into the East Parts. At which the Easterlings, or Merchants of the Dutch Hauns, were so offended that they took several of their Ships and Goods.... The result of which in short was this, that the said King Henry IV did revoke Parts of the Privileges of the aforesaid Dutch Company as were inconsistent with the carrying on of a Trade by the Natives of this Realm: And ... grant his first Charter to the [English Merchants trading into the East Land].

In the first and second of Philip and Mary, was granted the Charter to the Russia Company afterwards confirmed by ... Queen Elizabeth. Until whose time, though the Trade of this Nation was driven much more by the Natives thereof, than had been formerly, yet had the Society of the Dutch Hans at the Steel Yard much the advantage of them by means of their well-regulated Societies and the Privileges they enjoyed. Insomuch that almost the whole Trade was driven by them, to that degree that Queen Elizabeth herself, when she came to have a War, was forced to buy the Hemp, Pitch, Tar, Powder, and other naval Provisions; which she wanted, of Foreigners: and that too at their Rates. Nor was there any Stores of either in the Land, to supply her Occasions on a sudden, but what at great Rates she prevailed with them to fetch for her, even in time of War: Her own subjects then being but very little Traders. To remedy which she fell upon the Consideration [of] encouraging her own subjects to be Merchants ... and cancelling many of the Privileges of the afore-mentioned Dutch Hans Society, the Trade in general by degrees came to be managed by the Natives of this Realm. And consequently the Profit of all these Trades accrued to the English Nation. Trade in general and English Shipping was encreased; her own Customs vastly augmented and, what was at first the great End of all, obtained, viz., that she had constantly lying at home, in the Hands of her own Subjects, all sorts of naval Provisions and Stores; which she could make use of, as her Occasions required them without any dependence on her Neighbours for the same. And thus by means of encouraging the ... Merchant Adventurers ... was the Trade at first gained from the Foreigners.... Then is one other great

House ... which in the fifteenth of Edward IV was confirmed unto the said Merchants (p. 205).

In the year 1551 ... through Complaint of the English Merchants, the Liberty of the Steelyard Merchants was seized into the King's Hands, and so it resteth.

CHANGES IN LONDON

(Stow, Book II, p. 1)

This great and populous City contains in the whole six or seven hundred Streets, Lanes, Alleys, Courts and Yards of Name, and generally very full of Inhabitants. Before the late dreadful Fire of London, the Houses within the Walls were computed to be about 13000; and that is accounted not a sixthe Part ... and in these late Years whole Fields have been converted into Buildd Streets, ... as the great Buildings about the Abbey of Westminster, Tuthill Fields, and those Parts; Then the greatest part of St. James' Parish, ... all the Streets in the Soho Fields,. .. also all Bloomsbury ... all Hatton Garden ... the Great and Little Lincoln's Inn Fields, all Covent Garden ... etc., etc., and in the East and North Parts, the Spittle Fields, etc. All which were only Fields and Waste Grounds.

1598. (Ibid. p. 242)

In our Time ... other [Enormities] are come in place ... meet to be reformed. And first ... Encroachments on the High Ways, Lanes, and common Grounds, in and about this City....

Then the number of Cars, Drays, Carts, and Coaches, more than hath been accustomed (the Streets and Lanes being straightened), must needs be dangerous, as daily Experience proveth.

The Coachman rides behind the Horse Tails, lasheth them and looketh not behind him. The drayman sitteth and sleepeth on his Dray and letteth his Horse lead him home.

I know, that by the good Laws and Customs of this City, shod^[28] Carts are forbidden to enter the same, except upon reasonable Causes (as the Service of the Prince, or such like) they be tolerated. Also that the Fore Horse of every Carriage, should be led by Hand. But these good orders are not observed.

[In the time of King Richard II] Anne, Daughter to the King of Bohemia ... first brought hither the riding upon side-saddles; and so was the riding in ... Whirlicotes and Chariots forsaken ... but now of late Years, the Use of Coaches brought out of Germany, is taken up and made so common, as there is neither Distinction of Time, nor Difference of Persons observed; for the World runs on Wheels with many, whose Parents were glad to go on foot.

CAUSES OF THE FIRE OF LONDON

(Stow, I, p. 227)

“Natural causes which might occasion such a general ruin.”

1. The Time of the Night when it first began, viz., between One and Two of the Clock after Midnight, when all were in a dead Sleep.

2. It was Saturday Night, when many of the most eminent Citizens, Merchants and others, were retired into the Country, and none but servants left to look to their City Houses.

3. It was in the Long Vacation ... when many wealthy Citizens and Tradesmen are wont to be in the Country at Fairs, and getting in of Debts, and making up Accounts with their Chapmen.

4. The closeness of the Building and Narrowness of the Streets, in the Places where it began [i.e., Pudding Lane] did much to facilitate the Progress of the Fire; by hindring of the Engines to be brought to play upon the Houses on Fire.

5. The Matter of which the Houses, all thereabouts, were; viz. Timber, and those very old.

6. The Dryness of the preceding Season; there having been a great Drought even to that very Day, and all the Time that the Fire continued, which had so dried the Timber, that it was never more apt to take Fire.

7. The Nature of the Wares and Commodities stowed and vended in those Parts, were the most Combustible of any other sold in the whole City: as Oyl, Pitch, Tar, Cordage, Hemp, Flax, Rosin, Wax, Butter, Cheese, Wine, Brandy, Sugar, etc.

8. An Easterly Wind (which is the dryest of all others)—had blown for several Days together before; and at that Time very strongly.

9. The unexpected failing of the Water thereabouts at that Time; For the Engine at the North End of Tower Bridge, called the Thames Water Tower (which supplied all that part of the City with Thames Water) was out of Order, and in a few Hours was itself burnt down, so that the Water Pipes, which conveyed the Water from thence through the Streets were soon empty.

10. Lastly: An unusual Negligence at first, and a confidence of easily quenching it, and of its stopping at several probable places afterwards; turned at length to a Confusion, Consternation and Despair; People choosing rather by Flight to save their Goods, than by a vigorous Opposition to save their own Houses and the whole City.

To all which Reasons must not be passed over the general Suspicion that most then had of Incendiaries, laying combustible Stuff in many Places, having observed divers distant Houses to be on Fire together. And many were then taken up on Suspicion.

THE REBUILDING OF THE CITY

(Ibid., p. 231)

Notwithstanding the extraordinary Losses by the forementioned Fire, the devouring Pestilence in this City the Year preceding, and the chargeable War with the Dutch at that Time depending yet by ... the Diligence and Activity of the Lord Maior, Aldermen, and Commoners of the said City (who were almost the only Losers by that fatal Accident) was in the Space of Four or Five Years well nigh rebuilt.

RULES AND DIRECTIONS TO BE OBSERVED IN THE REBUILDING

2. That there shall be only four Sorts of Buildings and no more; and that all manner of Houses so to be Erected shall be of one of those four Sorts of Building and no other.

The first and least sort of Houses, fronting By-streets or Lanes.

The second Sort of Houses, fronting Streets or Lanes of Note.

The third Sort of Houses, fronting high and principal Streets.

The fourth and last of Mansion Houses for Merchants, Citizens or other Persons of extraordinary Quality; not fronting either of those former Ways. And the Roofs of each of the first three Sorts of Houses shall be uniform.

3. That all the Outsides of all Buildings in and about the said City be henceforth made of Brick or Stone, or of Brick and Stone together.

5. That the Houses of the least sort of Building, fronting By-streets or Lanes, shall be of two Stories high.... The first Storey Nine Foot high from the Floor to the Ceiling; and the second Storey Nine Foot. That all Walls in Front and Rear (so high as the first Storey) be of the full Thickness of two Bricks at length; and upwards to the Garrets of the thickness of one Brick and a half; and the Walls at the Eves of the Garrets not to be less than one Brick.

9. And for the greater Grace and Uniformity of the Buildings in the high and principal Streets, it is Enacted, That all Houses hereafter to be erected in any of them shall have Balconies Four Foot broad with Rails and Bars of Iron, equally distant from the Ground....

10. That no Builder ... be permitted to lay his first Floor over the Cellar, more than 13 inches above the Street, or less than Six, with one circular Step to lead up thereto to be placed without the Building. And that no Trap Doors or Open Grates be in any wise suffered to be made into any such Cellar or Warehouse without the Foundations of the Front; but that all Lights to be made into any of them be henceforth made upright, and not otherwise. And that no Bulks, Jetties, Windows, Ports, Seats or anything of like Sort, shall be made or erected, in any Streets, Lanes, or By-lanes, to extend beyond the ancient Foundation of Houses ... it shall be lawful for the Inhabitants, to suffer their Stall-boards when their Shop Windows are set open to turn over Eleven Inches, and no more from the Foundation of their Houses into the Streets, for the better conveniency of their Shop Windows.

LONDON NIGHT-WATCHES

(Stow, *ibid.*, p. 256)

Besides the standing Watches, all in bright Harness, in every Ward and Street in this City and Suburbs, there was also a marching Watch, that passed through the principal Streets thereof, to wit, from the Little Conduit by Paul's Gate through West Cheap, by the Stocks, through Cornhill (etc.,

etc.), to Aldgate and up Grasse Church Street into Cornhill, and through into West Cheap again, and so broke up. The whole Way (measured) ... 3200 Taylors Yards of Assize. For the Furniture whereof with Lights, there were appointed 700 Cressets, 500 of them being formed by the Companies, the other 200 by the Chamber of London. Besides the which Lights, every Constable in London, in number more than 240 had his Cresset ... and every Cresset had two Men, one to bear or hold it, another to bear a Bag with Light, and to serve it: so that the Poor Men pertaining to the Cressets taking Wages, besides that everyone had a Strawen Hat, with a Badge painted, and his Breakfast, amounted in number to almost 2000. The Marching Watch contained in number about 2000 Men; part of them being old Soldiers, of skill to be Captains, etc., ... Drummers, Demi-launces on great Horses, Gunners with hand Guns, ... Archers in Coats of white Fustian, signed on the Breast and Back with the Arms of the City, their Bows bent in their Hands, with Sheafs of Arrows by their Sides, Pikemen in bright Corselets, ... Bellmen in Almain Rivets, and Aprons of Mail in great Number.

There were also divers Pageants, Morris Dancers, Constables, the one half of which was 120, on St. John's Eve, the other half on St. Peter's Eve, in bright Harness, some over Gilt, and every one a Jorret of Scarlet thereupon, and a Chain of Gold, his Hench Men following him, his Minstrels before him, and his Cornet Light passing by him: the Waits of the City, the Maior's Officers, for his Guard before him, all in a Livery of Worsted or Sea Jackets, party-coloured; the Maior himself, well mounted on Horseback, the Sword Bearer before him in fair Armour, well mounted also; the Maior's Foot Men, and the like Torch Bearers about him; Hench Men twain, upon great Stirring Horses following him.

WRESTLING AT SKINNER'S WELL

(Ibid., p. 257)

In the Month of August, about the Feast of S. Bartholomew the Apostle, before the Lord Maior, Aldermen and Sheriffs of London, placed in a large Tent near unto Clerkenwell, of old time were divers Days spent in the Pastime of Wrestling; where the Officers of the City, namely the Sheriffs, Sergeants and Yeomen, the Porters of the King's Beam, or Weigh House (now no such Men) and other of the City, were challengers of all Men in the Suburbs, to wrestle for Games appointed. And on other Days, before the

said Maior, Aldermen and Sheriffs, in Finsbury Field to shoot the Standard, broad Arrow and flight, for Games. But now of late Years, the wrestling is only practised on Bartholomew Day in the Afternoon, and the Shooting some three or four Days after, in one Afternoon and no more.

What should I speak of the ancient, daily Exercises in the long bow by Citizens of this City, now almost cleanly left off and forsaken? I overpass it. For by the Means of closing in of Common Grounds, our Archers for want of room to shoot Abroad, creep into Bowling Alleys, and ordinary Dicing Houses, near Home; where they have room enough to hazard their Money at unlawful Games, where I leave them to take their pleasures.

This was one of the great Uses of Publick Houses in former Time, namely for Game and Exercise rather than for drinking excessively....

Now a Days the Recreations of the Citizens, besides Drinking, are Cockfighting, Bowling greens, Tables, Cards, Dice, Billiard Tables, Musick Entertainments, Dancing, Masks, Balls, Stage Plays, Club Meetings in Evenings, Riding out on Horseback, Hunting with My Lord Maior's Pack of Dogs, when the Common Hunt goes out; the Citizens having Privilege by their Charter to hunt in Middlesex, Hertfordshire, in the Chilterns, and in Kent as far as Gray Water.

The more common sort divert themselves at Football; Wrestling, Cudgels, Ninepins, Shovelboard, Cricket, Stowball, Ringing of Bells, Quoits, pitching the Bar, Bull and Bear baiting, throwing at Cocks.

THE USE OF ARMS. C. 1588

(Holinshed, II, 16)

"In times past, the chief force of England consisted in their long bows. But now we have in manner generally given over that kind of artillery.... But as our shooting is thus, in manner, utterly decayed among us one way: so our countrymen wax skilful in sundry other points as in shooting in small pieces, the caliver, and handling of the pike in the several uses whereof they are become very expert.

Our armour differeth not from that of other nations; and therefore consisteth of corselets, almain rivets, shirts of mail, jacks quilted and covered with leather, fustian, or canvas over thick plates of iron that are

sewed in the same ... of which there is no town or village that hath not her convenient furniture. The said armour and munition is kept in one, several place of every town, appointed by the consent of the whole parish; where it is always ready to be had and worn within an hour's warning.... Certes, there is almost no village so poor in England, be it never so small, that hath not sufficient furniture in a readiness to set forth three or four soldiers (as, one archer, one gunner, one pike, and a billman,) at the least. No, there is not so much wanting as their very liveries and caps; which are least to be accounted of, if any haste required....

Seldom shall you see any of my countrymen, above eighteen or twenty years old, to go without a dagger at the least, at his back or by his side; although they be aged burgesses or magistrates of any city, who, in appearances are most exempt from brabbling and contention.

Our Nobility commonly wear swords or rapiers, with their daggers as doth every common serving man also that followeth his lord and master. Finally no man travelleth by the way, without his sword or some such weapon, with us; except the Minister who commonly weareth none at all, unless it be a dagger or hanger at his side.”

REV. W. HARRISON, B.D.

THE EMBASSY OF SIR THOMAS ROE

(The Embassy of Sir Thomas Roe to the Court of the Great Mogul, 1615-19.
Ed., W. Foster. Vol. II; Hakluyt Society, pp. 342-5).

LETTER TO THE EAST INDIA CO., 24 NOV., 1616

... Your residence you need not doubt as long as you tame the Portugall ... he only can prejudice you. For a Fort, at my first arrival I received it as very necessary; but experience teaches me we are refused it to our advantage. If he [Jahangir] would offer me ten, I would not accept one. First, where the river is commodious, the country is barren and untraded.... Secondly the charge is greater than the trade can bear; for to maintain a garrison will eat the profit.... A war and traffic are incompatible. By my consent, you shall no way engage yourselves but at sea, where you are like to gain as often as to lose. It is the beggaring of the Portugall, notwithstanding his many rich residencies and territories, that he keeps soldiers that spend it; yet his

garrisons are mean. He never profited by the Indies since he defended them. Observe this well. It hath been also the error of the Dutch, who seek plantation here by the sword. They turn a wonderful stock, they prowle in all places, they possess some of the best; yet their dead payes consume all the gain. Let this be received as a rule that if you will profit, seek it at sea, and in quiet trade; for without controversy it is an error to affect garrisons and land wars in India. If you made it only against the naturals [natives] I would agree....

... The road of Swally or the Port of Surat are fittest for you in all the Mogul's territory.... You need no more; it is not number of ports, factories and residences that will profit you; they will increase charge but not recompense it.... The commodities you sell pass best in that quarter. The goods you seek being principally indigo and cloth (calicoes).

For the settling your trafique here, I doubt not to effect any reasonable desire. My credit is sufficient with the King [great Mogul], and your force will alway bind him to constancy.... But you must alter your stock. Let not your servants deceive you; cloth, lead, teeth [ivory], quicksilver are dead commodities and will never drive this trade. You must succour it by change....

Articles of treaty on equal terms I cannot effect: want of presents disgraced me. But yet by pieces I have gotten as much as I desired at once. I have recovered all bribes, extortions, debts made and taken before my time till this day; or at least an honourable composition. But when I deliver the next gifts to the Mogul.... I will set on anew for a formal contract.... Concerning private trade, [of the Company's servants] my opinion is you absolutely prohibit it and execute forfeiture, for your business will be the better done. All your loss is not in the goods brought home. I see here the inconveniences you think not of. I know this is harsh to all men and seems hard; men profess they come not out for bare wages. You shall take away the plea if you resolve to give very good to men's content; then you know what you part from. But you must make good choice of your servants and use fewer.

Note of Goods for Presents

Table knives, swords, gilt armour, precious stones, cloth of gold, looking glasses, arras, pictures, wines (strong waters are unrequested now), dogs,

ostrich plumes, silk stuffs (“but no blue, it is the colour of mourners”) and generally any rare knack to please the eye.... (p. 356).

LETTER TO MASTER SECRETARY WYNWODE, NOV. 30, 1616

“The trade is profitable and fit for England, but no way understood by the Company how to effect it at best advantage.... I assure your Honour it is not fit to keep an Ambassador in this Court. I have shuffled better out and escaped and avoided affronts and slavish customs clearer than ever any did. I am allowed rank above the Persian, but he outstrips me in rewards; his Master lies near us. But His Majesty commanded me to do nothing unworthy the honour of a Christian King, and no reward can humble me to any baseness” (p. 358).

EAST INDIA COMPANY COURT MINUTES

(*Court Minutes of the East India Company*, 1635-1659. Ed. E. B. Sainsbury: Oxford University Press, p. 183)

A COURT OF COMMITTEES, AUGUST 4, 1641

Nathaniel Hawes transfers to Robert Freeman 942l. 10s. adventure and profits in the Third Joint Stock, (subscribed in 1631) ‘the principal being divided.’

The Court, understanding that 438 bales of Legee silk, 50 bales of Ardas, and 39 of Mazandran were returned in the (E.I.C.s’ ship) *Crispian*, directs that each adventurer shall receive for his division five-sixths in Legee, and one-sixth in Ardas or Mazandran and desires three Committees to oversee the delivery of the said divisions.

Captain Stiles is desired to go aboard the *Hopewell* and give directions for all her lumber, guns and ordnance to be put ashore, all private trade to be sent up to the Custom House, and nothing more to be unladen until further order.

The Governor opines that as the year is passing, the generality should be called together about a new subscription for a Particular Voyage for this year; after some debate it is resolved to await the King’s recommendation upon the Company’s petition to Parliament for renewal of its charter. The

Court decides to present Sir Harry Vane, who is and always has been ready to assist the Company on all occasions, with ‘fifty pieces.’

Mr. Ashwell to be paid for the looking glass he sent to Bantam. Mr. Stiles reports that he has been offered 4l. 10s. per ton for the defective ordnance, 10s. per ton more than the last was sold for; and is told to use his own judgement in this matter. John Gearing, his son John, and Richard Crawly are accepted as securities for cloves. The estate of the late William Fall, a factor in Persia, to be paid to his executrix. Certain Committees are desired to hear the difference between Mrs. Powell and Thomas Clarke who lately returned from India.

YOUNG COURTIER’S LIFE IN LONDON, C. 1630

(Autobiography of Thomas Raymond. Ed. G. Davies. Camden Series III, Vol. 28, p. 26)

I was taken from the Citty, where I expected to be planted, and brought to Courte, attending my unkle, whoe grew so rigorous that my life thereby became very unpleasant, and leaving the Citty for the Courte I was with the proverbe fallen out of the frying pan into the fier. Long waiting and short meales, sometimes cutt wholly out at my first coming by the voracity and nimbleness of the courtiers, and if by chance I was necessitated to make to our lodgings for dynner, I was sure to be entertayned with a look and words would almost fright the devill. But after a while by getting courage and acquaintance I made partly shift abroad, choosing rather to fast then go home and be rated. I remember my aunt was one day seemingly very importunate with a good neighbour woman, whoe came to visit her, to stay and dyne with hir. Whereupon my aunt called to hir mayde, “Nan sett on the whole rash of mutton,” which the good woman hearing tooke occasion to break away, haveing a farre better dynner at home.

Another tyme there was boyling on the fier in my unkle’s chamber a pipkin of pease pottage, and a Lord comeing to him unexpectedly on the sudden aboute business, with stifling aboute least the pipkin should be seene it was throwne downe, broke, and all the porridge aboute the chamber—a woefull disaster to my aunt for the losse of hir belly tymbre, and to my unkle least the Lord should have taken us in our cookery and misfortune. But the Lord was encountered before he could perceive the mischeife, a

miscarriage that often made me laugh heartily. Our lodgings were in a little straight howse built in a corner on the lefte hand as soon as you are out of the East door of Westminster Abbey, bellonging to one of the vergers of the Church, and is since demolished. My chanber was just under there, high towards on pynacle of the Abbey, and in rayney or wyndy nights there would fall downe upon the leades of the roofe of my chanber such huge pieces of freestone (those parts of the Church being much decayed and dayly decaying) that I often tymes thought I should be knocked on the head before morning. My unkle, being wondered at and sometymes laughed at for the place of his lodgings ... had a story to defend it....

Our remove from these lodgings was to Whitehall, and there in the third story of the first greate stone gate passing towards King strete where are kept the papers of state, whereof my unkle was now one of the clerkes and keepers. And here my condition was somewhat better ... that I was saved from the feare of being brayned in my bed, and only my legs had here the worst ont by mounting soe high soe often in the day.

PRIVILEGES OF AMBASSADORS, C. 1635

(Raymond, p. 57)

VENICE

The persons and howses of ambassadors are by the lawes of all nations sacred, and in this place as much as anywhere. Not only their howses are privileged but a considerable distance from them, within which no officer of justice must presume to come to follow or fetch away any offender that flies thither. And these priviledges are often abused by the attendants of ambassadors, whoe are too ready to protect offenders against the lawe. There stood very nere our Pallace a little howse into which certayne offenders had fledd, and there not only sheltred themselves, but contrary to the lawes of the place kept dicing and carding. Complaint was made thereof to the ambassador, that he would either cause them to be delivered to the justice or chase them from thence. But the ambassador, possibly by meanes of some of his servants, turned the deaf eare to their just requests, whereupon, after some waiting the ambassador's answers, in the dead tyme of night came the bargello with his men, and tooke these fellows out of their beds, and carried them to prison. And well for us it was that it was done

when we were all asleepe, otherwise wee must have defended our priviledges, though to the great endangering of our own lives and those officers. This bred a great difference between the State and my lord ambassador, who said the howse was his, and that the officers had violated the laws of nations by this proceeding, craved the persons taken out of the howse should be returned thither and the bergello and his officers severely punished for their impudence, etc. This matter proceeded to that height that the ambassador was ready to quitt the place, and a rupture between England and the Republick like to follow, but was at the last with much ado composed to the honour and satisfaction of the ambassador and the Republick. In the agitation of which business, being very hott on both sides, the King himselfe, good King Charles, did write once or twice to my lord ambassador with his owne handd, in which appeared his greate prudence and noe small affection for the person of the ambassador. (Basil, Lord Feilding).

EXPERIENCES OF A SOLDIER

(Raymond, p. 73)

FLANDERS, A.D. 1633

I observed how briske and fyne some English gallants were at the beginning of this campagne, but at the latter end ther briskenes and gallantry soe faded and cloudy that I could not but be mynded of the vanity of this world with the uneasiness of this profession. And truly, by what I have seene and felt, I cannott but thinck that the life of a private or comon soldier is the most miserable in the world; and that not soe much because his life is always in danger—that is little or nothing—but for the terrible miseries he endures in hunger and nakedness, in hard marches and bad quarters, 30 stivers being his pay for 8 days, of which they could not possibly subsist, but that they helpe themselves by foraging, stealing, furnishing wood in the feild to the officers, straw, some are cobblers, taylers, etc. Straw is ready money, especially at first comeing to new quarters. I remember at one place I saw a couple of soldiers that had found a little howse filled with strawe. One of them kept the dore whilst the other carried out the strawe by bunches to sell. Other soldiers came and would have part: these withstood them. At last others fell to chopping of the 4

corner posts, soe in a short tyme downe fell the howse and soe the strawe grew comon. It is hardly to be thought the devastation that an army brings into a countrie, and the hangers on of the army doe most of the mischeife. They march in no order, carry hookes by which they search wells and ditches for pewter or brasse that the poore countrie people have sunck to preserve them from the soldiers. Other places they dig up where they suspect anything to be hid, torturing the poore people to make them confesse, etc. Sometymes we came to a goodly feild of corne, which within a few minutes is trod flatt, to the very ground: faire howses unthatched, all the placher and wood work chopped downe if not fyred, pleasant orchards and walkes of trees in an instant chopped downe by the ground, etc. It pittied me at one place where we marched by a poore little howse, to which joined a little close of about an acre with bush. The poore woman came out, felled on hir knees, and holding up hir hands, praying the soldiers for Christ Jesus' sake to spare hir cropp. Twas all, she sayd, that she and hir poore children had to live on all the yere, makeing lamentable outcryes, but all to noe purpose. For, though there was forrage enough just by, with in a few minutes all this poore creatures crop was wholly destroyed.

A TREATISE ... CONCERNING ... THE METHOD FOR KEEPING A COURT LEET

(By John Wilkinson, of Bernard's inne, gent., London, 1638)

(*From Court Rolls of the Honor of Clitheroe*. Ed., W. Farrar, pp. xiii-xviii)

[Extracts]

Affrays and Bloodsheds

... You shall therefore first inquire if any man within your inquirie haue broken the peace, or made any affray or bloodshed. If any haue offended herein, you must present him or them, and the manner of it, with what weapon, for that it is forfeit to the Lord of this Leet, and the offender or offenders are to be fined for such offence.

Rogues

These persons by particular are said to bee by the Statute rogues, viz., Proctors of Spittle houses, Patent gatherers, or Collectors for Gaoles, prisons or Hospitals, Fencers, Bearwards, common Plaiers of enterludes, Minstrels wandering abroad, Glassemens, Saylers, Souldiers, Schollers, and all other idle persons which goe about begging.

Stocks

Also for the punishment of these offenders, you shall inquire if there bee in euery tything a paire of stockes, according as there ought to bee by the Statute, or no: if there bee not, then the tything doe lose V pounds.

Artillery (33 H. 8. ca. 9)

Also you shall inquire whether eueryone haue Bow and Arrowes according to the Statute, or no: for euery man child from seven yeeres old to seuteene ought to haue a Bow and two Arrowes, and euery man from seuteene to three score ought to haue a bow and foure arrowes, vpon paine of vjs viij for euery default: and parents ought to provide them for their children and masters for their seruants with their wages, or else they ought to undergoe the penaltie thereof.

Butts, 33 H. 8

And also that for the exercise of Archers in shooting at times convenient, there ought to be butts made in euery Tything, Village, and Hamlet, or else the Tything, Village, or Hamlet ought to lose xxs, for euery three moneths wanting Butsthere.

Plays or Games, 33 H. 8

Also you shall inquire if any Alehousekeeper or other person do keepe any unlawfull games in his or their house or houses, or elsewhere, as cards, dice, tables, loggets, quoits, bowles, or such like: in this case the house keeper loseth for euery day forty shillings, and every player vj viij for euery time.

Also Constables ought to search monethly for such unlawfull games and disorders in alehouses vpon paine of fortie shillings, and they may arrest such as they find playing at unlawfull games, and commit them to ward vntill they put in sureties not to play any more at any vnlawfull game. No

man may play at any vnlawfull game insatiably, unless hee can dispend C pounds per annum in lands, fees, or offices, for life at the least: and hee may not play neither in any open place where euery one that will may see him, but in his house, or in his Orchard or Garden, vpon paine of vj viij for euery time. Except in the Christmas time; for then all men may play.

Shooting in Guns, 33 H. 8, ca. 6

Next you shall inquire of such as shoot in hand gunnes or cross bowes; for no man may shoot in them vnlesse hee can dispend C pounds per annum in lands, tenements, officers, annuities, or fees, neither may those shoot at any Pheasant, Partridge, Herre, Duck, Mallard, Housedoue, Pigeon, Wigeon, Teale, or Heathcock, vpon paine of x pounds for euery shoot.

Highways

Next you shall inquire whether your high waies bee sufficiently amended and made passable, as they ought to be, or no; for to that end and purpose there ought to be two Superuisors chosen in euery Parish, between Easter and Midsomer, by the Constables and Church wardens; and there ought to be six days appointed for amending of highwayes, eight houres eury day, vpon paine of xxs to bee lost by the Superuisors. And every one that hath a cart to send two able men with it, with tooles fit for that seruice, or else to lose twelve pence for euery day wanting. And they ought most chiefly to amend the wayes leading to Market Townes; and they may gather stones in any man's grounds, and also digge pits of ten yards square in any man's seuerall for stones and rubbish (if it be needful), filling the same vp againe, without danger of Law. And they must turne springs, if they can, out of the high wayes; and trees and hedges which hang ouer the King's high wayes must be cut and shredded, vpon paine of xs for euery default.

Purprestures and Assarts, 18 Eliz. 2

Next you shall inquire of Purprestures and Assarts, and that is where any Wall, Hedge, Ditch, or House is set, leuied, or abated in the King's Highway, or any watercourse stopped or turned into the highway, to hinder the passage of the King's subjects, or any way annoy them.

Bounds and Marks

Also you shall inquire whether any mearestones or stakes bonds or markes, betweene this Lordship and any other, or betweene tenant and tenant, hath bin remoued since the last law day, or before, and not set in the vsual place again: if there be any which haue offended herein, you must present them.

Highways or Footsteps (Footpaths)

Also if any high wayes or footpathes to Church, Mill, or Market bee stopped or hedged vp, which haue beene accustomed to lye open, you must present him or them which shut it vp, for the King's subjects must not be stopped of his lawfull passage to Church, Mill or Market.

Common Bridges Broken

Also if any Common Bridges ouer Common Streames bee broken, that by reason thereof the King's subjects cannot pass about their affaires and businesses, you must present those which ought to make them, vpon a paine.

Common Pounds Broken

And also if common pounds bee broken, so that they will hold no distresse that is brought to them untill they bee deliuered thence by order of law, you must present those which ought to make such pounds, vpon a paine.

Sleepers by Day and Walkers by Night

Also you shall inquire of Sleepers by day, and walkers by night, to steale and purloine other men's goods and Conies out of Warrens, Fish out of men's seuerall Ponds or Waters, Hennes from Henhouse, or any other thing whatsoever, for they are ill members in a Common wealth, and deserue punishment: therefore if you know any such, present them.

Eavesdroppers

Also you shall inquire of Eues droppers, and those are such as by night stand or lye harkening under walles or windowes of other men's, to hear what is said in another man's house, to the end to set debate and dissension between neighbors, which is a very ill office: therefore, if you know any such, present them.

Forestallers, Regraters and Ingrossers

Also you shall inquire of Forestallers, Regraters, and Ingrossers, euill members in a Commonwealth.

A Forestaller is hee which buyeth or causeth to be bought any victualls whatsoever going to any Faire or Market to bee sold, and maketh any bargain for the buying thereof before the same bee brought into the Faire or Market, or doth make any motion for the inhancing of the price of any victuals, or doth mooue or perswade any person comming to the Faire or Market with victuals, to absent and forbear his comming thither with any victuall to be sold there.

Regrator is hee that getteth into his hands in any Faire or Market any Corne, Tallow, or Candles, or any dead victuall whatsoever, brought to any Faire or Market to be sold, and doth sell the same againe in any Fair or Market, within foure miles next adioyning thereunto.

An Ingrosser is he or she that doth ingrosse and get into his or her hands, by buying or promise taken, other than by demise, grant, or lease, of bonde or bill of Corne growing in the Fields, or any other Corne, Graine, butter, Cheese, Fish, or any other dead victuall whatsoever to the intent to sell the same again for profit.

For the first offence they ought to haue two moneths imprisonment, without bail or mainprise, and forfeit the value of the goods bought and sold.

For the second offence they ought to haue halfe a yeeres imprisonment, and to forfeit double the value of the goods bought and sold.

And for the third offence they ought to be set vpon the Pillorie, and to lose all their goods and chattels, and bee imprisoned during the King's pleasure.

Butchers

No butcher ought to sell in any open Fair or Market any other victuall then that which is good and wholesome for man's body, and for reasonable gaines, and not at excessive prices.

Shoemakers

They ought to make their Shooes and Bootes of good and well tanned Leather, and well licoured, curried, and sowed, to keep men dry of their legges and feet.

Tanners

Also you shall inquire of Tanners that haue vsed the occupation of a Cordwainer or a Currier, or that hath put any leather to sale, but red Leather as it came from the Tanne fatte, or that hath put any Hide or peece of Leather to sale, before it be well dried, marked, and sorted, and then sold in open market, or that hath tanned any sheep-skins.

Bakers

Also you shall inquire whether the bakers doe their duties or not, in making of good and wholesome bread for man's bodie, of sweet corne and not corrupted, and that they make their Bread in weight according to the price of wheat in three markets next adioyning, not changing the assise of Bread, but by six pence in weight in increasing or abating; and if they doe the contrarie, and be thereof duly conuicted, then for the first, second, and third time they shall bee amerced after the quantitie of their fault, and shall lose from time to time their bread so found too light in weight; but if they shall bee found faultie herein the fourth time, then they must be set vpon the pillorie in open market, whose punishment may not be released for gold or silver.

Also a baker must set his own proper marke vpon euery loafe of bread that hee maketh and selleth, to the end that if any bread be faultie in weight, it may be then knowne in whom the fault is.

Brewers, 5 H. 3. 51 E. 3

Also you shall inquire of Brewers and Typlers whether they make good and wholesome ale and beere for man's bodie, or not, and sell and utter the same according to the lawes and statutes of this Realme. And also they ought not to put out their signe or ale stake until their ale be assayed by the ale taster, and then to sell and not before.

Fishers, 25 H. 8 ca. 7. 31 H. 8. ca. 2

Also you shall inquire of Fishers whether they doe their duties or no, in bringing to the Market such fish as is good and wholesome for man's body, and not corrupt or stinking, and there sell the same at reasonable prices, without taking of any excessiue gains, but onely for euery twelue pence bestowing one penny cleere gaines ouer and beside their charges; and if any Fisher shall doe the contrarie, then he shall be grievously amerced from time to time, and his Fish, if it be corrupt and stinking, to bee taken from him and openly burned in the Market.

Also no man ought to fish with any Net, or Engine, angling onely excepted, but with such Net or Trannell as euery mesh shall be two inches and a half wide, except Nets onely to take Loches, Mennas, Bulheads, Gudgions, eeles, and none other Fish, vpon paine of XXs for euery time offending, and losse of the fish and the unlawfull Net.

False Weights and Double Measures, 51 E. 3

Also if any within your inquire shall vse any false Weights or double measures in deceiving of the King's subjects in buying with a great measure, and in selling with a lesse, the offender therof therein shall be grieuously punished and imprisoned vntill he hath made fine with the King for his offence.

No man ought to sell any corne, ale bread or wine but by a measure sealed with this letter H., vpon paine of forfeiture for the first offence, 6s. 8d., for the second offence, 13s. 4d., and for the third offence twenty shillings, and to bee set on the pillorie, to the example of others, and the measure not sealed to be broken, all which forfeitures are to the Lord of the Libertie where such offence is committed, and if it be in a citie or borough, then it is to the maior and communalitie.

Hunting Dogs

No Lay man may lawfully keepe any Greyhound or Hunting Dogge, Ferrits, or Nets, vnless he can dispend fortie shillings per annum, Freehold: nor no Spiritual man, vnlesse hee can dispend ten pound per annum of spirituall promotion, vpon paine of a yeares imprisonment.

Drunkards

Also you shall inquire of Drunkards, for they ought to bee presented and to pay if they be able for euery time they bee drunke Vs to the vse of the poore of the Parish where the offence is committed; if not able, then after conuiction thereof they ought to sit six houres in the Stockes.

Waifs, Strays and Felon's Goods, 18 E.2

Also you shall inquire of waifes, strays, and felon's goods. Waifes are Cattell stolne and weiued out of the possession of him that stole them, and straies are Cattell straid out of their haunt, and they ought to be seised vpon to the Lord's vse, and to be wreathed and put into an open place, and not in a couert, to the end the owner may have the view of them, and they must be cryed at three market towns next adioyning to the place where they are straid; and if they be not challenged within a yeare and a day, then they belong to the Lord of the soile where they are, by the Law, otherwise not.

Which is all manner of felon's goods which may (presently) after the felonie is knowne to be committed, be seized vpon, but not taken away, but left with the towneship, for the felon must haue his finding out of it so long as he liues vnconuicted or attainted; but when he is conuicted or attainted, his goods they properly belong to the Lord of the Leet, if he haue words for it in his Charter, otherwise they belong to the King.

Treasure Trove

Also you shall inquire of Treasure troues, either vpon the ground or within the ground: for if any hath been found within the jurisdiction of this Court, it belonged to the Lord of this Leet or Law day.

And to conclude, if there shall any other thing come to your knowledge meete to bee presented, and by any omitted to bee giuen in charge, you shall as well inquire thereof and present it as the rest.

DRAINING OF THE FENS

(Dugdale, *History of Imbanking and Draining*, p. 375)

It hath been a long received opinion, as well by the borderers upon the Fens as others, that the total drowning of this Great Level (whereof we have in our times been eyewitnesses) hath for the most part, been occasioned by the neglect of putting the laws of sewers in due execution in these latter

times; and that before the dissolution of the monasteries by King Henry VIII the passages for the water were kept with cleansing, and the banks with better repair, chiefly through the care and cost of those religious houses.

... but wholly to clear them was impossible without the perfect opening and cleansing of their natural outfalls.... In order whereunto the first considerable attempt ... was in 20 Eliz. the Queen then granting her commission to Sir Thomas Cecil, Sir W. Fitzwilliams, Sir Edward Montague and Sir Henry Cromwell, Knights, etc. Howbeit ... little was done.... But King James ... encouraged their proceedings therein, expressing his readiness to allow a part of his own lands to be so recovered, towards the charge of the work, in like proportion that other of his subjects should do....

After this ... the lords of the ... Privy Council ... desired them [the commissioners] to endeavour to satisfy all such persons as having no respect to the general good ... should oppose it ... the said commissioners ... concluded (with one consent) that this work of draining was feasible ... and most beneficial to the countries interested, to have good by, that ever was taken in hand of that kind in those days; ... The commissioners names subscribed thereto being these, viz.:

Oliver Cromwell, etc., Thomas Lambert, Robert Cromwell, Ireby, etc., etc.

Whereupon there was a particular view of the whole Level, begun ... (21 June, 1605) and ... the king himself ... incited them to fall in hand speedily with the work and the rather because that was a dry summer, and so the more proper for it ... intimating also that, for the better expediting thereof, he had employed his Chief Justice Popham to take pains therein ... they had information ... that in several places of recovered grounds, within the isle of Ely, etc. such as before that time had lived upon alms having no help but by fishing and fowling and such poor means, out of the common Fens, while they lay drowned, were since come to good and supportable estates.

The limitation of time allowed to Sir John Popham, knight, Lord Chief Justice, and the rest of the adventurers, for accomplishing the work, was to be ten years ...

... for the space of five years at the least ... there nothing appeareth of consequence to have been prosecuted therein, by reason of the opposition which divers perverse spirited people made thereto ... by bringing of turbulent suits in law ... and making of libellous songs ...

THE POWTES COMPLAINT

Come, Brethren of the water, and let us all assemble
To treat upon this matter, which makes us quake and tremble;
For we shall rue, if it be true, that Fens be undertaken,
And where we feed, in Fen and Reed, they'll feed both Beef and
Bacon.

They'll sow both beans and oats, where never man yet thought it,
Where men did row in boats, ere undertakers^[29] bought it:
But Ceres, thou behold us now, let wild oats be their venture,
Oh, let the frogs and miry bogs destroy where they do enter.

Behold the great design, which they do now determine,
Will make our bodies fine, a prey to crows and vermine:
For they do mean all fens to drain, and waters overmaster,
All will be dry, and we must die, 'cause Essex calves want
pasture.

Away with boats and rudder, farewell both boots and skatches,
No need of one nor th'other, men now make better matches;
Stilt-makers all and tanners shall complain of this disaster:
For they will make each muddy lake for Essex calves a pasture.

The feathered fowls have wings, to fly to other nations;
But we have no such things to help our transportations;
We must give place (oh grievous case) to horned beasts and
cattle,
Except that we can all agree to drive them out by battle, etc.

And upon the 12th of August (1618) ... at a general session of sewers held at Huntingdon ... there were appointed three commissioners of every county to accompany ... Sir Clement Edwards (one of the Clerks of the Council) ... who gave in this following certificate ... That forasmuch as the inhabitants of Marshland complained much.... And though there were many gentlemen of good worth in those parts who wanted neither zeal nor judgement to do service therein; yet it was conceived, that the work might be best effected by such as had no interest at all in the country.... In pursuance of which order, the said Earl of Arundel made a journey into those parts; where having treaty with Sir William Ayloffe, knight, baronet, Anthony Thomas, Esq., and others, they ... as undertakers in this great adventure, did make these following proposals, viz.:

1. To have all the King's lands drowned with fresh or salt water, which should be so recovered, at the free rent of 4d. the acre ...
2. To have all the Prince's lands upon the like condition.
3. To have of all subjects lands, so drowned all the year, two thirds to them the said undertakers ...
4. And of all such lands of subjects which lay drowned half the year, to have the one half ...

... the said undertakers did propose to begin their work at the sea, by opening the outfalls of Nene, and Welland; and to make the same navigable to Spalding and Wisbech, which would take away all fear of turning the water upon any neighbour country and draw the same into their true and natural channels....

... Certain it is, that no farther progress was made therein.... Howbeit ... at King's Lynne, upon the 1st of September (1630) there was a contract made with Sir Cornelius Vermuden, knight (a person well experienced in works of this kind) for the draining of this Level; and he, for his recompense therein, to have 95 thousand acres of the said surrounded lands: But the country not being satisfied to deal with Sir Cornelius, in regard he was an alien, they ... became humble suitors to Francis, then Earl of Bedford (who was owner of near 20 thousand acres about Thorney and Whittlesey, of this fenny level) to

undertake the work; at whose request, as also of the commissioners, he condescended thereto....

These things being thus settled, the said Earl taking in divers adventurers as participants with him therein, they cast the whole (95,000 acres) so allowed for their recompense, into 20 parts or lots....

The said Francis ... etc.... did obtain Letters Patents of Incorporation ... into a body politic, to be guardians and conservors of the Fen lands....

All which being accomplished about three years after in a session of Sewers held at Peterborough, 12 October, 1637, the whole Level was adjudged drained ... the charge of these works to the said Earl and his participants having been no less than an hundred thousand pounds....

But ... though the lands were very much improved by those works, yet were they subject to inundation especially in the winter season....

Hereupon ... Charles I ... did command divers gentlemen to give their advice ... amongst which ... Vermuden was one ... the king himself was declared the undertaker; and to have not only those 95,000 acres ... but also 57,000 acres more, to make the same fens as well winter grounds as summer grounds.... And that though the Earl of Bedford had not performed his undertaking, he should in recompense of his great charge in those rivers, cuts and drains ... have 40,000 acres....

The king's work [owing to the Civil War] being ... obstructed.... The Earl, etc., fell in hand with the work ... this main body of the fens is divided into three distinct Levels, viz., the North Level, the Middle Level and the South Level ... the Level on the 25th of March, 1653 was adjudged to be fully drained: Whereupon the said Earl and his participants had possession of those 95,000 acres awarded to them.

CHAPTER VIII EIGHTEENTH CENTURY EXTRACTS

INTRODUCTORY NOTES

MILITARY, religious and constitutional questions are not suitable for children, and are only touched here in Defoe's racy, if partisan, summary. The close of the first extract gives a clear statement of the theory of a compact by virtue of which, rather than by Divine right, the Whigs considered the King to reign.

American affairs, however, played a part in the interests of great classes of the nation, and in the growth of the empire. "No taxation," etc., was a party-cry rather than a real grievance; it was the monopolist trade rules demanded by British merchants that ultimately caused the war. To meet this monopoly the Americans adopted the successful policy of refusing to import British goods.

The "Appeal to France" shows the motives inciting our Continental enemies against us and also the weakness of America even at that date. In the writings of Franklin, Deane, and de Warville, can be seen the enthusiasm and debate which made the American example the real cradle of "Liberté, égalité, fraternité," a relation not usually stressed in English history books.

The main effect of the century was the growth of a great capitalist class able to control the national affairs, drawing their wealth from the colonies, from new methods of agriculture, or of finance and industry, such as are seen in the references to Defoe's Tour, Young's Northern Tour, the Life of Coutts, and indications of the new inventions in industry, and the conditions they produced.

A DEFENCE OF DISSENT

(D. Defoe's Works, 2nd edition, *A New Test of the Church of England's Loyalty*, p. 406 *et seq.*)

Our first Reformation from Popery was in the days of King Edward VI ... 'twas under him that the whole Nation and Government embraced the Protestant Reformed Religion ... and here it began to be called the Church of England.

Some enquiring Christians were for making farther steps, and carrying on the Reformation to a higher degree ... but the return of Popery under Queen Mary put a stop to the work in general.... Queen Elizabeth restored it again.... Those who insisted upon the further Reformation were then called Puritans, because they set up for a greater purity of worship; and they separated themselves from the Established Church....

Before this time there was no such thing as Church of England, it was then the Church of Rome^[30] that was the established National Church. The Protestants under the title of Lollards, Wickliffians, Hussites, what did they do? Did they, as our modern people say everybody should conform to what the Government commanded? No, the present Church of England party were the Dissenters, the Schismatics and Fanatics, in the days of Henry VIII were persecuted for not coming to Church, many of them put to death and always treated with scorn and contempt.... In the next Ages these come to have the power in their hands and forgetting that they had found it "Righteous in the sight of God to obey God rather than man," they treat those whose consciences oblige them to dissent from them, with the same contempt which themselves had received from the Roman [church] government.

Thus far they are upon even terms, as to obedience to their Superiors.

The Dissenters have the first occasion after this to show their submission under extraordinary pressures. Queen Elizabeth discountenanced them continually, and as good a queen as she was, put some of them to death. King James I hunted them quite out of the kingdom, made thousands of them fly into Holland and Germany, and at last to New England.... Under the reign of King Charles I, the case altered, the King and Parliament fell out about matters of civil rights and invasion of the liberties and properties of the people; the Puritans or Dissenters, call them what we please, fell in unanimously with the Parliament.

And here 'tis worthy of remark, that the first difference between the King and English Parliament did not respect Religion but civil property nor were the majority of the House Puritans, but true Church Protestants and English men. (There were but four Dissenters in all that Parliament).... (p. 408).

But the Parliament finding the Puritan party stuck close to their cause, they also came over [to] them when things came to a rupture ... the Whigs in 41 to 48, took up arms against their King, and having conquered him and taken him prisoner, cut off his head, because they had him: the Church of England took up arms against their King in 88, and did not cut off his head, because they had him not. King Charles lost his life because he did not run away; and his son, King James, saved his life because he did run away.... Nay if arguments may be allowed to have equal weight on both sides, the

Whigs have been the honester of the two, for they never protested any such blind, absolute and undisputed obedience to Princes, as the others have done.

It has always been their opinion, that Government was originally contrived by the consent and for the mutual benefit of the parties governed, that the people have an original, native right to their property, the liberty of their persons and possessions, unless forfeited to the Laws; that they cannot be divested of their right but by their own consent; and that all invasion of this right is destructive of the Constitution, and dissolves the Compact of Government and Obedience (p. 411).

They have always declared that they understand their allegiance to their governors to be, supposing they govern them according to the Laws of the Land; and that if Princes break this Bond of Government, the Nature of it is inverted, and the Constitution ceases of course....

This has been the avowed doctrine of the Dissenters, and indeed is the true sense of the Constitution itself; pursuant to this doctrine, they thought they had a right to oppose violence with force; believing that when Kings break Coronation Oaths, the Solemn Compact with their people, and encroach upon their civil rights, contrary to the Laws of the Land, by which they are sworn to rule, they cease to be the Lord's Anointed any longer; the sanction of their office is vanished, and they become Tyrants and enemies of mankind, and may be treated accordingly (p. 412).

SECTIONS OF DISSENTERS, 1705

(Ibid., *The Shortest Way to Peace and Union*, p. 456.)

The General body of the Dissenters are composed of four sorts, and those four so opposite in their tempers, customs, doctrine and discipline that I am of opinion 'tis as probable all four should conform to the Church of England as to one another.

There is the Presbyterian, Independent, Anabaptist and Quaker.... The Independent could never bear Presbyterian Government, that has been tried already; for they once pulled it down by the ears as intolerable. The Anabaptists in general, declare the Presbyterian would set up persecution from the old principle, that Presbyteries are "Jure divino" and therefore to

them, a Presbyterian Government would be all one with Popery. The Presbyterian would never brook an Independent or Anabaptist Government, because they count the one Sectary, and hardly admit the other to be Orthodox Christians. None of the three would bear the thought of a Quaker King, the Novelty would make mankind laugh at the proposal; the splendour and magnificence of a Court, and the necessary defence and offence which the Confederacies and interests of nations require, are things so inconsistent with this plain dealing Professor, that he must cease to be a Quaker when he began to be a King.

EIGHTEENTH CENTURY HOME INDUSTRIES

(D. Defoe, *Tour through Great Britain: Yorkshire*, Vol. III, p. 124)

YORKSHIRE. LEEDS CLOTH MARKET.

Leeds ... is a large, wealthy and populous town, standing on the north side of the river Aire, with great suburbs on the south side, and both joined by a stately stone bridge, so large and wide, that formerly the cloth-market was kept upon it, and therefore the refreshment given the clothiers by the inn-keepers (being a pot of ale, a noggin of pottage, and a trencher of boiled or roast beef, for two pence) [was] called the *Brigg-shot* for a long time, though now disused.

... The trade soon made the Market too great to be confined to the *Brigg*; so that it was removed to the High Street ... this bridge was fallen into decay ... and by the narrowness of the road over, occasioned by the buildings and other encroachments, made or set up at both ends and abutments of the bridge, the way or passage over the same was greatly confined and obstructed, and became ... dangerous to passengers on foot and horseback....

But the Cloth market held in the Cloth-hall at Leeds is ... perhaps not to be equalled in the world....

The Clothiers come early in the morning with their cloth ... at about six o'clock in the summer, and about seven in the winter, the Clothiers being all come by that time, the Market Bell at the Old Chapel by the bridge rings; upon which it would surprise a stranger, to see in how few minutes, without hurry, noise or the least disorder, the whole market is filled, all the benches

covered with cloth, as close to one another as the pieces can lie longways, each proprietor standing behind his own piece, who form a mercantile regiment, as it were, drawn up in a double line, in as great order as a military one.

As soon as the bell has ceased ringing, the factors and buyers of all sorts, enter the hall, and walk up and down between the rows, as their occasions direct. Most of them have papers with patterns sealed on them, in their hands; the colours of which they match, by holding them to the cloths they think they agree to. When they have pitched upon their cloth, they lean over to the clothier, and, by a whisper, in the fewest words imaginable, the price is stated; one asks, the other bids; and they agree or disagree in a moment.

The reason of this prudent silence is owing to the clothiers standing so near to one another; for it is not reasonable that one trader should know another's traffic.... The buyers generally walk up and down twice on each side of the rows, and in little more than an hour all the business is done. In less than half an hour you will perceive the cloth begins to move off, the clothier taking it up upon his shoulder to carry it to the merchant's house. At about half an hour after eight the Market Bell rings again, upon which the buyers immediately disappear, and the cloth which remains unsold is carried back to the inn.

Thus you see 10 or 20,000*l.* worth of cloth, and sometime much more, bought and sold in little more than an hour, the laws of the Market being the most strictly observed that I ever saw in any market in England.

If it be asked, how all these goods, at this place, at Wakefield and at Halifax are vended and disposed of? I would observe,

First, that there is an Home-consumption; to supply which several considerable traders in Leeds used to go with droves of pack horses laden with those goods, to all the Fairs and Market-towns almost over the whole island, not to sell by retail, but to the shops by wholesale, giving large credit. It was ordinary for one of these men to carry a thousand pounds worth of cloth with him at a time; and, having sold that, to send his horses back for as much more, and this very often in a summer. But of late they only travel for orders, and afterwards send the goods, by the common carriers, to the different places intended. For they travel chiefly at that season, because of the badness of the roads.

There are others who have commissions from London to buy, or who give commissions to factors and warehouse-keepers in London to sell for them who not only supply all the shop-keepers and wholesale men in London, but sell also very great quantities to the merchants, as well for exportation to the English Colonies in America, which take off great quantities of the coarse goods, especially New England, New York, Virginia, etc., as also to the Russia merchants, who send exceeding great quantities to Petersburg, Riga, Dantzic, Narva, Sweden and Pomerania, though of late the manufacture of this kind set up in Prussia and other Northern parts of Germany interfere a little with them.

The third sort are such as receive commissions directly from abroad, to buy cloth for the merchants chiefly in Hamburg, Holland, etc. These are not only many in number, but some of them very considerable in their dealings, and correspond with the farthest provinces in Germany....

Another hall is appropriated for the sale of white clothes.... This, though large, is much inferior to the other.

THE WEST RIDING, 1724

(Ibid., pp. 144-6)

... the nearer we came to Halifax, we found the houses thicker, and the villages greater in every bottom; and not only so, but the sides of the hills, which were very steep every way, were spread with houses; for the land being divided into small inclosures, from two acres to six or seven each, seldom more, every three or four pieces of land had an house belonging to them.

In short, after we had mounted the third hill we found the country one continued village, though every way mountainous, hardly an house standing out of a speaking distance from another; and as the day cleared up, we could see at every house a tenter, and on almost every tenter a piece of cloth, kersie or shalloon; which are the three articles of this country's labour.

In the course of our road among the houses, we found at every one of them a little rill or gutter of running water; if the house was above the road, it came from it, and crossed the way to run to another; if the house was

below us, it crossed us from some other distant house above it; and at every considerable house was a manufactory; which not being able to be carried on without water; these little streams were so parted and guided by gutters or pipes, that not one of the houses wanted its necessary appendage of a rivulet.

Again, as the dyeing-houses, scouring-shops, and places where they use this water, emit it tinged with the drugs of the dyeing-vat, and with the oil, the soap, the tallow and other ingredients used by the clothiers in dressing and scouring, etc., the lands through which it passes, which otherwise would be exceeding barren are enriched by it to a degree beyond imagination.

Then as every clothier must necessarily keep one horse, at least to fetch home his wool and his provisions from the market, to carry his yarn to the spinners, his manufacture to the fulling-mill, and when finished to the market to be sold, and the like; so everyone generally keeps a cow or two for his family. By this means, the small pieces of inclosed land about each house are occupied; and by being thus fed, are still farther improved by the dung of the cattle. As for corn, they scarce grow enough to feed their poultry.

Such, it seems, has been the bounty of nature to this country, that two things essential to life, and more particularly to the business followed here, are found in it ... I mean coals, and running water on the tops of the highest hills ... Nor is the industry of the people wanting to second these advantages. Though we met few people without doors, yet within we saw the houses full of lusty fellows, some at the dye-vat, some at the loom, others dressing the cloths; the women and children carding or spinning: all employed from the youngest to the oldest; scarce anything above four years old, but its hands were sufficient for its own support. Nor a beggar to be seen, nor an idle person, except here and there in an almshouse, built for those that are ancient and past working. The people in general live long: they enjoy a good air; and under such circumstances hard labour is naturally attended with the blessing of health, if not riches.

THE COAL TRADE

(Defoe, *The Complete English Tradesman*, Ed. 1841, Vol. II, p. 172).

The Newcastle coals, brought by sea to London, are bought at the pit, or at the steath or wharf, for under five shillings per chaldron; I suppose I speak with the most; but when they come to London, are not delivered to the consumers, under from twenty-five to thirty shillings per chaldron; and when they are a third time loaded on board the lighters in the Thames, and carried through bridge, then loaded a fourth time into the great west country barges, and carried up the river, perhaps to Oxford or Abingdon, and thence loaded a fifth time in carts or wagons, and carried perhaps ten or fifteen, or twenty miles to the last consumer; by this time they are sometimes sold from forty-five to fifty shillings per chaldron; so that the five shillings first cost, including five shillings tax, is increased to five times the prime cost.

And because I have mentioned the frequent loading and unloading the coals, it is necessary to explain it here once for all, because it may give a light into the nature of this river and coast commerce, not in this thing only, but in many others; these loadings are thus:—

(1) They are dug in the pit a vast depth in the ground, sometimes fifty, sixty to a hundred fathoms; and being loaded (for so the miners call it) into a great basket or tub, are drawn up by a wheel and horse, or horses, to the top of the shaft, or pit mouth, and there thrown out upon a great heap to lie ready against the ships come into the port to demand them.

(2) They are then loaded again into a great machine or wagon; which by the means of an artificial road, called a wagon-way, goes with the help of but one horse, and carries two chaldron, or more, at a time and this, sometimes three or four miles to the nearest river or water carriage they come at; and there they are either thrown into, or from a great storehouse, called a steath, made so artificially, with one part close to, or hanging over the water, that the lighters or keels can come close to, or under it, and the coals be at once shot out of the wagons into the said lighters, which carry them to the ships, which I call the first loading upon the water.

INDIA IN THE EIGHTEENTH CENTURY

CAUSES OF THE LOSS OF CALCUTTA

(Evidence of David Rannie, Captain in E.I. Co.'s service, August, 1756)

(S. C. Hill, *Bengal in 1756-57*, Vol. III, pp. 283-4)

The causes of the war were principally three, viz., our acting unjustifiably by the Moors [Mahommedans]; our being tricked out of Cassim bazaar Fort, and the example shown on the coast of Coromandel, where the English and French have in a great measure, it is said, divided the country, while their respective Nabobs are no better than shadows of what they should be.

The injustice to the Moors consists in that being by their courtesy permitted to live here as merchants, to protect and judge what natives were their [our?] servants, and to trade custom free, we under that pretence protected all the Nabob's subjects that claimed our protection, though they were neither our servants nor our merchants, and gave our *dustucks* or passes to numbers of natives to trade custom free, to the great prejudice of the Nabob's revenue, nay more, we levied large duties upon goods brought into our districts from the very people that permitted us to trade custom free, and by numbers of their [our?] impositions [framed to raise the Company's revenue] some of which were ruinous to ourselves, such as taxes on marriages, provisions, transferring land, property, etc., caused eternal clamour and complaints against us at Court.

INFLUENCE OF ENGLISH MERCHANTS ON COLONIAL POLICY

(Callender, *Economic History of the United States*, p. 140. Franklin, *Causes of American Discontent*, Works, IV, p. 249)

The colonists being thus greatly alarmed ... by the news of the Act for abolishing the legislature of New York, and the imposition of these new duties ... (accompanied by a new set of revenue officers) ... began seriously to consider their situation....

That the whole American people was forbidden the advantage of a direct importation of wine, oil and fruit from Portugal but must take them loaded with all the expense of a voyage, one thousand leagues about, being to be landed first in England, to be re-shipped for America, ... and all this, merely that a few Portugal merchants in London may gain a commission on those goods passing through their hands.... That on a slight complaint of a few

Virginia merchants, nine colonies had been restrained from making paper money, become absolutely necessary to their internal commerce, from the constant remittance of their gold and silver to Britain....

Iron is to be found everywhere in America, and the beaver furs are the natural produce of that country. Hats and nails and steel are wanted there as well as here. It is of no importance to the common welfare of the empire, whether a subject of the King's obtains his living by making hats on this or on that side of the water. Yet the hatters of England have prevailed to obtain an act in their own favour, restraining that manufacture in America; in order to oblige the Americans to send their beaver to England to be manufactured, and purchase back the hats, loaded with the charges of double transportation. In the same manner have a few nail-makers, and a still smaller body of steel-makers (perhaps there are not half a dozen of these in England) prevailed totally to forbid by an Act of Parliament the erecting of slitting-mills or steel-furnaces in America; that the Americans may be obliged to take all their nails for their buildings, and steel for their tools, from these artificers under the same disadvantages.

AMERICAN NON-IMPORTATION POLICY

(Callender, *Econ. Hist. of U.S.*, pp. 151-54 (summarized). *Journal of the Continental Congress*, 1774, I, p. 75)

We, His Majesty's most loyal subjects, the delegates of the several colonies of New Hampshire, Massachusetts Bay, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, the three lower counties of New Castle, Kent and Sussex on Delaware, Maryland, Virginia, North Carolina, and South Carolina, deputed to represent them in a continental Congress, held in the city of Philadelphia, on the 5th day of September, 1774, avowing our allegiance to His Majesty, our affection and regard for our fellow-subjects in Great Britain and elsewhere, affected with the deepest anxiety and most alarming apprehensions, at those grievances and distresses with which His Majesty's American subjects are oppressed; and having taken under our most serious deliberation the state of the whole continent [of America] find, that the present unhappy situation of our affairs is occasioned by a ruinous system of colony administration adopted by the British ministry about the year 1763, evidently calculated for enslaving

these colonies, and with them, the British Empire.... To obtain redress of these grievances ... we are of opinion, that a non-importation, non-consumption and non-exportation agreement, faithfully adhered to, will prove the most speedy, effectual and peaceable measure; and, therefore, we do, for ourselves and the inhabitants of the several colonies, whom we represent, firmly agree and associate, under the sacred ties of virtue, honour and love of our country, as follows:—

(1) That from and after the first day of December next, we will not import, into British America, from Great Britain or Ireland, any goods, wares or merchandise whatsoever, or from any other place, any such goods, wares or merchandise, as shall have been exported from Great Britain or Ireland; nor will we, after that day, import any East India tea from any part of the world; nor any molasses, syrups, paneles, coffee or pimento, from the British plantations or from Dominica; nor wines from Madeira or the Western Islands; nor foreign indigo.

(2) We will neither import nor purchase, any slave imported after the first day of December next, after which time, we will wholly discontinue the slave trade; and will neither be concerned in it ourselves, nor will we hire our vessels, nor sell our commodities or manufactures to those who are concerned in it.

(3) ... we will not purchase or use any tea, imported on account of the East India Company, or any on which a duty hath been or shall be paid; and from and after the first day of March next, we will not purchase or use any East India tea, whatever....

(4) The earnest desire we have, not to injure our fellow subjects in Great Britain, Ireland or the West Indies, induces us to suspend a non-exportation, until the tenth day of September, 1775; at which time, if the said Acts ... of the British Parliament ... are not repealed, we will not, directly or indirectly, export any merchandise or commodity whatsoever, to Great Britain, Ireland or the West Indies, except rice to Europe....

(11) That a committee be chosen in every county, city, or town ... to observe the conduct of all persons touching this

association....

(12) That the committee of correspondence, in the respective colonies do frequently inspect the entries of their custom houses....

(14) ... And we recommend it to the provincial conventions, and to the committees in the respective colonies, to establish such farther regulations as they may think proper, for carrying into execution this association.

A PETITION FOR RECONCILIATION, 1775

(Callender, *Economic History of U.S.*, pp. 155-57. Hansard's *Parliamentary Debates*, XVIII, p. 168)

Mr. Alderman Hayley said he had a petition from the merchants of the city of London concerned in the commerce to North America ... setting forth—

“That the petitioners are all essentially interested in the trade to North America, either as exporters or importers, or as vendors of British and foreign goods for exportation to that country; and that the petitioners have exported, or sold for exportation, to the British colonies in North America, very large quantities of the manufactures of Great Britain and Ireland, and in particular, the staple articles of woollen, iron and linen, also those of cotton, silk, leather, pewter, tin, copper and brass, with almost every British manufacture; also large quantities of foreign linens and other articles imported into these kingdoms, from Flanders, Holland, Germany, the East Countries, Portugal, Spain and Italy, which are generally received from those countries in return for British Manufactures; and that the petitioners have likewise exported, or sold for exportation, great quantities of the various species of goods imported into this kingdom from the East Indies, part of which receive additional manufacture in Great Britain; and that the petitioners receive returns from North America to this kingdom directly, viz., pig and bar iron, timber, staves, naval stores, tobacco, rice, indigo, deer and other skins, beaver and furs, train oil, whalebone, beeswax, pot and pearl ashes, drugs and dyeing woods, with some bullion, and also wheat flour, Indian corn and salted provisions, when, on account of scarcity in Great Britain, those articles are permitted to be imported;

and that the petitioners receive returns circuitously from Ireland [for flax seed, etc., exported from North America] by bills of exchange on the merchants of this city trading to Ireland, for the proceeds of linens, etc., imported into these kingdoms from the West Indies; in return for provisions, lumber and cattle, exported from North America for the use and support of the West India Islands, by bills of exchange on the West India merchants, for the proceeds of sugar, molasses, rum, cotton, coffee or other produce, imported from those islands into these kingdoms; from Italy, Spain, Portugal, France, Flanders, Germany, Holland and the East Countries by bills of exchange or bullion in return for wheat flour, rice, Indian corn, fish and lumber, exported from the British colonies in North America, for the use of those countries;

and that the petitioners have great reason to believe, from the best informations they can obtain, that on the balance of this extensive commerce, there is now due from the colonies in North America, to the said city only, 2,000,000*l.* sterling and upwards; and that by the direct commerce with the colonies, and the circuitous trade thereon depending, some thousands of ships and vessels are employed, and many thousands of seamen are bred and maintained, thereby increasing the naval power and strength of Great Britain;

and that, in the year 1765, there was a great stagnation of the commerce between Great Britain and her colonies, in consequence of an Act for granting and applying certain stamp duties, and other duties, in the British colonies and plantations in America, by which the merchants trading to North America, and the artificers employed in the various manufactures consumed in those countries, were subjected to many hardships;

and that, in the following year, the said Act was repealed ... upon which repeal, the trade to the British colonies immediately resumed its former flourishing state;

and that in the year 1767, an Act passed for granting certain duties in the British colonies and plantations in America, which imposed certain duties, to be paid in America, on tea, glass, red and white lead, painters' colours, paper, pasteboard, millboard and scaleboard, when the commerce with the colonies was again interrupted;

and that in the year 1770, such parts of the said Act as imposed duties on glass, red and white lead, painters' colours, paper, pasteboard, millboard and scaleboard, were repealed, when the trade to America soon revived, except in the article of tea, on which a duty was continued, to be demanded on its importation into America, whereby that branch of our commerce was nearly lost;

and that in the year 1773, an Act passed, to allow a drawback of the duties of customs on the exportation of tea to His Majesty's colonies or plantations in America, and to empower the Commissioners of the Treasury to grant licences to the East India Company, to export tea, duty free;

and by the operation of those and other laws, the minds of His Majesty's subjects in the British colonies have been greatly disquieted a total stop is now put to the export trade with the greatest and most important part of North America, the public revenue is threatened with a large and fatal diminution, the petitioners with grievous distress, and thousands of industrious artificers and manufacturers with utter ruin...."

AMERICAN APPEAL TO FRANCE, JANUARY 5, 1775

(Callender, *Economic History of U.S.*, p. 167. Wharton, *The Revolutionary Diplomatic Correspondence of the United States*, II, p. 245)

Sir,

The Congress, the better to defend their coasts, protect their trade, and drive off the enemy, have instructed us to apply to France for eight ships of the line, completely manned, the expense of which they will undertake to pay. As other princes of Europe are lending or hiring their troops to Britain against America, it is apprehended that France may, if she thinks fit, afford our independent States the same kind of aid, without giving England any just cause of complaint. But if England should on that account declare war, we conceive that by the united force of France, Spain and America, she will lose all her possessions in the West Indies....

We also beg it may be particularly considered, that while the English are masters of the American seas, and can, without fear of interruption, transport with such ease their army from one part of our extensive coast to another, and we can only meet them by land marches, we may possibly,

unless some powerful aid is given us or some strong diversion be made in our favour, be so harassed and be put to such immense distress, as that finally our people will find themselves reduced to the necessity of ending the war by an accommodation....

B. FRANKLIN,
SILAS DEANE,
ARTHUR LEE.

EFFECT OF AMERICAN INDEPENDENCE ON EUROPE

LETTER FROM FRANKLIN AND DEANE, PARIS, 1777

(Callender, *Economic History of U.S.*, pp. 174-75. Wharton, *Revolutionary Diplomatic Correspondence*, II, p. 287)

All Europe is for us. Our Articles of Confederation, being by our means translated and published here, have given an appearance of consistence and firmness to the American States and Government that begins to make them considerable. The separate constitutions of the several States are also translating and publishing here, which afford abundance of speculation to the politicians of Europe, and it is a very general opinion that if we succeed in establishing our liberties, we shall, as soon as peace is restored, receive an immense addition of numbers and wealth from Europe, by the families who will come over to participate in our privileges, and bring their estates with them. Tyranny is so generally established in the rest of the world, that the prospect of an asylum in America, for those who love liberty, gives general joy, and our cause is esteemed the cause of all mankind. Slaves naturally become base, as well as wretched. We are fighting for the dignity and happiness of human nature. Glorious is it for the Americans to be called by Providence to this post of honour. Cursed and detested be everyone that deserts or betrays it.

POLITICAL DISCUSSIONS RESULTING, 1788

(Callender, *Economic History of U.S.*, pp. 176-67. B. de Warville, *The Commerce of America with Europe*, p. 8)

... this war has occasioned discussions important to public happiness—the discussion of the social compact—of civil liberty, of the means which

can render a people independent, of the circumstances which give sanction to its insurrection, and make it legal, and which give this people a place among the powers of the earth.

What good has not resulted from the repeated description of the English constitution, and of its effects? What good has not resulted from the codes of Massachusetts and New York, published and spread everywhere? And what benefits will they still produce? They will not be wholly taken for a model; but despotism will pay a greater respect, either from necessity or reason, to the rights of men, which are so well known and established.... This revolution, favourable to the people, which is preparing in the cabinets of Europe, will be undoubtedly accelerated, by that which its commerce will experience, and which we owe to the enfranchisement of America. The war which procured it for her, has made known the influence of commerce on power, the necessity of public credit, and consequently of public virtue, without which it cannot long subsist....

These are the advantages which France, the world and humanity, owe to the American Revolution....

INVENTORS OF MACHINERY

(Macpherson, *Annals of Commerce*, Vol. IV, p. 77)

In the early part of the 18th century [1748] an engine was invented by Mr. Paul, with the assistance of some others in London, who, having obtained a patent [1748], made trial of it at Nottingham and elsewhere, to the great loss of all concerned. Other schemes for spinning cotton by machinery have since been tried, and proved equally abortive.

About the year 1767 the discovery of this great desideratum in mechanics and manufacture was attempted by three different persons. The first, I believe, was Mr. Hargreaves of Blackburn in Lancashire, who constructed an engine, capable of spinning 20 or 30 threads of cotton yarn fit for fustian: but his machinery being destroyed by popular tumults, he removed to Nottingham.... Mr. Hayes invented a spinning engine and cylindrical carding engines, but never brought them to perfection. Mr. Arkwright ... after many experiments, finished his first engine in the year 1768 ... and in the year 1775, having brought his original machinery to a greater degree of perfection, and having also invented machines for preparing the cotton for

spinning, he obtained a fresh patent for his new invention. Hitherto he and his partners had reaped no profits from the undertaking; but now, proper buildings being erected at the expense of 30,000l. and the machinery being made capable of being put in motion by the strength of cattle, water, steam, or any other regular moving power, it began, notwithstanding some losses from riots ... to be productive to the proprietors.

JAMES' ACCOUNT OF HARGREAVES

(Baines, *History of Cotton*, p. 164. Note)

“I knew Mr. Hargreaves very well: he was a stout, broadset man, about five feet, ten inches high, or rather more: he first worked in Nottingham with Mr. Shipley about 1768, and here my father first met him. He was making jennies for Shipley, who then wished to go into the cotton spinning. My Father prevailed on him to leave Shipley and embark with him in a new concern: and money was borrowed by my father principally on the mortgage of some freehold property, on which they were to erect their mill. The mill was erected, and two dwelling houses, in one of which my father resided and in the other was Mr. Hargreaves' family.”

ARKWRIGHT OVERRATED

(Baines, *History of Cotton*, p. 195)

The marvellous and “unbounded invention” which he claimed for himself ... did not belong to Arkwright. It is clear that some of the improvements which made the carding engine what it was when he took out his second patent, were devised by others; and there are two prior claimants to the invention of spinning by rollers before the patent of Arkwright. [Possibly] the latter derived the principle of his machine either from Wyatt or Highs ... at the same time it is certain that Arkwright displayed great inventive talent in perfecting the details.

Wealth flowed in upon him with a full stream from his skilfully managed concern. For several years he fixed the price of cotton twist, all other

spinners conforming to his prices.... In 1786 Arkwright was appointed High Sheriff of Derbyshire ... and [later] received the honour of knighthood.

CROMPTON'S MULE

(Ibid., p. 199)

“In regard to the mule, the date of its being first completed was in the year 1799: at the end of the following year I was under the necessity of making it public, or destroying it, as it was not in my power to keep it and work it; and to destroy it was too painful a task, having been four and a half years at least, wherein every moment of time and power of mind as well as expense, which my other employment would permit, were devoted to this one end, the having good yarn to weave; so that to destroy it, I could not.”

THE BANKING-HOUSE OF COUTTS & CO.

(Sir W. Forbes, *Memoirs of a Banking-House*, Ed., Chambers, 1860)

The founder of the Edinburgh house of business ... was Patrick Coutts, the fourth son of Alexander Coutts, provost of Montrose (p. 1) ... he carried on business in Edinburgh as a merchant at least as early as the year 1696. The books are kept in Scots money and very neatly and distinctly written. He appears to have been a general merchant, whose transactions were considerably extended, for in his books there are accounts of mercantile adventures to New York and Pennsylvania, to Amsterdam, to France and to the Canaries.... He left three sons, John, James and Christian ... (John) engaged in mercantile concerns in Edinburgh in the year 1723.... Their business was dealing in corn, buying and selling goods on commissions, and the negotiation of bills of exchange in London, Holland, France, Italy, Spain and Portugal. The negotiation of bills of exchange formed at that period a considerable part of the business of Edinburgh; for there were then no country banks.... I see many notices of the difficulty, at that time, of effecting money transactions of any considerable extent in the country towns of Scotland.... A mercantile business was likewise formed about this time (1750) in London, by the Messrs. Coutts ... as the correspondents of the house in Edinburgh (p. 6).... In England the house had large quantities of corn shipped for them at Yarne and at Stockton in Yorkshire; at Lyme Regis, Fakenham and Yarmouth, all in the rich corn county of Norfolk; at

Haverfordwest in South Wales, and by the noted Cooper Thornhill, who at that time kept the Bell inn at Hilton, was one of the most considerable corn factors in England.... Indeed, I have often thought it not a little singular that a banking-house ... should have chosen to embark so largely in the corn-trade, which is, perhaps, that most liable to sudden fluctuation.... Yet in this the Messrs. Coutts were not singular....

The other principal banking-houses in Edinburgh at that time were Messrs. Mansfield & Co., William Cuming, William Hogg and Son, and William Alexander & Sons. The two first confined themselves strictly to the banking-business, in which they rose to great eminence from a very obscure origin. From a slender start in life, as a draper, old Mr. James Mansfield began to deal a little in bills of exchange, and by degrees founded a banking-house of the first celebrity in Scotland. In the same manner William Cuming succeeded to his father, old Patrick Cuming's cloth-shops in the Parliament Close, which he afterwards converted into a counting-house where he confined himself entirely to the transacting of money business and after a long life left a very large fortune. William Hogg & Son were not in very extensive business and they managed it very confusedly. William Alexander & Sons were very considerable money-dealers, though their chief employment was purchasing tobacco for the Farmers-general of France (p. 9).

“John Coutts, the second son (of the late Lord Provost Coutts) under whose eye chiefly I served my apprenticeship, was one of the most agreeable men I ever knew. Lively and wellbred, and of very engaging manners, he had the happy talent of uniting a love of society and public amusements with a strict attention to business.... Having received his mercantile education in Holland, he had all the accuracy and all the strictness of a Dutchman; and, to his lessons it is that I owe any knowledge I possess of the principles of business, as well as an attachment to *form* which I shall probably carry with me to the grave....

So strict was he in the discipline of the counting-house, that I slept but one night out of Edinburgh from the commencement of my apprenticeship

in May 1754, till the month of September, 1760, when I obtained leave to go to Aberdeenshire with my mother to pay a visit to our relations” (p. 10).

... Our new copartnery commenced ... the Seven Years’ War had just been terminated.... The rate of exchange for bills on London was as high as three, four and even five per cent. against Scotland. This, of necessity, occasioned demands on the bank at Edinburgh for specie which they were unable or unwilling to answer.... In London the character and credit of Scottish paper was at the lowest ebb, and the Bank of England was extremely shy of discounting bills drawn on London from Edinburgh. It was therefore a task of no ordinary difficulty to conduct the affairs of our two houses with safety (p. 19).... Very soon after (1771) two important events took place, extremely memorable in the history of the house. I mean the commission from the Farmers-general of France for the purchase of tobaccos in Scotland; and the erecting of the Banking Co., in St. James’ Street, London. The great company in France, known by the name of the Farmers-general, from their having farmed the public taxes of that kingdom under the old government, enjoyed by consequence the exclusive privilege of importing tobacco into France, with which they were chiefly supplied from Scotland, the article being originally procured by the merchants of Glasgow from North America (p. 27).

ROMAN ROADS IN YORKSHIRE

(D. Defoe, *Tour through Great Britain*, p. 123)

From Ferrybridge, within a mile of Pontefract, extends a large stone Causeway, about a mile in length, to a village called Brotherton. A little to the south of this village, the great Road divides into two parts; one goes on to the right to York, and the other through Aberford and Watherley to Scotland.... This Causeway in many places is entirely perfect, although undoubtedly a work of 16 or 1700 years old, and in other places where it is broken up, the courses appear to be of different materials; the bottom is clay or earth, upon that is chalk, then gravel, upon the gravel is stone, and then gravel upon that.... This Causeway runs in a direct line from Doncaster to Castleford, where it makes an angle and runs in another direct line to Aberford, Tadcaster and York. It is very easy to trace its course over moors and open grounds which have not been cultivated; but there are few or no

remains upon the enclosed lands. There is no doubt but that the Romans had communications between all their stations in this country, by roads of this kind.

THE ROMAN WALL

(A. Young, *Northern Tour*, Letter XVI, p. 112)

From Glenwelt I walked about half a mile to view some of the remnants of the famous Roman wall, a piece above five feet high and several yards long; the facing is of regularly cut freestone but I measured none of them above thirteen inches long and seven broad; the mortar in the facing is quite gone, but much of it remains in the middle, the filling up; very little of it is of that hard nature often found in ancient buildings, but crumbles with ease between the fingers. The stones of the facing are cut very regularly, and well laid; the workmanship undoubtedly very good. Not far from this wall the remains of an earth entrenchment, thrown up for the same purpose, are seen in a parallel line with it.

LANCASTER

(Ibid., Letter XVIII, p. 196)

Lancaster is a flourishing town, well situated for trade, of which it carries on a pretty brisk one; possessing about 100 sail of ships, some of them good burthen, for the African and American trades. The only manufactory in the town is that of cabinet ware. Here are many cabinet makers who work up the mahogany brought home in their own ships, and re-export it to the West Indies, etc.

MARLING

(Ibid., Letter XVIII, p. 198)

As to manures, marle is the grand one, which is found under all this country (Lancashire) and generally within sixteen or twenty inches of the surface ... it lies in beds, many of them of a vast depth, the bottoms of some pits not being found. It is white, and as soft and soapy as butter. They lay about a hundred two-horse cartloads to an acre, but some farmers less, on to

lays^[31] and stubble. It lasts a good improvement for twenty years: costs about £4 10s. 0d. an acre. Marle is their principal manure, both white, black, blue, sandy and some small marle. They sometimes find perfect cockle and periwinkle shells nine yards deep in beds of marle. It does best on light soil.

MANCHESTER

(Ibid., Letter XVIII, pp. 242, *et seq.*)

The Manchester manufacturers are divided into four branches—the fustian, the check, the hat and the worsted small wares. All sorts of cotton are used but chiefly the West Indian.... Many low priced goods they make for N. America, and many fine ones for the West Indies. The whole business was exceedingly brisk during the (7 Years') war, and very bad after the peace, but now are pretty good again, though not equal to what they were during the war. All the revolutions of late in the N. American affairs are felt severely in this branch ... the interruptions caused by the convulsions in America very severely felt by every workman. None ever offered for work but they at once had it, except upon the regulations of the Colonies cutting off their trade with the Spaniards, and the Stamp Act. The last advices received from America have had a similar effect, for many hands were paid off in consequence of them ... America takes three-fourths of all the manufacturers of Manchester.

NEWCASTLE

(Ibid., Letter XV, p. 11. 1770)

This town is supposed to contain 40,000 souls, and to employ of its own 500 sail of ships, 400 of which are colliers. The people employed in the coal mines are prodigiously numerous amounting to many thousand; the earnings of the men are from 1/-to 4/-a day and their firing.

About five miles from Newcastle are the ironworks, late Crawley's, supposed to be the greatest manufactory of the kind in Europe. Several hundred hands are employed in it, insomuch that £20,000 a year is paid in wages. They earn from 1/-to 2/6 a day, and some of the foremen as much as £200 a year. The quantity of iron they work up is very great, employing

three ships to the Baltic that each make ten voyages yearly and bring 70 tons at a time.... They use a good deal of American iron which is as good as any Swedish and for some purposes much better. They would use more of it if larger quantities were to be had, but they cannot get it—which is worthy of remark.

In general their greatest work is for exportation and are employed very considerably by the East India Company: they have of late had a prodigious artillery demand from that Company^[32].

As to the machines for accelerating several operations in the manufacture, copper rollers ... and the scissors for cutting bars of iron ... the turning cranes ... the beating hammer. There are machines of manifest utility, simple in their construction and all moved by water ... there are no impossibilities in mechanics, an anchor of 20 tons may undoubtedly be managed with as much ease as a pin.

AMERICAN TRADE

(Macpherson, *Annals of Commerce*, IV, p. 10)

The Consequences resulting to Great Britain from the independence of the American States, may, with great truth, be called *advantages*.... A great and obvious advantage was the relief from governing and protecting them ... relief from the payment of bounties ... the recovery of the valuable trade of shipbuilding ... sacrificed to the zeal for promoting the prosperity of the Colonies.

It was said ... that Great Britain possessed the whole of the American trade before the revolt.... It is well known that before the war the Americans carried a considerable proportion of their trade to other nations, contrary to law. Now they are at liberty to deal with other nations or with Britain; and for that reason alone some of them will choose to deal with Britain.... Experience has fully shown that there was no real cause to apprehend any decay of the British commerce in consequence of the new order of things in America: and moreover, what must effectually silence all controversy on the subject, the official accounts of the Custom House demonstrate that there has been a greater and more rapid increase in the general commerce of

Great Britain, and especially of the commerce with America, since the era of American independence than ever there was.

EIGHTEENTH CENTURY ENCLOSURES

(A. Young, *Northern Tour*, Letter IV, pp. 252-65)

There is scarcely any point in rural economics more generally acknowledged than the great benefits of enclosing open lands ... some ... it is true ... assert them to be very mischevious to the poor.

First: The proprietors of large estates generally agree upon the measure ... the small proprietor, whose property in the township is perhaps his all, has little or no weight ... and as little weight in the choice of commissioners.

Third: The attorney delivers his bill to the commissioners, who pay him and themselves without producing any account, and in what manner they please ... the expenses previous to the actual inclosing are from £1800 to £2000 all which is levied and expended by the commissioners absolutely and without control.

Fourth: The division and distribution of the lands are totally in their breasts.... Nor is there any appeal but to the commissioners themselves from their allotments, however carelessly or partially made. Thus is the property of the proprietors, and especially the small ones, entirely at their mercy.

I am not here arguing against inclosures, the advantages arising from them are certainly very extensive. I am only saying they do not always indemnify the *present* possessor from the great expense he is at in obtaining them, by the absurd and extravagant manner in which they are generally conducted.

PRICE OF LABOUR

(A. Young, *Northern Tour*, Letter XXXIX, pp. 445 *et seq.*)

Averages	{	Harvest 10/8	}	Pay per week
		Hay 9/5		
		Winter 6/5		

I do not think there is much reason to find fault with any of these average prices as exorbitant or higher than a flourishing agriculture can well afford to pay, nor are any of them so low as to oppress the labouring poor; there not being above one or two places where any allowance is made for *piece work*, whereas much is everywhere done; and it is universally known that they earn more in that manner than the weekly pay of the country.

Servants' wages are higher than I conceived. £10 8s. 6d. for upper farming men is out of proportion to the average pay of labourers.

The rates of labour admit of prodigious variations.... I apprehend that Chance has been the mother of three fourths. Famine before the exportation of corn was encouraged, and extreme high prices locally heightened the prices of labour, as the richer inhabitants were more or less willing to assist the poor. The rates so raised in some places continued after the occasion, in others were reduced.

In some places I was informed of the value of servants' board, washing and lodging; average £9.

PRICES OF LABOUR IN THE MANUFACTURING TOWNS (SUMMARIZED)

Men:	from 15/- or 11/- (colliers) to 7/6 or 7/1 (textile)	} per week
Women:	„ 6/6 (potteries) or 5/4 (textile) to 3/3 (textile)	

Children: „ 5/- or 4/- (textile) to } „ „
 1/8 or 1/-

Average of poor rates: 1/1.

Poor rates are never nicely proportioned to the prices of provisions and the necessities of the poor, but depend on the temper of individuals, the caprice of parish officers and justices of the peace. They are as often raised by clamour as by real necessity.

INCOME OF THE SOIL OF ENGLAND

Reckoned 32 million acres, half arable, half grass

(A. Young, *Northern Tour*, Letter XLII, p. 493)

The Landlord's rent was found to be	£16,000,000
„ Tenants' profit	£18,237,691
„ Clergy	£5,500,000
„ Industrious poor (being the amount of labour)	£14,596,937
„ Non-industrious (being the amount of rates)	£866,666
„ Interest of money	£4,400,000
Total of these several incomes arising from the soil	£59,601,294

ROADS

(A. Young, *Northern Tour*, Letter XLIII, p. 573)

[A few examples]

Turnpike:	To Stevenage	Good
	To Wooburn	Good
Bad:	To Newport	Middling
	Pagnell	
	To Bedford	A vile narrow cut up lane
	To Castle	Infamous. I was near being swallowed up in a
	Howard	slough
	To Darlington	is the great north road and execrably broke into
		holes, like an old pavement, sufficient to dislocate

		one's bones
	To Wigan	rutts which I actually measured four feet deep and floating with mud only from a wet summer.... I actually passed three carts broken down in these eighteen miles
	To Newcastle	I was forced to employ two men at one place to support my chaise from overthrowing in turning out for a cart of goods overthrown and almost buried
Good:	To Choleford Bridge	Excellent. Much indebted is the country to Sir Walter Blacket for the many good roads which lead every way round him
	To Kirkleatham	Crossroad. This road is a rare instance of the public spirit of the gentlemen of Cleveland.... They are doing it by subscription

CHILDREN IN FACTORIES

(John Fielden, *The Curse of the Factory System*)

Sir R. Peel's evidence before a committee of the House of Commons, 1816:—

“Having other pursuits, it was not often in my power to visit the factories, but whenever such visits were made I was struck with the uniform appearance of bad health, and, in many cases, stunted growth of the children. The hours of labour were regulated by the interests of the overseer, whose remuneration was regulated by the quantity of work done” (p. 9).

Evidence of John Moss, overseer of Blackbarrow Mill, near Preston (summarized):—

The children in the mill were almost all apprentices from London parishes. They were worked from five in the morning to eight at night all the year round, with only one hour for the two meals; in making up lost time they frequently worked from five in the morning till ten at night, and invariably they worked from

six on the Sunday morning till twelve, in cleaning the machinery for the week!

“Did the children sit or stand at work?”	“Stand.”
“The whole of their time?”	“Yes.”
“Were there any seats in the Mill?”	“None.”
“Were they usually much fatigued at night?”	“Yes, some of them were very much fatigued.”
“Where did they sleep?”	“They slept in the apprentice house.”
“Did you inspect their beds?”	“Yes, every night.”
	“Because there were always some of them missing; some sometimes might be run away. Others sometimes I have found asleep in the mill.”
“For what purpose?”	
“Upon the mill-floor?”	“Yes.”
“Did the children frequently lie down upon the mill floor at night when their work was over and fall asleep before their supper?”	“I have found them frequently upon the mill floor after the time they should have been in bed” (p. 10).

Mr. Horner’s statements in the House of Commons, 6th June, 1815.

“These children were often sent one, two, or three hundred miles from their place of birth, separated for life from all relations. It had been known that with a bankrupt’s effect a gang ... of these children had been put up to sale and were advertised publicly as a part of the property ... a number of these boys, apprenticed by a parish in London to one manufacturer, had been transferred to another, and had been found by some benevolent persons in a state of absolute famine.... Not many years ago an agreement had been made between a London parish and a Lancashire manufacturer ... that with every twenty sound children, one idiot should be taken!” (p. 11).

Report of Commissioners, 1833, from Scotland, p. 41. Evidence of a Spinner.

“I find it difficult to keep my *piecers* awake the last hours of a winter evening; have seen them fall asleep and go on performing their work with their hands while they were asleep, after the *billey* had stopped. When their work was over, I have stopped and looked at them for two minutes, going through the motions of *piecening* when they were fast asleep, when there was no work to do, and they were doing nothing; children at night are so fatigued that they are asleep often as soon as they sit down, so that it is impossible to wake them to sense enough to wash themselves, or even to eat a bit of supper, being so stupid in sleep” (p. 19).

Half-overseer's evidence.

Does not like the long hours; he is very tired and hoarse at night and that some of the young female workers in his, the spinning flat, have so swelled legs, one in particular, from standing so long, about 17 years old, that she can hardly walk; that various of them have their feet bent in and their legs crooked from the same cause (p. 21).

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FOOTNOTES

- [1] Tun, i.e., enclosure or township.
- [2] Bot, i.e., amends.
- [3] Wite, i.e., fine.
- [4] Wed = Pledge against repetition of trespass.
- [5] Pannage = Payment for right to graze swine in woodland.
- [6] Yardland = 30 acres.
- [7] Wer = Amount at which a man's value to the community is reckoned.
- [8] Port = Town not necessarily a sea-port.
- [9] Burh = Fortified place, burg, bury.
- [10] Oferhynes = Fine.
- [11] Probably Greatley near Andover.
- [12] Frith = Peace.
- [13] Books = Written statements of property.
- [14] Mass priest is any priest able to celebrate mass; used by Saxons for parish priest.
- [15] Franchise = Free community.
- [16] Soke = Land belonging to the city but outside the walls.
- [17] Plea rolls = Record of appeals heard in the city courts.
- [18] Socman = A free holder of land.
- [19] i.e. shires, hundreds, tithings.
- [20] Carucate = Hide, about 120 acres.
- [21] Chirograph is the name for a bond or written record.
- [22] Corodiers = Men holding by corrody, i.e. service of providing a night's lodging.
- [23] Mentz = Mainz, ruled by an archbishop.
- [24] A mistake, Alexius did not reign till thirty years later.
- [25] Title given to the son of the Holy Roman Emperor.
- [26] Offenders were mainly members of the Corporation or the University, also some local landowners.
- [27] Suburbs of Cambridge, Trumpington above, Chesterton below the town.
- [28] The prohibition of iron-tyred carts was common in towns at this period.

[29] Speculators, investing capital in draining.

[30] Denied by Anglicans to-day.

[31] Lays, leys, or leas, is an old name for the common fields about a village.

[32] East India Co. had, in 1757, taken responsibility for the defence of Bengal, and been involved in war with the heir to the Mogul throne, 1759; the Nawab Mir Kasim, 1763; the Mahrattas, 1765; they also sold arms and artillery to natives.

Transcriber's Note

All original spellings and hyphenations, including variations, were retained except in the cases of the following apparent typographical errors.

Page [38](#), “Christain” changed to “Christian.” (after the Christian merchants had)

Page [58](#), “destroyd” changed to “destroyed.” (caused all wears to be destroyed)

Page [84](#), “childen” changed to “children.” (enable children to grasp these social changes)

Page [90](#), “peny” changed to “penny.” (grote, halfgrote, penny, halfpenny)

Page [115](#), “Pezes” changed to “Pezos.” (eighteen thousand Pezos of gold and silver)

Page [142](#), “Henrouse” changed to “Henhouse.” (Ponds or Waters, Hennes from Henhouse)

Page [153](#), “stablished” changed to “established.” (was the established National Church)

Page [167](#), “accomodation” changed to “accommodation.” (ending the war by an accommodation)

In footnote [27](#), “Surburbs” changed to “Suburbs.” (Suburbs of Cambridge, Trumpington above)

In the [Index](#), the following entries were missing page numbers, which have been added by the transcriber:

Russian Company
Basings, Thomas de
Saint Sophia

The following presumed errors in the original were not altered in this text:

The heading “A.D. 1262” is repeated on pages [60](#) and [61](#).

The entry following “Prior” in the [Index](#) shows page numbers but no text.

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